MAURITANIA SUPPLEMENTAL FIELD OFFICE MANUAL FOR PERSONNEL AND OPERATIONS

2024

PARTNERS of the AMERICAS
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1. Introduction

1.1 Welcome to Partners

Welcome to Partners of the Americas!

The field office manual has been prepared specifically for Partners of the Americas employees in Mauritania. It will introduce the organization and information on the rights and obligations the employee has towards the Mauritania Field Office and, at the same time, about the rights and obligations that the Mauritania Field Office has towards the employee. This Manual is therefore a basic information tool for employees working in the Mauritania Field Office.

In this book we try to explain the important topics related to financial, personnel and operational management. The Mauritania Field Office expects that all employees understand and implement all the policies and procedures found within this manual. It is the responsibility of each employee to know the policies and procedures, or when necessary, request clarification. All employees will be required to sign a certification form confirming that they have reviewed all the policies and that they will adhered to the standards set forth within this document.

When the Mauritania Field Office deems it appropriate to modify the policies and procedures, it will update the necessary parameters which will subsequently be disbursed to each employee in a timely manner. We ask you to contact your immediate superior or the Administrative and Financial Management if you have any doubt about your position or your working relationship with the Partners Mauritania, as many times as necessary.

You are the lifeblood of Partners of the Americas and, as such, we want you to find an interesting and rewarding experience in your work environment.

With all due respect, I wish you every success.

John McPhail, President & CEO

1.2 Objective and Scope

The purpose of this manual is to help its users to work in accordance with the rules and philosophy of Partners of the Americas, adapted to the Labor Code in Mauritania, thus becoming a consultation tool with unified criteria and provide a general framework and standardized set of policies and procedures for financial and personnel management in Partners of the Americas' Mauritania Field Office, herein after referred to as **"Partners Mauritania"**. The supplemental manual addresses country specific laws, regulations, and policies in accordance with Mauritanian law.

The information presented here contains the main standards of conduct Partners Mauritania and the most common legal regulations in the workplace.

Partners Mauritania is expected to comply with all the policies and procedures set forth in this manual and are encouraged to seek clarifications if questions arise. Partners Mauritania, (including sub-offices), must maintain a printed copy of the manual for reference.

1.3 Management Control – Roles and Responsibilities in Headquarters

The Chief Financial Officer (CFO) is the authority on the Partners Mauritania supplemental manual, or in absence of the CFO, an individual designated by the President and CEO. Partners Mauritania is encouraged to provide input, suggestions, and corrections, but may not alter or change any part of this manual.

This manual will be reviewed and updated annually (if applicable) to reflect current circumstances as well as new policies and procedures. Partners Mauritania will be notified of updates by e-mail.

1.4 Implementation Control – Roles and Responsibilities in Mauritania

This manual is for the use and knowledge of all employees without exception. The contents of this manual as well as its updates will be notified to each employee for its understanding and its application. It is the responsibility of all employees to know, understand and apply the contents of this manual in its entirety.

It is not permitted to reproduce the manual for reasons as its consultation is exclusively reserved for the employees of Partners Mauritania. In the event that the employee has suggestions and recommendations related to the manual, these remarks must be communicated in writing to the immediate supervisor so that they can forward it to the management.

Enforcement of this supplemental field office manual will be the responsibility of the positions below.

- Field Office (FO) Director (Project Director or Chief of Party, etc.) – This individual is the lead field office operations director in country. They are responsible for overall project/program management and the operations of the field on a day-to-day basis. This individual is also responsible for approval of all the finance operations including payment authorizations and internal controls for the in-country field office.
- Field Office (FO) Finance Manager (Admin Manager, Admin & Finance Assistant/Manager, Finance & Admin Director) – This individual is the person responsible for all the finance operations and internal controls for the in-country field office.
- Field Office (FO) Accountant – This individual is responsible for basic data entry, overseeing and reconciling accounts.
- Field Office (FO) Human Resource (HR) (HR Manager or HR Director or HR Officer) – This individual is responsible for human resources including personnel management, hiring, termination, etc. for the in-country field office.

2. Internal Controls

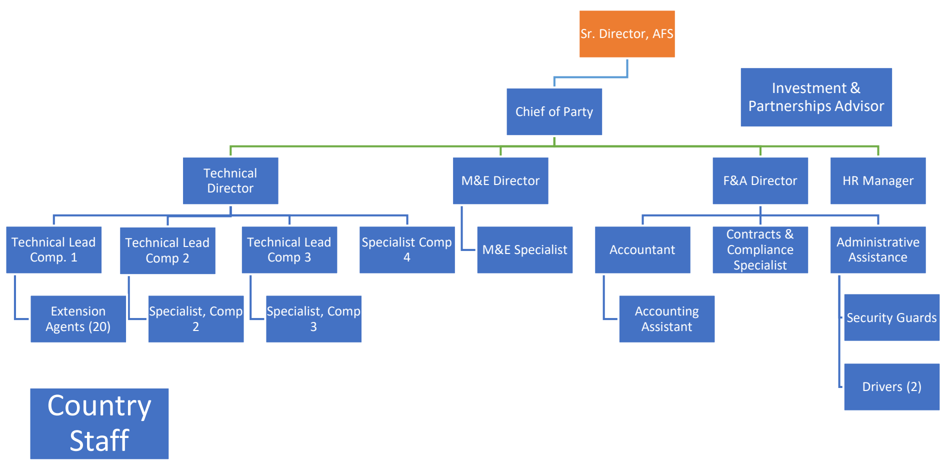
2.1 Purpose and Scope

The purpose of Internal Controls is to provide reasonable assurance that the following objectives are being accomplished:

- Reliability and integrity of information
- Compliance with policies, plans, procedures, laws, and regulations
- Safeguarding of assets in Partners Mauritania
- Economical and efficient use of resources
- Accomplishment of established objectives and goals for operations and programs

2.2 Approval Authority

The flowchart below outlines the approval authority matrix at Partners Mauritania.* The FO Finance Manager, supported by the FO Director, has responsibility for enforcing approval authority. Partners HQ has approval over the FO Director and must approve his/her payments, etc. In accordance with the procurement policy, all transactions and contracts valued at USD $10,000 (or the local MRU equivalent) or more will automatically need to be approved by Partners HQ. If there is a Deputy Chief of Party or Deputy Project Director, they are authorized to approval all transactions and contracts valued up to $5,000 USD or the local MRU equivalent. One exception to the limit is that the FO Director is authorized to sign all employment contracts and approve all payroll transactions, regardless of the amount. Employees should refer to the Delegation of Authority Policy to see the most up-to-date information on signing authority for both the FO and HO.



*Please note the organizational chart is subject to change based upon current positions.

2.2.1 Responsibilities of Approval and Review Authorities

It is critical that approval authority holders not only understand what their authority levels are, but also what their responsibilities are in using their authority. The responsibilities for both approval authority holders and financial review are outlined below.

By approving an expenditure, commitment or payment, the signer is confirming that:

1. The expenditure is necessary and appropriate;
2. The item is not currently in stock or available;
3. The technical specifications are correct and adequately detailed;
4. The required forms are complete;
5. Funds are available within the budget;
6. The expenditure is in compliance with Partners' policies and procedures.

Financial review is a compliance check and not an approval authority. The primary purpose of financial review is to ensure that all financial and compliance aspects of the commitment are considered. The FO Finance Manager, when signing off, is confirming that:

1. The expense has been authorized by the appropriate authorizer;
2. The expenditure is within budget guidelines;
3. The expenditure is in compliance with Partners and donor policies;
4. The expense has been coded correctly;
5. The calculations are correct;
6. The required supporting documentation is in order and adequately explains the transaction; and
7. All payments, whether by check, wire transfer, etc. are being paid to the party which appears on the procurement records and/or other approval documentation. Checks or transfers may not be made out to third parties or any Partners' employees (either Partners HQ or Partners Mauritania) to be cashed on behalf of the vendor. Any exceptions must be approved in writing by the Chief Financial Officer (CFO) or President & CEO.
8. All expenses are recorded at full cost and not net of taxes, etc.

An original signature on an original document is the required method of documenting an approval or review. Upward approval is required for all transactions. Under no circumstances may an originator approve their own expenses, including the FO Director.

When the authority holder is not located at Partners Mauritania or where an approval is required due to a temporary absence (travel, vacation, sick, etc.), the next level of authority in that office should be sought for approvals that the absent party would have normally made. All approvals are obtained via PandaDoc e-signature platform.

3. Financial Reporting & Reconciliation of Accounts

3.1 Payment Requests

In order for finance department to process payments to a vendor, approval is required from the FO Director/DCOP or HO, based on the expected amount. Approval for payment requests are in accordance with Partners' Delegation of Authority Policy.

The approval process will be completed via a payment request form in PandaDoc. Payment request forms apply to all purchases made from any bank account, Airtm account, PayPal account or Western Union. The payment request form does not apply to purchases made with petty cash or any corporate credit card. For travel reimbursements, field staff will continue to use Replicon to submit reimbursement request, therefore, they do not require a payment request form.

In PandaDoc, the payment requestor should initiate the payment request form. The form should be routed to FO Director/DCOP or HO for approval. Once approved, the form will be routed to the Finance Department for auditing and processing. The FO Finance Manager will only make payments on expense vouchers that have been fully approved and include all the necessary supporting documentation. The FO Finance Manager must verify and match up the vendor invoice, supporting documentation, the procurement file, and the signed payment request. While normally exempt from taxes, if Partners Mauritania must withhold taxes in a certain situations, the finance department will be responsible for withholding taxes and remitting the payment to the appropriate tax authorities. All payments must be made in accordance with the contractual terms between the Partners Mauritania and vendor, and Partners' financial policies.

FO staff will need to complete the payment request form, attach an invoice, copy of the contract, Visual compliance check, and all other necessary supporting documentation. Please reference the supporting documentation checklist for this list of necessary documentation for each payment type. These required documents should be uploaded into PandaDoc. Once fully approved, PandaDoc will create a single file PDF of the payment request and all the supporting documentation. It is important that an invoice or receipt is created by the vendor, not Partners Mauritania. It must include vendor, date, amount, item, and quantity. Sample invoices are available for vendors, if needed.

3.2 Visual Compliance Check

The U.S. Government requires the following compliance checks prior to the expenditure of funds: SAM.gov, the UN's Specially Designated Nationals And Blocked Persons List (SDN), and Office of Foreign Assets Control (OFAC) Sanctions Lists. To satisfy this requirement, Partners HQ, in accordance with Federal Regulation, requires that Partners Mauritania run a Visual Compliance check on all recipients (individuals and entities) who are receiving any funds. The website for Visual Compliance is: https://www.visualcompliance.com/ and the necessary login information will be provided by Partners HQ. Proof that the Visual Compliance check was done must be retained and kept along with proof of the payment, **prior to disbursing funds to the recipient.** The Visual Compliance check must be run at a minimum, once per calendar year (January – December) prior to the first payment of the year in order to be compliant.

Each month, Partners HQ will request copies of selected Visual Compliance checks for inspection and to ensure compliance. The transactions will be selected at random.

3.3 Reconciliation of Accounts

All assets and liabilities accounts (i.e. cash, accounts receivable, accounts payable and other balance sheet accounts) must be properly reconciled on a monthly basis. Evidence of the reconciliation should be maintained in Partners Mauritania. This evidence should include all supporting schedules prepared by the FO Finance Manager and approved by the FO Director prior to the submission of the reports to Partners HQ, or presentation to the auditors during the audit process.

The FO Finance Manager will provide the FO Director with the below reports monthly:

1. Balance Sheet
2. Income Statement
3. Report on Budget versus Actuals

The FO Director is responsible for the review and approval of the above financial statements. Copies of the approved financial statements must be submitted to Partners HQ quarterly.

3.4 Financial Reporting

All financial reports for both Partners Mauritania and estimated accruals for all subrecipients must be submitted to Partners HQ by the 10^{th} of the following month. If the 10^{th} of the month falls on a holiday or weekend, the submission deadline is the last business day prior to the 10^{th}. Final financial reports for subrecipients must submitted by the 20^{th} of the month, or the last business day prior.

Compliance with this timeline is critical to ensure expenditures are recorded in the correct month. If there are any delays or issues with meeting the deadline, field staff must immediately notify Partners HQ of the delay and provide an explanation for the nature of the delay. Partners will provide a template for monthly financial reporting. A financial report must be received each month for all bank accounts held by Partners Mauritania which includes all of the following:

A) Signed bank reconciliation (template provided by Partners HQ, see Annex C)

B) Copy of the bank statement(s)

C) Expense report indicating all expenditures in the month (on the template provided by Partners, see Annex C)

D) Copies of all documentation to support the expenditures listed on the expense report

E) If reporting is done in local currency, then a copy of the prior month's average exchange rates must be submitted from OANDA or the Bank of Mauritania.

Partners may withhold a cash flow advance request if Partners Mauritania fails to provide timely reporting of expenditures in accordance with the above guidelines.

3.5 Credit Card Reporting

Any Partners Mauritania employee who holds a corporate credit card is responsible for complying with Partners Credit Card Policy. The policy requires that all employees must properly **code and attach required supporting documentation** to all charges on their credit card by the **last business day of the month**. However, to reduce any delays Partners recommends that all expenses are coded within 48 hours of the charge. Receipts are required for all transactions $25.00 USD or more. All charges must be coded and have a "Pending approval" status by the last business day of month. If charges are not coded by the end of the month, on the 1st of the next month the credit card will be frozen.

Employees are responsible for having their monthly expenses approved by their supervisor by the 5th of the following month or the last business day prior if the 5th falls on a weekend or holiday. If supervisors fail to approve charges by the 5th, their credit cards will be frozen on the 6th or next business day. The supervisors credit card will be unfrozen once all pending charges are approved.

4. Financial Records, Audits & Record Retention

4.1 Record Retention and Accounting

Partners Mauritania must maintain financial records, supporting documents, statistical records, and all other records, to support performance of, and charges to, the project. Such records must comply with accounting principles generally accepted in the U.S and Mauritania and comply with Partners Record Retention Policy.

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Partners Mauritania records and any subrecipient records that pertain to the project must be retained in country during the timeframe that Partners has an office in country, for a minimum period of five years. After Partners Mauritania closes operations in country and completes the fiscal closing process in accordance with the entity type, there is no further obligation to keep fiscal or financial files in country. Partners Mauritania will collaborate with Partners HQ to transport the necessary documents to the international office.

4.2 Filing & Records

The FO Director is responsible for ensuring compliance with Partners filing and record retention procedures. In addition, they are responsible for maintaining the general filing system or appointing another member of the management team to assist in this process.

At a minimum all files, including financial records, supporting documents, statistical records, and all other records, to support performance of, and charges to, the project must be uploaded to

SharePoint in accordance with Partners File Structure Policy. All documents saved to SharePoint and/or in PandaDoc must follow Partners E-Nomenclature Policy.

If hard copies of documents are retained, they must be stored in a fire-proof filing cabinet with a lock. Access to the files should be restricted to the FO Director and FO Finance Manager.

4.2.1 Privacy & Personally Identifying Information (PII)

Partners Mauritania requires that all collection of data and information comply with Partners Policy on Privacy & Personally Identifying Information. The Policy sets forth the minimum standards to protect personally identifiable information ("PII") and outlines how and why Partners collects, processes, and handles PII. This policy also informs individuals about their rights regarding data privacy. This policy applies to personal data provided to Partners Mauritania, both by individuals themselves and/or by others. This policy is created to be transparent about why and how Partners process personal data. Reference Partners Mauritania's full policy on Privacy & Personally Identifying Information.

4.3 Audits

Partners Mauritania must have an annual audit conducted in accordance with https://www.ecfr.gov/current/title-2/subtitle-A/chapter-II/part-200/subpart-F, for any fiscal year (January – December) in which Partners Mauritania expends a combined total of USD $1,000,000 or more in all Federal awards. Any donor can make a request and has the right to conduct an audit any time during the life of a project/program that the donor funds. Any annual audit must be conducted in coordination with Partners HQ. The terms of reference and the selection of the audit firm must be approved by the CFO at Partners HQ.

Partners HQ retains the right to conduct a financial review, require an audit, or otherwise ensure adequate accountability of organizations expending federal funds, regardless of the audit requirements above.

5. Inventory and Information Technology (IT) Controls

5.1 Equipment vs. Supplies

- **Equipment** means tangible personal property (including information technology systems) having a useful life of more than one year and a per-unit acquisition cost which equals or exceeds USD $5,000.
- **Supplies** means all tangible personal property other than those described in equipment (above). A computing device (e.g. computers, etc.) is a supply if the acquisition cost is less than USD $5,000, regardless of the length of its useful life.

5.1.1 Section 889 Compliance

All equipment and supplies purchased with U.S. Government funds must comply with Partners Mauritania Section 889 Policy. This policy states that no telecommunications or video surveillance equipment or services are sourced from prohibited Chinese companies (which include Huawei Technologies Company or ZTE Corporation or any subsidiary or affiliate of such entities), are utilized within Partners operations. Partners Mauritania is prohibited from using grant funds to:

1. Procure or obtain, extend, or renew a contract sourced from prohibited Chinese companies;
2. Enter into a contract (extend or renew a contract to procure) sourced from prohibited Chinese companies; or
3. Obtain the equipment, services or systems sourced from prohibited Chinese companies.

For all items that fall under "covered telecommunication equipment or services" the FO Director must assess these equipment or services and determine if they are sourced from prohibited companies listed in Section 889. If they are not sourced from prohibited companies, then they must signed the annual Certification of Covered Telecommunication Equipment or Services.

5.2 Inventory Control Requirements

A physical inventory of Partners Mauritania must be taken, and the results reconciled with Partners Mauritania's records at least once every year in January. The monetary value threshold for accounting of inventory items (e.g. furniture, equipment, and fixtures) in Mauritania is USD $100 per item and a useful life of 1 year or more.

The document "Inventory & Equipment Listing Report", found in Annex A must be submitted to Partners HQ annually no later than January 31st. The FO Finance Manager must certify and reconcile to the books the "Inventory & Equipment Listing Report" and approve it.

5.3 New User Setup for IT

As part of the onboarding process for new employees, FO HR will be responsible for getting employees setup with Partners emails and access to all necessary applications and accounts. For new users, prior to the start date of the employee, the FO HR will complete the New User Setup Template and email a copy to: poahr@partners.net, compliance@partners.net, and support@fsistrategies.com. The FO HR will then be provided with the login information for each of the platforms from the respective parties.

5.4 Issuance of Equipment

FO HR will be responsible for preparing all the necessary equipment for new hires and current employees. Upon receiving equipment, FO HR will send employees the Receipt of Equipment to ensure they understand the proper use and responsibility. The receipt of equipment will be retained in the employees personnel file. The FO HR will need to update the inventory file to make sure the assignment of the equipment is noted in the inventory tracker (see section 5.2 Inventory Control Requirements).

5.5 Use of Equipment

Partners Mauritania strives to ensure that its employees have modern and adequate equipment to make their work easier and more efficient. Any information technology (IT) equipment or supplies provided by Partners Mauritania must follow Partners Policy on IT Acceptable Use.

Responsibilities for the proper use of equipment:

- Handle the assigned equipment with care
- Monitor the optimal operation of assigned equipment

- If for any reason equipment from another source is to be used, the employee must ensure that it contains no viruses in order to preserve information on the organization's computer network.
- Report any fault or loss of equipment immediately
- Facilitate equipment access to technical and maintenance services.
- Use of recommended security settings on all work devices, as outlined under Section 5.6 IT Controls.

Partners Mauritania does not authorize the following activities:

- Installation of programs that do not have their corresponding license
- Use of copied programs that are not for the exclusive use of Partners Mauritania
- Installation and use of games, movies, etc.
- Use of programs that may affect the operation of Partners Mauritania network
- Introduction of elements that damage the equipment
- Block operating systems without notice
- Create passwords without sharing them with the FO Director and/or the FO Finance Manager, preventing access to working documents.
- Delete, without warning the information necessary for the execution of programs
- Any conduct with bad faith or destructive intent that interferes with the good work of other employees.

Use of Printing and Copying Equipment

The use of printers and photocopying machines (including equipment the belong to the office space) is exclusively reserved for work related to Partners Mauritania projects.

Use of the Internet and Chat Software

Use of the internet should be for work purposes only. Software programs for chatting within the organization such as Teams, Skype, WhatsApp, etc. are permitted for office use.

It is strictly forbidden to use chat software such as Facebook, Instagram, or other social media sites, unless for explicit Partners Mauritania work. Access to adult and similar web sites is strictly prohibited. Note that Partners Mauritania reserves the right to monitor all company equipment, emails, etc. to ensure its proper use.

Internet access is provided to Partners Mauritania's staff to conduct work-related tasks. All content that resides on or passes through Partners Mauritania's information technology resources, including computers, networks, and software, must conform to the guidelines described below. Participation in news groups, chat sessions, e-mail communications, and online discussion groups is permitted only if those communications are part of the user's job responsibilities. Employees may not create, view, download, or transmit any communications or information using company technology resources that may violate Partners Mauritania's harassment, equal employment, or any other policies. This prohibition includes sexually explicit or offensive messages, cartoons, or jokes, ethnic or religious slurs, racial epithets or any other statement or image that might be construed as harassment or disparagement on the basis of race, color, religion, sex, sexual orientation, gender or gender identity, national origin, age, disability, or any other status protected by law. Occasional personal use is acceptable as long as it does not impede normal job performance, incur direct costs, or compromise proprietary information and security.

Because employees who use Partners Mauritania's information technology resources may be perceived by others to represent Partners Mauritania, employees may not use the Internet for any purpose that could reflect negatively on Partners Mauritania or its employees. Employees or other authorized users may not post or download data protected by copyright or patent law without prior approval from the content owner. This may include, but is not limited to, e-mail, files, documents, graphic files, news group messages, bulletin board messages, Web pages, applications software, and operating system software. All software used to access the Internet must be part of the Partners Mauritania standard software suite or approved by information technology management.

Partners Mauritania's e-mail, telephone, mobile devices, voice mail, fax, Internet, and other technology resources are company property, and Partners Mauritania reserves the right to monitor and examine all communications over these resources at its discretion. Accordingly, employees should not have any expectation of privacy as to their Internet or technology resource usage and should not use these resources for information that they wish to keep private. These resources should be used primarily for Partners Mauritania -related business. Personal use of e-mail, voice mail, fax, and the Internet is acceptable, but should be done with good judgment and the recognition that these systems are provided to conduct business. Federal and state law and Partners Mauritania's policies on intellectual property, misuse of Partners Mauritania property, discrimination, harassment, sexual harassment, information and data security, and confidentiality apply to the use of all the company's technology resources. If a Partners Mauritania employee needs to access the e-mail account, electronic files, or other technology resources of another Partners Mauritania employee, a request and explanation for access needs should be submitted to the s Human Resources department, except in cases where documentation is needed for audits.

E-mail Policy

Partners Mauritania e-mail is provided to accomplish day-to-day business-related activities. Users with Partners Mauritania e-mail accounts are not authorized to use the e-mail system to send proprietary information via the Internet where information might be accessed by unintended recipients. Employees' e-mail accounts may not be used to conduct personal business; for political lobbying; or to send intimidating or harassing e-mails, chain letters, viruses, or spam. They also may not be used to improperly distribute copyright-protected work, unsolicited messages, or personal messages to a large group. E-mail users must not state or give the impression that the user is representing or making statements on behalf of Partners Mauritania unless the user is authorized to do so. Partners Mauritania employees may make incidental personal use of e-mail, provided that it does not interfere with their work duties, has no more than a minimal effect on the e-mail system, and is consistent with Partners Mauritania' policies

Use of Audio Equipment

The use of radio, tape recorder or CDs is not prohibited. However, employees must refrain from doing so in places where their use may interfere with the normal development of their employees' work. In any case, we ask that all employees use headphones.

USB Drives

USB drives present one of the most well-known, but least mitigated security threats in the everyday digital landscape. USB can be infected with malware which can be uploaded on computers directly and they can be vehicles of data theft. USB drives also tend to get lost easily, potentially letting sensitive information out.

Partners Mauritania staff should **never** use USBs or external drives that were not purchased by Partners to save work related files or on devices used for work purposes. USBs can be infected with malware which could grant external actors' access to internal computer hardware and files. This includes borrowed, gifted, or found USBs.

For Partners Mauritania staff, usage of an encrypted USB drive is a requirement. Using encrypted USBs largely mitigates the risk of data loss through theft of misplacement of the drive. Encrypted drives will be password protected to prevent forced entry. Whenever possible, American-made USBs should be used. Partners Mauritania staff should avoid using the same USBs for work and personal reasons and avoid using it across work and personal devices.

Network Data Privacy Policy

Partners Mauritania owns and operates its network for business, administrative, and research purposes. To maintain the integrity and availability of network operations, Partners Mauritania may intentionally or inadvertently expose information resources stored on networked machines or transmitted through the network in the following situations:

- Network performance monitoring or troubleshooting
- Moving data through the network via automated store-and-forward systems
- Copying, archiving, or otherwise preserving portions of messages transmitted over the network in the course of routine network maintenance activities

In the event of recognized network security threats, Partners Mauritania reserves the right to investigate and remediate possible network security threats, including by means of capture, logging, and examination of files, communications, and other traffic and transmissions over or on the network. All data entered, created, received, stored, or transmitted through Partners

Mauritania's systems belongs to the firm and may not be used for purposes unrelated to company business.

5.6 IT Controls

Password protocols

All passwords must follow Partners Password Protection Policy. To ensure accounts are secure and protected against hackers and breaches, a strong password creation protocol must be followed.

- Never use sequential numbers or letters or include any personal information such as names or dates of birth.
- Passwords should not be shorter than 14 characters.
- Use a combination of upper-case and lower-case letters, numbers, and symbols.
- Avoid common substitutions of numbers or symbols for letters. For example, avoiding using D00R8377 in place for DOORBELL with no additional words, symbols, or numbers, makes these combinations easy to hack.
- Random character placement (P*g6Hdk@28cD&q!) and random word combinations (Carmine*Flor9Jupiter&6) are effective. Use proper nouns, names of local businesses, historical figures, any words you know in another language, etc. Adding capitalization, numbers, and symbols can strengthen password security.
- Don't use predictable combinations of sequential letters (abcde), numbers (56789), or keyboard paths (qwerty).
- Never reuse passwords.

The best practice for storing secure passwords is using password management applications like LastPass. It creates strong passwords that are difficult to hack and keeps track of those passwords, so you don't have to remember them. The easiest way to use LastPass is to just use the internet as you normally do and save your passwords as you log onto each new site.

When a site is visited with a login page, a LastPass icon will appear after the username and password is entered. Click the LastPass icon inside the password field, then click "Save credentials for this site." The LastPass account will gradually fill with all the saved passwords and login information. When the sites are revisited, LastPass can automatically enter the username and password for you.

Under the LastPass Security Dashboard, LastPass can score the security level of your passwords and suggest new passwords for you using the password generator. LastPass can give you an overall security rating and alert you if your email accounts have been breached through their Dark Web Monitoring option.

DuckDuckGo

DuckDuckGo is known as a "private" search engine because it doesn't track or record any personal Internet-related data about its users. This means that DuckDuckGo doesn't collect information on a computer's IP address, web browser specifications, or search history. DuckDuckGo also has features that block websites from knowing how you found them, so they can't use this information to profile you and show you privacy-invasive targeted advertising. DuckDuckGo also will automatically pull up the encrypted (HTTPS) version of a site rather than the unencrypted version.

DuckDuckGo can be used directly as a search engine like Google or added as an extension into web browsers. The extension adds additional features including blocking hidden trackers detected on visited sites and take you to encrypted versions of sites when possible. These private browsing features require extra permissions, though work solely on your local device. DuckDuckGo does not collect or share any personal browsing information as per our privacy policy.

You can use a secure version of the website that makes your activities difficult to track and interpret. You can also redirect your search request so that other websites can't see your search terms, or even modify your search request so that your search terms aren't visible to any websites at all.

Disk Encryption

Full disk encryption is a data protection method, which transforms information stored on disk drives into encrypted files that can be only opened by people or systems who have the necessary access keys. Full disk encryption protects the entire computer hardware and all files on the drive against unauthorized access, in contrast to file-level encryption which protects individual archives.

If a laptop is ever lost, stolen, or decommissioned inappropriately, the odds are that the data will remain safe even then, because encrypted drives are extremely difficult to access without knowing the decryption key. This is not the case with unprotected drives, to which the attacker may gain access, simply by attaching them to another computer.

Windows 10 has a built-in disk encryption application called Bitlocker. All data on the protected drives is stored in an encrypted form while the computer is locked or turned off, but when the user unlocks the system with their Windows login credentials, everything works like in an unencrypted system. Any new files will be encrypted automatically.

General Phone Settings

Proper cellphone security will ensure documents are as protected as possible.

The following security preferences will help secure phone data. These preferences are not required, but strongly recommended.

- Don't automatically join wi-fi networks, you risk joining an unsecure network through which hackers can access your phone.
- Enable a complex PIN (see password protocol section for guidance) or fingerprint password on lock screen. Enabling FaceID is not recommended, due to concerns with tracking facial recognition data. If staff member prefers to use FaceID and enables it on the device, be advised that in security situations where a person tries to enter a phone by force, the phone will not unlock if the user avoids looking directly into the camera. FaceID will only unlock if the face is in a neutral expression and looking directly ahead.
- Disable GPS location tracking from photos and avoid enabling it on as many application as possible. This will ensure that if an application is compromised, there is less likelihood your sensitive information will be leaked.
- Enable “Find my Phone” on iPhone or Android. Find my Phone includes a remote phone wipe setting that will allow users to clear the contents of their phones if the phone is lost or stolen. This will return the phone to factory mode, clearing all the data or contents of the phone.

- Keep phone software and applications regularly updated to ensure devices have the latest security patches installed.
- Disable load remote images on emails. Hackers can hide malware within photos in emails, which are downloaded automatically if this setting is not disabled.
- Enable USB restriction mode to ensure malware cannot be installed through USB ports.
- Download LastPass application to manage passwords.
- Enable multi-factor authentication on as many applications as possible.

5.7 Artificial Intelligence Usage

Partners Mauritania recognizes the importance of generative artificial intelligence (AI), such as ChatGPT, Bard, Bing, or other similar tools in the workplace, however, has created the Artificial Intelligence Usage Policy to ensure that its use is compliant. All employees must follow the protocols and guidance set in the policy. The policy is designed to ensure that the use of AI is ethical, lawful, and in compliance with all applicable laws, regulations, and Partners' policies.

Employees are authorized to use AI for work-related purposes. This includes tasks such as generating text or content for reports, data analysis, emails, presentations, images, and communications. If using AI, staff commit to using AI in a manner that avoids causing harm to individuals, communities, or society as a whole or in a way that may discriminate, perpetuate biases, or violate legal or ethical standards. Furthermore, commit to using AI in a way that avoids plagiarism and proper cites resources used. If there are any questions on the use of AI, employees should contact the FO Director.

6. Cash Management

6.1 Petty Cash

This is an imprest system of cash control which is used for day-to-day expenditure of items less than USD $25.00 or its Mauritanian ouguiya equivalent. The fixed float amount of petty cash is USD $300.00 or its Mauritanian ouguiya equivalent. Unless otherwise delegated, the FO Finance Manager is responsible for the petty cash system, including disbursement and reconciliation.

A petty cash log is to be maintained by the FO Finance Manager. The date and amount of petty cash taken must be recorded on the petty cash log. The FO Finance Manager will complete the details of the expenditure and track all receipts associated with petty cash. At the end of each month, a petty cash count should be completed to confirm the balance; a template is provided in Annex B.

When the balance of the petty cash reaches USD $50.00, the FO Finance Manager will reconcile the petty cash, ensuring that all receipts and vouchers are accounted for, and replace funds by a wire transfer or drawing a check made out to petty cash. When petty cash is reimbursed, the transaction is recorded in the accounting software allocating each item to the appropriate line item. The FO Director is responsible for review and approval of the petty cash reconciliation. The FO Director is also responsible for surprise cash count to be done no less than quarterly and at the end of fiscal year closure.

6.2 Exchange Rates

To report all revenues and expenditures including Replicon and payroll, Partners Mauritania uses the prior month's average exchange rate rounded two decimal places. The Bank of Mauritania or OANDA proof of exchange rate must be sent on the 1st of the month to compliance@partners.net in order to update Replicon. A copy of the rate must also be submitted monthly to Partners HQ with the field expenditure reports.

6.3 Bank Accounts

Partners Mauritania is authorized to set up one bank accounts per project. If any additional bank accounts are required, the FO Director must request permission and approval in writing form to the Chief Financial Officer. The goal is to keep Partners Mauritania's bank accounts to the minimum number needed.

The bank accounts should only be used for the purpose of the project and in the name of Partners Mauritania. Transactions related to other projects will not be permitted. The bank account should have a HQ staff member and a minimum of two signatories, the FO Finance Manager, and the FO Director. The FO Director will approve all the payments and sign all checks and wire transfers.

For payments by wire transfers and checks in any amount, the FO Finance Manager must sign as a second signatory.

Information on any new bank account must be sent to Partners HQ and provide the following information: the name on the account, account number, bank name, type of account, list of signatories on the account and current balance. Changes to the signatories on the account must be approved by the FO Director and notification should be provided to Partners HQ. Upon hiring or termination of employee with signatory power, the bank account signatories must be updated accordingly.

The FO Director must authorize any registration or edit of bank accounts from supplier, vendors, grantees, subcontractors, and or employees in the bank platform.

6.3.1 Monthly Bank Account Reconciliations

The monthly bank statements will be used to reconcile the accounts each month. Each bank account (the Mauritanian ouguiyas) will have a separate general ledger account, differentiated by sub-code.

At the end of each month Partners Mauritania will receive the monthly bank statement from the bank for each account. Note an official statement must be obtained from the bank for each account, regardless of whether any transactions took place during the month. If the reconciliation is done in Mauritanian ouguiyas, then a proof of exchange rate to USD from the Bank of Mauritania must be provided.

The purpose of the monthly bank reconciliation is to reconcile the balance shown on the bank statement with the ending balance on the general ledger journal. Each transaction (check, wire, advance, etc.) must be recorded separately. A lump sum total will not be permissible. All bank reconciliations must be done on the field report expenditure template and reconciliation, found in Annex C.

The reconciliation tab should not be used to restate the monthly bank activity but should be used to show any outstanding transactions that occurred during the month but have not yet been reflected on the bank statement. The prior month's bank reconciliation must be checked for any items that remain outstanding. Transactions that remain uncleared from previous months should be promptly researched with the bank or the payee. The tab for financial field report of general ledger activities should show all financial transaction occurring in the month.

Once the full bank reconciliation is completed, the FO Finance Manager will be responsible for submitting to Partners HQ the following: bank reconciliation, copy of the bank statement, full financial field report (general ledger report), and copies of all receipts by the 10th of each month for the prior month's expenditures as indicated in 3.4 Financial Reporting.

6.4 Cash Flow Advances

The Partners Mauritania may request up to 30 days of cash needs based on the monthly cash flow projection. Cash may be drawn once a month on the first of the month. A cash flow request must be used for all cash requests to Partners HQ, the template is provided in Annex D. Funding requests should be sent to Partners HQ by the 20th of the month. Partners Mauritania should plan enough lead time when requesting cash to take into account the wire processing time by the bank and Partners HQ. Cash flow advances must be cleared monthly through submission of a financial report that is submitted to Partners HQ in accordance with 3.4 Financial Reporting. Often times the cash flow advances will not clear entirely each month, and therefore any leftover funds should be taken into consideration as cash on hand when determining the next month's cash flow request. If financial reports are not submitted on time, additional advances to Partners Mauritania may be held at the discretion of the CFO.

6.4.1 Excess Cash on Hand

Excess funds are defined as cash in excess of 60 days for Mauritania operations. As having an excess of funds in the Mauritania can pose a risk, Partners Mauritania should consult with Partners HQ to determine the best course of action to rectify the situation.

6.5 General Cash Handling Policies

Below are the general guidelines that Partners Mauritania is required to meet in order to ensure compliance and safeguarding of cash.

6.5.1 Use of Safes

Partners Mauritania is required to use a fireproof safe for the storage of office cash. Access to the safe should be strictly controlled. A set of keys should be kept by the FO Director only.

6.5.2 Minimizing Cash Transactions

Given the inherent risks associated with cash handling, Partners Mauritania must always use other means of payment whenever possible, such as a bank debit card, checks or wire transfers and avoid use of petty cash and advances. The maximum cash payment that is permissible is USD $25. Transactions over this threshold must be made with another payment method such as a bank debit card, check, or wire transfer.

6.5.3 Evidence of Receipt by Payee

To prevent duplicate payments or claims of discrepancies, all cash payments must be documented by evidence of receipt by the payee. This means that the recipient of the payment must sign that the cash was received in total at the time of payment. A numbered receipt should be prepared in duplicate indicating the amount and date and should be signed by the recipient. One copy should be given to the payee and one copy should be retained and included with the voucher documentation.

6.5.4 Periodic Cash Counts – Petty Cash Certification

Cash balances should be physically counted periodically to ensure that cash journal/receipts balances match the actual cash on hand. These cash counts should be done in accordance with Section 6.1 Petty Cash. Petty cash certifications should conform to the following general guidelines:

- Cash counts should be done discreetly, out of general view and should be undisturbed.
- Counts should be performed by a minimum of two people. One should serve as the counter and the other as a witness of the count. A template of the Petty Cash Certification can be found in Annex E which must be completed each time.
- Cash counts should be performed each month and at random. Note that Partners HQ reserves the right to request a Petty Cash Certification at any time.
- Any overages or underages must be recorded in the cash journal at month end in order to reconcile with the final count. Discrepancies may not be held over to future periods. The cause for any overages or underages must be further researched and appropriate action taken to ensure that it does not happen in the future. Partners HQ must be notified of any discrepancies.

7. Partners Mauritania General Policies

7.1 Individuals and Conduct Covered

These general policies apply to all applicants and employees, whether related to conduct engaged in by fellow employees or by someone not directly connected to Partners (e.g., an outside vendor, consultant, or customer).

Conduct prohibited by these policies is unacceptable in the workplace and in any work-related setting outside the workplace, such as during business trips, business meetings, and business-related social events.

7.2 Anti-Corruption and Anti-Bribery Policy

Partners Mauritania and its affiliates must have a zero-tolerance against bribery and corruption. The objective of the anti-corruption policy is to ensure that appropriate anti-corruption and bribery procedures are in place to avoid any violations of relevant laws and regulations. This policy applies to all officers, directors, shareholders, employees and appointed third party representatives. For a copy of the full policy, please reference the Partners General Field Office Manual.

Partners Mauritania is commitment to preventing corruption and bribery in all aspects of our business operations. It applies to all employees and representatives acting on behalf of Partners. This policy is designed to ensure compliance with anti-corruption laws and regulations, including the Foreign Corrupt Practices Act (FCPA), the UK Bribery Act, and other applicable laws.

Partners strictly prohibits any form of corruption, bribery, or unethical behavior in its business dealings, and all business activities and interactions must be conducted with honesty, transparency, and integrity. No representative of Partners is permitted to offer, promise, give, request, or receive any improper payment, benefit, or advantage to or from any person, including government officials, to gain an unfair business advantage. The following requirements apply:

- Gifts, Entertainment, Money, and Hospitality: Employee and representatives are prohibited from soliciting or accepting money, loans, credits, entertainment, favors, services, gifts, or other incentives, regardless of their amount, that could induce, or be perceived to induce, the individual to take any action that is other than independent or impartial.

  - If refusal of honor or gift will cause embarrassment to the giver or Partners, then the representative should have the CFO accept on behalf of the organization.
  - While gifts, entertainment, and hospitality offered or received in the course of business interactions are not generally permitted, if the CFO chooses to accept on behalf of the organization, they must be transparent, reasonable, and in compliance with U.S. laws.

- Donation and Contributions: If donations or contributions are made on behalf of Partners, they must be made transparently, without any intent to improperly influence any decision or action.
- Third-Party Vetting: Before engaging with third parties, Partners will conduct thorough due diligence on Visual Compliance to assess their integrity and compliance with anti-corruption and anti-bribery standards. All Partners contracts and agreements with third parties will include anti-corruption and anti-bribery clauses.

7.3 Prevention of Money Laundering & Financing of Terrorism

Partners Mauritania is committed to preventing money laundering and the financing of terrorism in all aspects of our business operations. The Policy applies to all employees and representatives acting on behalf of Partners. The goal is to ensure compliance with relevant anti-money laundering and counter-financing of terrorism laws, regulations, and international standards.

7.3.1 Definitions

- Money Laundering: The process of making illegally obtained proceeds appear legitimate by disguising their origins.
- Financing of Terrorism: Providing funds or financial support, directly or indirectly, to individuals, groups, or entities engaged in terrorist activities.

7.3.2 Due Diligence

To ensure that Partners complies with this policy, the following actions will be implemented for all vendors:

- Vendor Vetting: All vendors will be checked in Visual Compliance annually.
- Risk Assessments: For any subawards or subcontracts over $100,000 USD, Partners will conduct initial and annual risk assessments to identify and evaluate money laundering and terrorism financing risks associated with its business activities, clients, and transactions. Full information on the Risk Assessment policy is found on SharePoint.
- Customer & Vendor Identification and Verification: For all home office payments on Bill.com, customers and vendors will have to register themselves and following Bill.com's procedures for identifying and verifying themselves and their bank information prior to payment, including providing tax identification information.

7.3.3 Suspicious Activity Reporting

Employees and representatives are required to promptly report to compliance@partners.net any transactions or activities that appear suspicious or unusual and could be indicative of money laundering or financing of terrorism. The Compliance Team will be responsible for further investigation of the situation and/or transaction. If applicable, any violations or concerns will be reported to the appropriate government agencies as required by law.

7.4 Anti-Discrimination

Partners Mauritania is committed to a work environment in which all individuals are treated with respect and dignity. Each individual has the right to work in a professional atmosphere that promotes equal employment opportunities and prohibits unlawful discriminatory practices, including harassment. Therefore, Partners expects that all relationships among persons in the office will be business-like and free of explicit bias, prejudice, and harassment.

Partners has developed this policy to ensure that all its employees can work in an environment free from unlawful harassment, discrimination, and retaliation. Partners will make every reasonable effort to ensure that all employees are familiar with these policies and are aware that any complaint in violation of such policies will be investigated and resolved appropriately.

Under Article 395 of the Labor Code, discrimination includes any distinction, exclusion or preference based on race, color, sex, gender, religion, political opinion/affiliation, national ancestry, social origin, nationality, age, disability, migratory condition, health, sexual preferences, and social rank, that results in destroying or altering the equality of chances or treatment in employments or occupation. Partners expects that all staff will respect and not discriminate against others on the basis of appearance (i.e. hair and dress code), language abilities (i.e. accents or perceived accents), and age (i.e. biases based on stereotypes of generational differences). Article 395 of the Mauritanian Labor Code provides that all workers are equal before the law and benefit from the same protection and guarantees. All employees should be treated equally with due consideration and avoid mistreatment either through word or conduct.

Partners Mauritania promotes diversity and equal opportunity in the workplace in accordance with all applicable local laws. If you believe that you have been the victim of any type of discrimination or are aware of such conduct, you must promptly notify your supervisor, FO Director, HR Unit or Partners HQ. An employee who has made a report of questionable conduct and who subsequently believes he or she has been subjected to retaliation of any kind by any Partners Mauritania or Partners HQ employee is directed to immediately report it to the FO Director or the appropriate party at Partners HQ. Anyone found to be engaging in any type of unlawful discrimination will be subject to disciplinary action, up to and including termination of employment.

All Partners Mauritania employees have the responsibility to maintain honesty, integrity, and efficiency, and to reassure their conduct and commitment to the highest ethical standards. It is important to emphasize that all employees are important. The development and success of Partners Mauritania depends on the interest and creativity of its employees in the work. They must maintain good relationships and treat others kindly, creating a harmonious work environment and excellent employee relationships including equality of opportunity without discrimination or harassment.

An employee who has made a report of questionable conduct and who subsequently believes he or she has been subjected to retaliation of any kind by any Partners HQ employee is directed to immediately report it to the FO Director and, if applicable, Partners HQ.

7.4.1 Equal Employment Opportunity

It is the policy of Partners to ensure equal employment opportunity without discrimination or harassment on the basis of actual or perceived race (including hairstyle/texture), creed, color, sex (including pregnancy, childbirth, and other pregnancy-related conditions), religion, national origin, citizenship, sexual orientation, personal appearance, gender identity or expression, physical or mental handicap or disability, age (18 or over), marital status (including parenthood), family responsibilities, matriculation, genetic information, political affiliation, veteran status, or any other areas of discrimination prohibited. This policy applies to all terms, conditions, and privileges of employment including hiring, training and staff development, promotion, and compensation.

7.5 Accommodation for Persons with Disabilities and Interactive Dialogue

As part of its commitment to a diverse workforce, Partners Mauritania does not discriminate in its hiring or employment practices against qualified individuals with disabilities who can perform the essential job functions with or without reasonable accommodation. Partners is committed to complying with applicable federal, state, and local laws governing reasonable accommodations of individuals, including, but not limited to, the Americans with Disabilities Act (ADA). To that end, Partners will make a reasonable accommodation to applicants and employees who have requested an accommodation or for whom Partners has noticed may require such an accommodation, without regard to any protected classifications, related to an individual's:

- Disability, meaning any physical, medical, mental, or psychological impairment, or a history or record of such impairment;
- Sincerely held religious beliefs and practices;
- Needs as a victim of domestic violence, sex offenses, or stalking;
- Needs related to pregnancy, childbirth, or related medical conditions; and/or
- Any other reason required by applicable law unless the accommodation would impose an undue hardship on the operation of our business.

Furthermore, Partners commits to the following hiring standards relating to accommodation:

- The application process is used solely to determine whether a candidate's qualifications and abilities reasonably match job requirements. Therefore, applicants are not queried about their physical condition or medical history (except where it appears that essential job functions could not be performed without accommodations, in which case only appropriate inquiries relating to functional limitations are made).

- Partners will make reasonable accommodations to enable a qualified individual with a disability to perform essential job functions, unless doing so will create an undue hardship.

Any individual who would like to request an accommodation based on any of the reasons set forth above should contact the HR Department. Accommodation requests can be made in writing via email. To the extent possible, Partners will keep confidential all communications regarding requests for reasonable accommodations and all circumstances surrounding the underlying reason for needing an accommodation.

After receiving a request for an accommodation or learning indirectly that the employee may require such an accommodation, Partners will engage in an interactive dialogue with the employee. Even if employee has not formally requested an accommodation, Partners may initiate an interactive dialogue under certain circumstances, such as when Partners has knowledge that the employee's performance at work has been negatively affected and a reasonable basis to believe that the issue is related to any of the protected classifications set forth above. In the event Partners initiates an interactive dialogue with an employee, it should not be construed as Partners' belief an individual requires an accommodation, but will serve as an invitation for the employee to share any information, desires to share, or to request an accommodation. The interactive dialogue may take place in person, by telephone, or by electronic means. As part of the interactive dialogue, Partners will communicate openly and in good faith with the employee in a timely manner to determine whether and how Partners may be able to provide a reasonable accommodation.

7.6 Sexual Harassment

The Partners Mauritania prohibits all forms of sexual harassment. Sexual harassment refers to any physical behavior, verbal or not, of sexual nature, affecting women and men's dignity, and deemed inappropriate, unreasonable, and offensive for the worker. For the purposes of this policy, "sexual harassment" is defined, as in the Equal Employment Opportunity Commission Guidelines, as unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature when, for example:

a) submission to such conduct is made either explicitly or implicitly a term or condition of an individual's employment,

b) submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual, or
c) such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile, or offensive working environment.

Title VII of the Civil Rights Act of 1964 recognizes two types of sexual harassment:

a) quid pro quo and
b) hostile work environment.

Sexual harassment may include a range of subtle and not-so-subtle behaviors and may involve individuals of the same or different gender. Depending on the circumstances, these behaviors may include unwanted sexual advances or requests for sexual favors; sexual jokes and innuendo; verbal abuse of a sexual nature; commentary about an individual's body, sexual prowess, or sexual deficiencies; leering, whistling, or touching; insulting or obscene comments or gestures; display in the workplace of sexually suggestive objects or pictures; and other physical, verbal, or visual conduct of a sexual nature.

Sexual harassment, a form of violence in which, although there is no subordination, there is an abusive exercise of power that leads to a state of defenselessness and risk for the victim, regardless of whether it takes place in one or several events.

The evidence of sexual harassment in the workplace is established as long as the workers perceive that their reaction to such behavior:

1. Is a condition to keep the job and/or;
2. Will have an impact on decisions concerning their job and/or;
3. Will have an impact on their performance.

Sexual harassment can also come from a behavior that creates a hostile, threatening and humiliating environment. It is forbidden for the employer to take actions against the worker that may be considered sexual harassment, or to support or not intervene in the event that it is carried out by its representatives. Partners Mauritania is committed to providing a work environment free of any form of verbal or physical discrimination and abuse on the basis of race, age, sex, religion, place of origin, physical disability, sexual orientation, or for any other purpose. It is Partners Mauritania policy to prohibit harassment between employees. The purpose of this philosophy is not to regulate the moral behavior of employees, but rather to ensure professional behavior at work. Employee harassment refers to the use of epithets, nicknames, threats, derogatory comments, offensive jokes, sexual insinuations, requests for sexual favors, and any other type of verbal or similar physical contact. Any employee who considers that he is subject to discrimination and harassment will have to report this situation to his immediate supervisor or to Partners HQ so that the corresponding investigation can be carried out and that the measures that the case deserves to be taken.

7.7 Anti-Harassment

Partners intends to provide a work environment that is pleasant, healthful, comfortable, and free from intimidation, hostility, or other offenses which might interfere with work performance. Harassment of any sort – verbal, physical, or environmental – is prohibited by this policy and will not be tolerated. Moreover, Partners will not tolerate harassment by supervisors, employees, volunteers, or other non-employees who conduct business with Partners.

Harassment on the basis of any other protected characteristic is also strictly prohibited. Under this policy, harassment is verbal, written. or physical conduct that denigrates or shows hostility or aversion toward an individual because of any of the protected classes listed above in 7.4.1. Equal Employment Opportunity, or that of his or her relatives, friends, or associates, and that:

a) has the purpose or effect of creating an intimidating, hostile, or offensive work environment,
b) has the purpose or effect of unreasonably interfering with an individual's work performance, or
c) otherwise adversely affects an individual's employment opportunities.

Harassing conduct includes epithets, slurs, or negative stereotyping; threatening, intimidating, or hostile acts; denigrating jokes; and written or graphic material that denigrates or shows hostility or aversion toward an individual or group that is placed on walls or elsewhere on the employer's premises or circulated in the workplace, on company time or using company equipment by e-mail, phone (including voice messages), text messages, social networking sites, or other means. This may include but is not limited to:

- Unwelcome sexual flirtations, touching, advances, or propositions
- Verbal abuse of a sexual nature
- Graphic or sexually suggestive comments
- Sexually degrading words to describe an individual
- The display, storage, or transmission of sexually suggestive objects or pictures

Commented [KM2]: I believe this section is supposed to be more about general harassment, whereas the previous section is specifically about sexual harassment. I suggest this go above and we come up with other examples for general harassment.

Partners will not tolerate verbal or physical conduct which harasses, disrupts, or interferes with another's work performance or which creates an intimidating, offensive, or hostile work environment. To avoid circumstances where harassment becomes severe or pervasive, employees should report all incidents of harassment immediately. Reference 7.10 Harassment/Bullying/Violence Compliant Procedure.

Each staff member is responsible for ensuring that the workplace is free of sexual harassment. No supervisor or other employee shall threaten or insinuate, either explicitly or implicitly, that an employee's refusal to submit to sexual advances will adversely affect the staff member's employment, wages, advancement, assigned duties, or any other condition of employment or career development.

Commented [KM3]: I believe this section is supposed to be more about general harassment, whereas the previous section is specifically about sexual harassment. I suggest this go above and we put here instead: "Each staff member is responsible for ensuring that the workplace is free of harassment."

7.8 Workplace Bullying

Partners Mauritania defines bullying as "repeated inappropriate behavior, either direct or indirect, whether verbal, physical or otherwise, conducted by one or more persons against another or others, at the place of work and/or in the course of employment." Such behavior violates the company Code of Ethics, which clearly states that all employees will be treated with dignity and respect.

Bullying may be intentional or unintentional. However, it must be noted that where an allegation of bullying is made, the intention of the alleged bully is irrelevant and will not be given consideration when meting out discipline. As in sexual harassment, it is the effect of the behavior upon the individual that is important. Partners Mauritania considers the following types of behavior examples of bullying:

- *Verbal bullying*: Slandering, ridiculing, or maligning a person or his/her family; persistent name calling that is hurtful, insulting or humiliating; using a person as the butt of jokes; abusive and offensive remarks.
- *Physical bullying*: Pushing, shoving, kicking, poking, tripping, assault, or threat of physical assault; damage to a person's work area or property.
- *Gesture bullying*: Nonverbal threatening gestures or glances that convey threatening messages.
- *Exclusion*: Socially or physically excluding or disregarding a person in work-related activities.

Any violation of this policy may lead to disciplinary action, up to, and including termination. Additionally, employees have a "duty to warn" their supervisors, FO Director or Partners HQ of any suspicious workplace activity, situations or incidents that appear problematic. This includes, but is not limited to, threats, or acts of violence, aggressive behavior, and threatening comments or remarks. While Partners Mauritania cannot guarantee the safety of employees, all reports will be promptly and thoroughly investigated.

7.9 Workplace Violence Prevention Policy

To protect the welfare of our staff from instances of violence in the workplace, Partners Mauritania has implemented a violence prevention policy. Partners Mauritania strongly believes that all employees should be treated with dignity and respect and that each employee is responsible for her or his actions and consequences. Thus, acts of violence and threats of violence will not be tolerated. Partners has adopted the following guidelines to deal with intimidation, harassment, or other threats of or actual violence that may occur onsite or offsite during work-related activities. This policy applies to all employees.

7.9.1 Prohibited Conduct

All employees, customers, vendors, and business associates should be treated with courtesy and respect at all times. Employees are expected to refrain from fighting, "horseplay," or other conduct that may be dangerous to others. Conduct that threatens, intimidates, or coerces another employee, customer, vendor, or business associate will not be tolerated. Partners resources may not be used to threaten, stalk, or harass anyone at or outside the workplace. Partners treats threats coming from an abusive personal relationship as it does other forms of violence. Carrying weapons, including, but not limited to, firearms and knives on company or client premises including while on Partners travel is strictly prohibited.

Indirect or direct threats of violence, incidents of actual violence, and suspicious individuals or activities should be reported as soon as possible to a supervisor, HR, or the Executive Leadership Team. When reporting a threat or incident of violence, the employee should be as specific and detailed as possible. Employees should not place themselves in peril, nor should they attempt to intercede during an incident. Additionally, employees have a "duty to warn" their supervisors, HR, or the FO Director of suspicious workplace activity, situations, or incidents that appear problematic.

7.9.2 Investigations and Enforcement

Partners will promptly and thoroughly investigate all reports of threats of violence or incidents of actual violence and of suspicious individuals or activities. The identity of the individual making a report will be protected as much as possible. Partners will not retaliate against employees making good-faith reports of violence, threats, or suspicious individuals or activities. To maintain workplace safety and the integrity of its investigation, Partners may suspend employees suspected of workplace violence or threats of violence, either with or without pay, pending investigation. Employees should promptly inform the HR department of any protective or restraining order that they have obtained that lists the workplace as a protected area.

Anyone found to be responsible for threats of or actual violence or other conduct that is in violation of these guidelines will be subject to prompt disciplinary action up to and including termination.

Partners encourages employees to bring their disputes to the attention of their supervisors or the HR department before the situation escalates. Partners will not discipline employees for raising such concerns.

7.10 Harassment/Bullying/Violence Compliant Procedure

It is the policy of Partners to provide employees with the opportunity to bring work-related problems and concerns to the attention of management and to resolve such problems fairly and promptly. Individuals who believe they have been the victims of conduct prohibited by this policy, believe they have witnessed such conduct, or feel that they have been treated unfairly or inequitably in regard to a condition or action affecting employment should discuss their concerns with their immediate supervisor, HR, or Foster Thomas at bbulger@fosterthomas.com and complete the Complaint Form.

Alternatively, or in addition to the confidential hotline, you may report harassment to your supervisor, FO Director, or Partners HQ, as you feel comfortable. Such complaints must be recorded in writing, either by the complainant or by the supervisor/FO Director to whom it is reported. A Complaint Form is available in Annex F. Any supervisor or FO Director who becomes aware of possible harassment or retaliation must immediately advise a member of Partners HQ so it can be investigated in a timely and confidential manner.

Partners encourages the prompt reporting of complaints or concerns so that rapid and constructive action can be taken before relationships become irreparably strained. Therefore, while no fixed reporting period has been established, early reporting and intervention have proven to be the most effective method of resolving actual or perceived incidents of harassment.

Any reported allegations of harassment, discrimination, or retaliation will be investigated promptly. The investigation may include individual interviews with the parties involved and, where necessary, with individuals who may have observed the alleged conduct or may have other relevant knowledge. Partners will maintain confidentiality throughout the investigatory process to the extent consistent with adequate investigation and appropriate corrective action.

Misconduct constituting harassment, discrimination, or retaliation will be dealt with appropriately. Responsive action may include, for example, training, referral to counseling or disciplinary action such as a warning, reprimand, withholding of a promotion or pay increase, reassignment, temporary suspension without pay, or termination, as Partners believes appropriate under the circumstances.

If a party to a complaint does not agree with its resolution, that party may appeal to Partners' President & CEO.

False and malicious complaints of harassment, discrimination, or retaliation (as opposed to complaints that, even if erroneous, are made in good faith) may be the subject of appropriate disciplinary action.

All harassment complaints will be promptly and thoroughly investigated, and each complaint will be handled as confidentially as possible under the circumstances. Complaints will be investigated impartially and if found to be truthful, Partners Mauritania will take immediate corrective action. Anyone found to have engaged in harassment will be subject to appropriate disciplinary action up to, and including, termination of employment.

7.10.1 Protection from Retaliation

Partners Mauritania prohibits retaliation against employees who legitimately exercise their rights under this policy or participate in an investigation. There is to be no interference, coercion, discrimination, reprisal, or retaliation against any employee for making a truthful, good-faith complaint or report of a violation. Retaliation against an individual for reporting harassment or discrimination or for participating in an investigation of a claim of harassment or discrimination is a serious violation of this policy and, like harassment or discrimination itself, will be subject to disciplinary action. Acts of retaliation should be reported immediately and will be promptly investigated and addressed.

Employees who believe they are being discriminated against as a result of having legitimately filed a complaint or having truthfully participated in an investigation should immediately notify their supervisor, FO Director, or Partners HQ.

7.11 Freedom of Association

Mauritanian law recognizes and protects freedom of association. Workers, without any distinction of any kind, have the right, without prior authorization, to form organizations of their choice, and affiliate to such organizations.

7.12 Anti-Forced Labor

In accordance with Article 5 of the Mauritanian Labor Code, Partners Mauritania prohibits all forced labor. Forced labor shall mean any work or service exacted from an individual under the threat of any penalty and for which the individual has not voluntarily offered himself. No citizen can be forced into forced labor except in the case of a legal conviction.

7.13 Gender Identity Policy

Partners does not discriminate in any way based on sex, sexual orientation, gender identity, or gender expression. This policy is designed to create a safe and productive workplace environment for all employees. This policy sets forth guidelines to address the needs of transgender and gender non-conforming employees and clarifies how the law should be implemented in situations where questions may arise about how to protect the legal rights or safety of such employees. Partners has developed its Gender Identity Policy which applies to all individuals when interacting with members of the Partners' staff or network. Please reference Annex G for the complete policy.

7.14 Sexual Exploitation and Abuse Prevention Policy

Partners has a no-tolerance policy toward sexual harassment, exploitation, and abuse (SEA). SEA occurs when a position of power (such as being a staff member of an NGO) is used for sexual purposes against a beneficiary or vulnerable member of the community. Employees must conduct themselves in a professional manner as representatives of the organization, consistent with the standards for U.N. employees in Section 3 of the U.N. Secretary General's Bulletin-Special Measures for Protection from Sexual Exploitation and Sexual Abuse (ST/SGB/2003/13l). Partners Sexual Exploitation and Abuse Policy applies to all individuals when interacting with program beneficiaries. Please reference Annex H for the complete policy.

7.15 Child Safeguarding Policy

Partners has a no-tolerance approach to child exploitation and/or abuse by any Partners Employees and Affiliates. Child Safeguarding is preventative actions to ensure that all children are protected from deliberate or unintentional acts that lead to the risk of or actual harm by Partners Employees and Affiliates who come into contact with children or impact them through our development interventions, humanitarian responses, and operations. Partners' Child Safeguarding Policy applies to all individuals when interacting with children both in the U.S. and abroad. Please reference Annex I for the complete policy.

7.16 Trafficking in Persons (TIP) Policy

Partners maintains a no-tolerance policy against TIP and will ensure risks associated with TIP are minimized in all operations. Employees and Affiliates must avoid and are prohibited from active engagement, complicity in, or benefiting from any practice that constitutes trafficking in persons. Please reference Annex J for the complete policy.

7.17 Conflict of Interest

The following Conflict of Interest Policy has been adopted by the Partners International Board of Directors. Each board member, officer, employee, volunteer, intern, and independent contractor of Partners must sign this statement annually to reflect the absence of any relationships or financial interests described in the policy or disclose any which do or may exist. A personal conflict of interest is a situation in which an employee, or entity representative has a financial interest, personal activity or relationship that could impair the employee's ability to act impartially when performing activities on behalf of Partners Mauritania.

For this policy, the definition of "personal relationship" is as follows: grandparents, parents, stepparents, in-laws, spouse, spouse's family, sibling, sibling's spouses, sibling's in-laws, children, stepchildren, ex-spouse, aunts, uncles, cousins, nieces, nephews, and other close friends.

Partners seeks to avoid any potential conflicts of interest created by close personal relationships between employees and vendors, contractors, beneficiaries, grantees, services providers, or any other organizations/persons working or planning to work with Partners. Individuals are prohibited from providing assistance or services through any Partners program, such as materials, money, or other goods, services, or resources to anyone with whom they have a close personal relationship. Employees are also prohibited from supervising and participating either directly or indirectly in the hiring, promotion, or evaluation of any individual with whom they have a close personal relationship.

Additionally, all employees, and representatives of Partners Mauritania must neither solicit nor accept gratuities, favors, or anything of monetary value from sub-recipients or prospective sub-recipients. Any outside business dealings of Partners Mauritania's employees must be legal and not conflict in any manner with Partners Mauritania's operations. Outside business dealings include, but are not limited to, any investments, loans, employment, or business ownership by Partners Mauritania's employees.

Furthermore, contracts or transactions (i) between Partners and one or more of its board members, officers, or employees, or (ii) between Partners and any corporation, partnership, association or other organization in which one or more of its board members, officers or employees are directors or officers, or have a financial interest, shall not be void or voidable solely for this reason, or solely because the board member, officer or employee is present at or participates in any meeting which authorizes the contract or transaction, or solely because his, her, or their votes are counted for such purpose, if:.

1. The material facts regarding the relationship or interest are disclosed or are known to Partners and/or the Board of Directors and in good faith authorized the contract or transaction by the affirmative votes of a majority of the disinterested board members or officers, even though the disinterested board members or officers may then become less than a quorum; or
2. The material facts regarding the relationship or interest are disclosed or are known to the Partners and/or Board of Directors and officers voting on the contract or transaction is specifically approved in good faith by a vote; or
3. The contract or transaction is fair to Partners as of the time it is authorized, approved, or ratified.

Common or interested Board members or officers may be counted in determining a quorum at any meeting which authorizes the contract or transaction, provided, however, that the interested person or persons shall be excluded from the room during the discussion of the contract or transaction in question and during the vote thereon.

Partners Mauritania requires that all potential conflicts of interest be reported in writing immediately to the FO Director, FO HR, or the Compliance Team at compliance@partners.net.

When informed of a close personal relationship in accordance with this policy, supervisor and/or the Compliance Team will recommend steps to eliminate any potential conflict of interest. In the case of a supervisor-subordinate close personal relationship, a reasonable effort will be made to reassign one of the employees to another position.

Failure to disclose the existence of a close personal relationship in accordance with this policy may be cause for termination. Any employee who believes this policy is being violated should report the concern to their supervisor, the FO Director, FO HR, or the Compliance Team at compliance@partners.net.

7.18 Consultancies & Conflict of Interest Outside of Partners

Partners Mauritania respects the right of employees to engage in private activities and personal business outside of their employment with the company, providing such activities do not conflict with the Partners' interests. An outside consultancy is any work that is performed outside of the staff member's regular employment for which the staff member receives compensation, whether in the form of money, goods, or services.

The following are guidelines for outside consultancies to ensure that staff members do not engage in activities that create conflicts of interest with their employment:

1. **Notification**: Staff members must notify their supervisor before engaging in any outside consultancy work. The notification must include the nature of the work, and the estimated time commitment.
2. **Approval**: Staff members may engage in outside consultancy work only with the approval of their supervisor. Approval will be based on a determination that the work will not interfere with the staff member's employment obligations and will not create a conflict of interest.
3. **Disclosure**: Staff members must disclose any actual or potential conflicts of interest to their supervisor. The disclosure must include the nature of the conflict and any steps the staff member will take to mitigate the conflict.
4. **Consequences**: Violations of this policy may result in disciplinary action, up to and including termination of employment.

By requiring notification and approval, staff members can engage in outside work while maintaining their responsibilities to their employer. The disclosure requirement also promotes transparency and can help identify potential conflicts before they become an issue.

<u>Outside Consultancies and Conflict of Interest</u>

In general, a conflict of interest is defined as an employee activity inconsistent with recognized ethical and legal standards or which is competitive with or undermines the Partners' business goals. It may also be an activity that deprives Partners of the maximum efficiency of its employees concerning their jobs, the company, and company policies.

Employees may have outside business interests and employment if these do not interfere with job performance. An employee may not be involved in outside employment or business interests if the employee benefits because of his or her affiliation with Partners. Employees at all levels have a duty and an obligation to Partners to be entirely free from any conflict of interest. Some particular situations where conflicts of interest are most likely to arise are:

- Acceptance of loans, excessive entertainment, business gifts, or favors from any party that may supply or seek to supply goods and services to Partners or any of its subsidiaries;
- Disclosure of proprietary or other confidential information;
- Is related to the same or similar work that the staff member performs in their employment;
- Competes with the organization's business or interests;
- Impacts the staff member's judgment, loyalty, or impartiality in their employment;
- Holding an interest in or accepting free or discounted goods from any organization that does, or is seeking to do, business with Partners;
- Being employed by (including as a consultant), serving on the board, or having family work for any organization which does, or is seeking to do, business with Partners or which competes with Partners; and/or

Use of the assets and resources, or intellectual property of Partners or any of its subsidiaries for personal convenience or profit.

7.19 Employment of Relatives

Partners will not hire or contract in any capacity a close relative of any employee without adhering to Partners' Recruitment Policy (for employees) and Procurement Policy (for contractors).

A person's "close relatives" are their parents, parent-in-law, son, son-in-law, daughter, daughter-in-law, brothers and sisters, spouse, step-parent, step-son, step-daughter, grandparents, or grandchild. Persons who become close relatives by marriage after both have been initially associated with Partners (as employees, directors, or independent contractors) generally will not be affected by this policy.

7.20 Confidentiality and Intellectual Property & Proprietary Information

Partners Mauritania's work makes it essential that employees and consultants do not divulge proprietary company information unless expressly authorized by FO Director or Partners HQ. Partners develops specific proprietary processes and strategies that are unique to our organization. All employees are required to comply with Partners' Statement of Confidentiality of Corporate Affairs and Privacy & Personally Identifying Information Policy. Such confidential information includes, but is not limited to, the following examples:

- Contact lists (includes donors, members, prospective donors/vendors, vendors, volunteers, organizations, employees, etc.)
- Financial information relating to our funding and programs
- Employee information or records
- Marketing strategies (includes guidelines, standard operating procedures, designs, and any marketing report or indicator, campaign information, or any organizational announcement.)
- Pending projects and proposals
- Research and development strategies (includes proprietary products, information on donors or their employees, information about the beneficiaries of our programs)

It is extremely important that all such information remain confidential, and particularly not be disclosed to Partners' competitors. As such, employee should not upload proprietary information onto any public online platforms including in generative artificial intelligence (AI), such as ChatGPT, Bard, Bing, or other similar tools. For more information, review Partners' policy on Generative Artificial Intelligence Usage Policy. All employee and consultant agree to not use such proprietary or confidential information obtained during employment or contractual relationship with Partners Mauritania as a means of making private profit, and only use the information as required in the course of employment or contractual relationship, or required by law or court order.

All files, records, documents, drawings, specifications, equipment, and similar items relating to the business of Partners Mauritania, including computer software or software documentation, shall remain the exclusive property of Partners Mauritania and shall not be reproduced, removed, or transmitted from the premises of the company under any circumstances without the prior written consent of the Partners Mauritania. Upon termination of employment with Partners Mauritania, employees and consultants are required to return all company property to the FO Director. Any employees who improperly copies, removes (whether physically or electronically), uses, or discloses confidential information to anyone outside of Partners may be subject to disciplinary action.

Employees and consultants also agree that if any trade secret, formula, device, technology, technical information, process, etc. ("invention") is made during the course of employment or contractual relationship, alone or jointly with others which is made with Partners Mauritania's equipment, supplies, facilities, trade secrets or time, or which relates to the business of Partners Mauritania, or which results from any work performed for Partners Mauritania, such invention will belong to Partners Mauritania and Partners HQ, whom will have full authority to use, transfer or license it. Partners Mauritania and Partners HQ will have the right to keep such invention as a trade secret if it so chooses. It is further agreed that Partners Mauritania is not required to designate the employee or consultant as the inventor or author of any such invention if it is distributed publicly or otherwise.

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Any violation of this policy may lead to disciplinary action, up to, and including termination.

As required by FAR 52.203-18, FAR 52.203-19, and FAR 3.909, Partners does not require employees, representatives, and contractors to sign internal confidentiality agreements that could prevent or impede the reporting of fraud, waste, or abuse to appropriate authorities. Employees, representatives, and contractors are encouraged to report concerns, suspicions, or allegations of fraud, waste, abuse, or other misconduct to their supervisor, any member of management, HR, or to Foster Thomas at bbulger@fosterthomas.com. Anonymous reporting options are available and will be treated confidentially to the extent permitted by law.

7.21 Drug and Alcohol Policy

It is the policy of Partners Mauritania to provide staff members with a working environment that is free from the problems associated with the use of alcohol or illegal drugs. In compliance with the Drug-Free Workplace Act of 1988, Partners has a longstanding commitment to provide a safe, quality-oriented, and productive work environment. Alcohol and drug misuse poses a threat to the health and safety of Partners employees and to the security of the company's equipment and facilities. For these reasons, Partners is committed to the elimination of drug and alcohol use and misuse in the workplace.

7.21.1 Definitions

- **"Company premises"** includes all buildings, offices, facilities, grounds, parking lots, lockers, places, and vehicles owned, leased, or managed by Partners or any site on which the company is conducting business which includes external meetings and work travel. Work travel is defined as starting the moment you leave your home-of-record (or work location) and ends the moment you return to your home-of-record (or work location). If personal days are included on your travel authorization, these days are not considered work travel and therefore, exempt from the policy.
- **"Illegal drug"** means a substance whose use or possession is controlled by federal law but that is not being used or possessed under the supervision of a licensed health care professional. (Controlled substances are listed in Schedules I-V of section 202 of the Controlled Substances Act (21 U.S.C.812) and as further defined in regulation at 21 CFR 1308.)
- **"Refuse to cooperate"** means to obstruct the collection or testing process; to submit an altered, adulterated, or substitute sample; to fail to show up for a scheduled test; to refuse to complete the requested drug testing forms; or to fail to promptly provide specimen(s)

for testing when directed to do so, without a valid medical basis for the failure. Employees who leave the scene of an accident without justifiable explanation prior to submission to drug and alcohol testing will also be considered to have refused to cooperate and will automatically be subject to discharge.

- **"Under the influence of alcohol"** means an alcohol concentration equal to or greater than .08, or actions, appearance, speech, or bodily odors that reasonably cause a supervisor to conclude that an employee is impaired because of alcohol use.
- **"Under the influence of drugs"** means a confirmed positive test result for illegal drug use per this policy. In addition, it means the misuse of legal drugs (prescription and possibly OTC) when there is not a valid prescription from a physician for the lawful use of a drug in the course of medical treatment (containers must include the patient's name, the name of the substance, quantity/amount to be taken, and the period of authorization).

7.21.2 Work Rules

Whenever employees are working, are operating any Partners vehicle, are present on Partners premises, or are conducting company-related work offsite, they are prohibited from:

- Using, possessing, buying, selling, manufacturing, or dispensing an illegal drug (to include possession of drug paraphernalia).
- Being under the influence of alcohol or an illegal drug as defined in this policy.

Partners recognizes that some work-related social events may serve alcohol with the permission of a Director position or above. Everyone on the team is expected to behave responsibly at such events.

Partners will also not allow employees to perform their duties while taking prescribed drugs that are adversely affecting their ability to perform their job duties safely and effectively. Employees taking a prescribed medication must carry it in a container labeled by a licensed pharmacist or be prepared to produce the container if asked.

Any illegal drugs or drug paraphernalia may be turned over to an appropriate law enforcement agency and may result in criminal prosecution.

7.21.3 Employee Support

Partners will assist and support employees who voluntarily seek help for drug or alcohol addiction before becoming subject to discipline or termination under this or other Partners policies. Such employees will be allowed to use accrued paid time off, placed on leaves of absence, referred to treatment providers, and otherwise accommodated as required by law. However, employees will be responsible for the cost of such treatment. Employees may be required to document that they are successfully following prescribed treatment and to take and pass follow-up tests if they hold jobs that are safety-sensitive or require driving, or if they have violated this policy previously. Once a drug test has been initiated under this policy, the employee will have forfeited the opportunity to be granted a leave of absence for treatment, and will face possible discipline, up to and including discharge.

Employees should report to work fit for duty and free of any adverse effects of illegal drugs or alcohol. This policy does not prohibit employees from the lawful use and possession of prescribed medications. Employees must, however, consult with their doctors about the medications' effect on their fitness for duty and ability to work safely, and they must promptly disclose any work restrictions to their supervisor.

7.21.4 Drug Testing

Employees are subject to testing based on, but not limited to, observations of apparent workplace use, possession, or impairment by at least two members of management, HR, or the FO Director ending an employee for testing. Management must use the observations below to determine if there is a reasonable suspicion that an employee is under the influence of illegal drugs or alcohol. Examples include:

- Odors (smell of alcohol, body odor, or urine)
- Movements (unsteady, fidgety, dizzy)
- Eyes (dilated, constricted or watery eyes, or involuntary eye movements)
- Face (flushed, sweating, confused or blank look)
- Speech (slurred, slow, distracted mid-thought, inability to verbalize thoughts)
- Emotions (argumentative, agitated, irritable, drowsy)

- Actions (yawning, twitching)
- Inactions (sleeping, unconscious, no reaction to questions)
- When employees cause or contribute to accidents that seriously damage a Partners vehicle, machinery, equipment, or property or that result in an injury to themselves or another employee requiring offsite medical attention.

When reasonable suspicion testing is warranted, both management and HR will meet with the employee to explain the observations and the requirement to undergo a drug and/or alcohol test within two hours. Refusal by an employee will be treated as a positive drug test result and will result in immediate termination of employment.*

Employees subject to alcohol testing will be transported to a Partners-designated facility and directed to provide breath specimens. Breath specimens will be tested by trained technicians using federally approved breath alcohol testing devices capable of producing printed results that identify the employee.

Applicants and employees subject to drug testing will be transported to a Partners-designated testing facility and directed to provide urine specimens. Applicants and employees may provide specimens in private unless they appear to be submitting altered, adulterated, or substitute specimens. Collected specimens will be sent to a federally certified laboratory and tested for illegal drugs. The laboratory will transmit all alcohol and drug test results to HR.

*Under no circumstances will the employee be allowed to drive himself or herself to the testing facility. A member of management must transport the employee or arrange for a taxi and arrange for the employee to be transported home.

7.21.5 Consequences

Employees who refuse to cooperate in required tests or who use, possess, buy, sell, manufacture, or dispense an illegal drug in violation of this policy will be terminated. Employees who test positive, or otherwise violate this policy, will be subject to discipline, up to and including termination. Depending on the circumstances, the employee's work history/record and any state law requirements, Partners may offer an employee who violates this policy or tests positive the opportunity to return to work on a last-chance basis pursuant to mutually agreeable terms, which could include follow-up drug testing at times and frequencies determined by Partners.

Employees will be paid for time spent in alcohol or drug testing and then suspended pending the results of the drug or alcohol test. After the results of the test are received, a date and time will be scheduled to discuss the results of the test with the employee's supervisor and HR. If the results are negative, the employee will receive back pay for the times/days of suspension.

7.21.6 Confidentiality

Information and records relating to positive test results, drug and alcohol dependencies, and legitimate medical explanations provided to HR will be kept confidential to the extent required by law and maintained in secure files separate from normal personnel files. Such records and information may be disclosed among managers and supervisors on a need-to-know basis and may also be disclosed when relevant to a grievance, charge, claim, or other legal proceeding initiated by or on behalf of an employee or applicant.

7.21.7 Inspections

Partners reserves the right to inspect all portions of its premises for drugs, alcohol, or other contraband; affected employees may have union representation involved in this process. All employees, contract employees and visitors may be asked to cooperate in inspections of their persons, work areas and property that might conceal a drug, alcohol, or other contraband. Employees who possess such contraband or refuse to cooperate in such inspections are subject to appropriate discipline, up to and including termination.

7.21.8 Crimes Involving Drugs

Partners does not desire to intrude into the private lives of its employees but recognizes that employees' off-the-job involvement with drugs and alcohol may have an impact on the workplace. Therefore, Partners reserves the right to take appropriate disciplinary action for drug use, sale, or distribution while off company premises. All employees who are convicted of, plead guilty to, or are sentenced for a crime involving an illegal drug are required to report the conviction, plea, or sentence to HR within five (5) days. Failure to comply may result in termination. Reporting of drug crimes may result in suspension without pay to allow management to review the nature of the charges and the employee's past record with Partners.

Partners has a longstanding commitment to provide a safe, quality-oriented, and productive work environment. Alcohol and drug misuse poses a threat to the health and safety of Partners employees and to the security of the company's equipment and facilities. For these reasons, Partners is committed to the elimination of drug and alcohol use and misuse in the workplace.

7.22 Smoke and Vape Free Workplace Policy

It is the policy of Partners Mauritania to prohibit smoking on all Partners Mauritania's premises in order to provide and maintain a safe and healthy work environment for all employees. Smoking is defined as the "act of lighting, smoking or carrying a lighted or smoldering cigar, cigarette or pipe of any kind." Vaping refers to the use of electronic nicotine delivery systems or electronic smoking devices such as e-cigarettes, e-pipes, e-hookahs, and e-cigars.

The smoke and vape free workplace policy applies as follows::

- Smoking and vaping are strictly prohibited on Partners property, including indoor and outdoor areas (except where designated), parking lots, company-owned or leased vehicles, and all company-sponsored offsite conferences and meetings.
- All employees, interns, contractors, and consultants and/or their employees working on company premises, and visitors (customers and vendors) to Partners premises are expected to comply with this policy and promote a smoke-free and vape-free environment.

Smoking is permitted outside the building where designated. Employees who violate the smoking policy will be subject to disciplinary action.

7.23 Code of Conduct

Partners Mauritania has established the below Code of Conduct. Each employee plays a role in fostering this environment. Accordingly, we all must abide by certain rules of conduct, based on honesty, common sense, and fair play. Unacceptable conduct may subject the offender to disciplinary action, up to and including termination, in Partners sole discretion. The good name of Partners Mauritania depends on the way its representatives conduct business and the way the public perceives that conduct. Unethical actions, or the appearance of unethical actions, are not acceptable.

The following are examples of some, but not all, conduct which can be considered unacceptable:

- Obtaining employment on the basis of false or misleading information.
- Stealing, removing, or defacing Partners property or a co-worker's property, and/or disclosure of confidential information.
- Completing or editing another employee's timesheet without approval.
- Sharing of passwords for your work accounts to anyone else unless specific approval is given (i.e. shared PandaDoc account per unit).
- Violation of Partners' code of conduct, including but not limited to policies on Equal Employment Opportunity, harassment, confidentiality, conflict of interest, trafficking in persons, sexual exploitation and abuse, and child safeguarding.
- Violation of safety and security rules and policies.
- Violation of Partners' Drug and Alcohol-Free Workplace and Smoking Policy.
- Fighting, threatening, or disrupting the work of others or other violations of Partners' Workplace Violence Policy.
- Failure to follow lawful instructions of a supervisor.
- Failure to perform assigned job duties.
- Violation of the attendance policy, including but not limited to irregular attendance, habitual lateness, or unexcused absences.
- Pornography or access to any sexual or violent content and website or access to the dark web on Partners property.
- Gambling on Partners property.
- Willful, careless, or wasteful destruction or damage to Partners assets or to the equipment or possessions of another employee.
- Performing work of a personal nature during working time.
- Violation of Partners IT policies.

- Unsatisfactory job performance.
- Any other violation of Partners policy.

The following are examples of some, but not all, conduct which is expected of all employees:

- Conduct all aspects of company business honestly and ethically and obey the laws of the United States and every state and locality where we conduct business.
- Conduct work on behalf of Partners with customers, suppliers, fellow employees, and the public with the highest standards of honesty, integrity, and fairness.
- Be responsible for their actions and the consequences. No one will be excused from misconduct because another person ordered or asked the employee to participate in wrongdoing.
- Alert their supervisor or a senior manager whenever they observe, learn of, or suspect any dishonest, destructive, or illegal activity.
- Ensure that all financial transactions and other documentation are handled honestly and recorded accurately. This commitment extends to the reporting and charging of time.
- Avoid conflicts of interest, both real and perceived. Conflicts of interest are those outside activities or personal interests that could influence objective decisions in performing your responsibilities.
- Recognize that even the appearance of misconduct or improper behavior can damage our reputation and you will act to prevent such appearances. Limit profanity in the workplace.
- Cooperate fully in any investigation of misconduct.

If you know of or suspect a violation of applicable laws, rules or regulations or this Code, you must immediately report that information to the FO Director and Partners HQ. Individuals can also contact Partners confidential hotline at bbulger@fosterthomas.com Partners HQ will determine, or shall designate appropriate persons to determine, appropriate action in response to violations of this Code. Partners Mauritania prohibits any retaliation against anyone who makes a good faith report of a suspected violation or who participates in an investigation. There is to be no interference, coercion, discrimination, reprisal, or retaliation against any person for making a valid and truthful complaint or good faith report of a violation.

7.24 Grievance Policy

Partners Mauritania provides employees with the opportunity to bring work-related problems and concerns to the attention of management and to resolve such problems fairly and promptly. Any employee who feels that s/he has been treated unfairly or inequitably regarding a condition or action affecting employment should bring the matter to the attention the FO Director, Partners HQ or to the confidential hotline at bbulger@fosterthomas.com.

7.25 Open-Door Policy

Partners has adopted an Open-Door Policy for all employees. This means that every manager's door is open to every employee. The purpose of our open-door policy is to encourage open communication, feedback, and discussion about any matter of importance to an employee. Our open-door policy means that employees are free to talk with any manager at any time about any topic, as long as they abide by Partners' Code of Conduct and communicate with dignity and respect.

Responsibilities under an Open-Door Policy:

1. If any area of your work is causing you concern, you have the responsibility to address your concern with a manager.
2. Whether you have a problem, a complaint, a suggestion, or an observation, your managers want to hear from you. By listening to you, Partners can improve, address complaints, and foster employee understanding of the rationale for practices, processes, and decisions.

Before You Pursue the Open-Door Policy:

Most problems can and should be solved in discussion with your immediate supervisor; this is encouraged as your first effort to solve a problem. However, an open-door policy means that you may also discuss your issues and concerns with the next levels of management and/or HR. No matter how you approach your problem, complaint, or suggestion, you will find managers at all levels of the organization willing to listen and to help bring about a solution or a clarification.

7.26 Whistleblower Policy

Employees have the duty to comply with all applicable laws and to assist Partners Mauritania to ensure legal compliance. Partners Mauritania encourages its employees to report improper activities in the workplace and will protect employees from retaliation for making any such report in good faith. Employees have the right to report, without suffering retaliation, any activity by the organization or its employees that the employee reasonably believes:

- Violates any local, state, or federal law;
- Violates or amounts to noncompliance with any local, state, or federal rule or regulation;
- Violates fiduciary responsibilities by a corporation to its stakeholders or employees.

In addition, employees can refuse to participate in an activity that would result in a violation of, or noncompliance with, any local, state, or federal statutes, rules, or regulations. Employees are also protected from retaliation for having exercised any of these rights in any former employment. The whistleblower protection laws do not entitle employees to violate a confidential privilege of the organization (such as attorney-client privilege) or improperly disclose trade-secret information.

7.26.1 Whistleblower Complaint Procedure

Any employee who suspects a violation of ethics or legal compliance is required to report the situation(s) to their supervisor or a member of Executive Leadership. Alternatively, a confidential hotline at bbulger@fosterthomas.com has been established for you to report your concern via email to an outside party. The email is monitored by an HR Consultant from Foster Thomas who will relay any concerns to the Ethics Committee of the Board. If the situation is life-threatening or extremely critical in nature, it needs to be reported to the Executive Leadership Team as well as the hotline for immediate action to be taken. Employees may also report information regarding possible unlawful activity to an appropriate government or law enforcement agency.

7.26.2 Protection from Retaliation for Whistleblower Complaint

Partners Mauritania is prohibited from discharging an employee or taking other adverse employment action against an employee in retaliation for the employee's good faith complaint about safety and health hazards or other violations of law in the workplace and the environment.

These whistleblower protections are in addition to protection or rights provided by other applicable laws.

7.27 Health & Safety

Partners Mauritania will take all necessary precautions to effectively protect the life, safety, and health of employees. Partners is committed to providing a safe and healthy workplace for all its employees and visitors. Accordingly, Partners complies with all applicable requirements issued by Mauritanian Government.

All employees share the responsibility for workplace safety. The FO Director is responsible for developing safety awareness and ensuring that all operations are performed with regard for the safety and health of all employees involved. Employees are responsible for continuously practicing safety while performing their job duties. Employees are encouraged to be alert to unsafe conditions and report them promptly to the FO Director. All reports can be made without fear of reprisal.

Employees are required to adhere to all policies on safety procedures. All equipment and tools should be used safely. Employees should limit their work activities to those outlined in their job description. Partners may not be liable for injuries incurred in any other circumstances and compensation may not be given.

7.27.1 Housekeeping

Safety is directly related to neatness and cleanliness. Items that are out of place can cause accidents and injuries, and lack of cleanliness can quickly become a health risk. Furthermore, our office reflects our staff and organization to outside guests, so it is everyone's shared responsibility to project the best impression possible.

Employees are expected to keep their work areas neat, organized, and free of clutter or objects that could interfere with the work process or cause accidents. Employees should assist with keeping public areas presentable by:

- Returning tools and supplies to their proper place and condition after use.
- Properly disposing of trash and cleaning spills or other messes.
- Storing limited food items in the refrigerator, and promptly consuming or removing them.

- Making sure hallways, walkways and other publicly visible areas are free and clear of dangerous obstacles or unsightly objects.
- Reporting safety and maintenance issues immediately.

7.27.2 Job Related Injury Reporting

Employees should immediately report all work-related illnesses, injuries, or occupational disease exposures to the FO Director, FO HR, or Partners HQ. Employee should complete the Employee Incident Report Form, found in Annex K. Once reported, the FO Director in conjunction with FO HR and Partners HQ will determine the next steps according to Article 504, numeral V, of the Federal Labor Law.

Partners does not discriminate or retaliate against employees who have filed legitimate job-related injury report. Supervisors will not take or threaten any action to compel or persuade employees not to file a job-related injury report or a workers' compensation claim.

Employees in any case, or just in sick leave above 3 (three) days, has to report to the corresponding Mauritanian Social Security Institute's clinic, the illness, injuries, or occupational disease exposure, in order to obtain the sick leave license or a disability verdict accordingly.

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7.28 Duty of Care – Safety & Security

Partners Mauritania takes precautions to protect the health and well-being of its staff while carrying out their duties and responsibilities on behalf of Partners. Partners Mauritania adheres to Partners' Global Safety and Security Policies. Partners policies consist of a risk assessment and standard security protocols for each country designed to mitigate threats and maintain contingency planning.

Employees are expected to report all security and safety incidents in accordance with Partners' Global Safety and Security Policies. Please speak with your supervisor or FO Director should you have any questions regarding Partners' security and safety protocols. Violations of Partners' global safety and security policies or standard operating procedures may result in disciplinary action.

7.28.1 Safety Protocols on Business Travel

Any employee traveling for Partners' business purposes must comply with Partners' Travel Policy and the basic safety protocols below:

1. ***Pre-travel Planning:*** Before any business trip, employees should review the current travel advisory warnings and security conditions of their intended destination. If the advisory is rated high risk, the employee must seek approval from the FO Director before the trip can be authorized.
2. ***Booking Travel and Accommodation:*** All travel arrangements, including airfare, ground transportation, and lodging, should be made through the Partners' travel provider. If an employee chooses to make their own travel arrangements, it must be approved by the FO Director.
3. ***Communication and Check-In:*** Employees must regularly check-in with their supervisor and emergency contacts during their trip. They should provide a detailed itinerary with contact information and emergency procedures. If there are any changes to the itinerary, the employee must inform the supervisor and emergency contacts immediately.
4. ***Health and Safety:*** Employees are required to follow all local health and safety regulations, including wearing masks and practicing social distancing. Partners will provide employees with personal protective equipment (PPE) as required. Employees are also expected to familiarize themselves with the location of the nearest medical facilities and emergency services. Employees should be advised to seek medical attention immediately if they experience any health issues while traveling.
5. ***Security***: Employees must take necessary precautions to ensure their own security, including avoiding unsafe areas and situations. Partners will provide employees with relevant security information, including crime statistics, terrorism threats, and other relevant safety concerns. Please reference Partners' pre-arrival travel briefs.
6. ***Crisis Management:*** In case of an emergency or crisis situation, employees should contact the emergency hotline below. The hotline is managed by a third-party firm that is able to provide immediate assistance to the employee. The assistance may include evacuation, medical support, or other necessary measures to ensure the employee's safety.

7.28.2 Emergency Hotline

In event of an immediate life-threatening situation while travelling internationally for work, employees, consultants, volunteers, and other travelers should contact Partners' third-party security provider RSM, who handles emergency and crisis response. RSM will assist with security, political, medical, natural disaster, and other crises and evacuations. The emergency hotline is: +1 855-969- 3949, which is available 24/7 and in multiple languages.

7.29 Workplace Gambling

Partners Mauritania prohibits most forms of gambling in the workplace, including professional or organized gambling activities. Partners will allow exceptions to this policy for Partners-sponsored events supporting a charitable or fundraising cause. Employees must seek the approval of HR prior to engaging in any gambling activities. Failure to comply with this policy may result in disciplinary action, including possible termination of employment.

7.30 Social Media Policy

As used in this policy, “social media” refers to blogs, online forums, and social networking sites, such as X, Facebook, Instagram, TikTok, Snapchat, LinkedIn, and YouTube.

7.30.1 Use of Social Media

The goal of this policy is to protect the reputation and interests of Partners while respecting the employees’ right to free speech. However, bullying, retaliation, and discriminatory conduct on social media platforms may be cause for discipline and/or termination. Below is a set of guidelines and expectations that outlines what employees can and cannot post on their personal social media accounts:

- **Respect confidentiality:** Employees should not disclose confidential or proprietary information about Partners, its clients, or customers on their personal social media accounts.
- **Maintain professionalism:** Employees should avoid posting anything that could reflect negatively on the organization or its employees, such as discriminatory or offensive comments, criticism of clients or colleagues, or inappropriate content.
- **Avoid conflicts of interest:** Employees should disclose any relationships or affiliations that could create a conflict of interest, such as posting endorsements or recommendations for products or services that compete with the organization’s offerings. Likewise, employees should not use social media to criticize Partners’ competition.

- **Be aware of legal obligations:** Employees should be aware of the legal implications of their social media activity, such as potential defamation or infringement of intellectual property rights. • Use discretion: Employees should be aware that their social media activity can reflect on Partners, even if it is posted outside of work hours, and should use discretion when posting content or engaging in online discussions.
- **Social media during work hours:** Employees may engage in social media activity during work time provided it is directly related to their work and approved by their supervisor. It does not identify or reference individuals or entities without permission.

7.30.2 Disclaimers

If an employee identifies themself as a Partners employee or discusses matters related to Partners on a social media site, the site must include a disclaimer stating that it does not express Partners' views, and that the employee is expressing only their personal opinions. For example: "The views expressed on this website/blog are mine alone and do not necessarily reflect the views of my employer."

7.30.3 Trademarks, Copyrights & Legal Issues

Do not use Partners' or others' trademarks on a social media site or reproduce Partners' or others' material without first obtaining permission. Employees must comply with all applicable laws, e.g., copyright, trademark, or harassment. Web content should abide by the guidelines for access by persons with disabilities. For more information reference Partners' policy on Section 508 and Section 889.

7.30.4 Right to Monitor

Partners reserves the right to monitor employees' use of company computers and the Internet, including blogging and social networking activity. Partners will investigate any violations of the policy, and take disciplinary actions if necessary. Nothing in this policy is meant to, nor should it be interpreted to, in any way limit your rights under any applicable federal, state, or local laws.

7.30.5 Media Release

Partners requires that all employees sign a media release form and either opt in or out of release of their videos, voice, and/or images. These forms allow Partners to legally share and distribute content for promotional, educational, or informational purposes. By obtaining explicit consent through these forms, both Partners and employees involved have transparency and mutual understanding regarding the utilization of visual and auditory materials. Media release forms are found in PandaDoc.

7.30.6 Section 508 Compliance

Partner Mauritania recognizes the necessity of providing equal access to information and communications technology (ICT) for individuals with disabilities as mandated by Section 508 of the Rehabilitation Act. Partner Mauritania requires compliance with Section 508, when stated in the award requirements. If required, all employees must ensure that media publications comply with Partners Section 508 Policy.

This policy applies to all ICT, including software, web sites, web applications, and hardware applications such as computers, peripherals, and other types of electronic office equipment to make sure it is accessible for individuals with disabilities. Unless an exception under FAR 39.204 or an exemption at FAR 39.205 applies, acquisitions of ICT supplies and services must meet the applicable accessibility standards at 36 CFR 1194.1.

8. Recruitment and Labor Contracts

8.1 Handbook Disclaimer

This manual is not an employment contract and does not contain promises or conditions of employment or other commitments of any kind by Partners. Partners may, at any time, in its sole discretion, modify or vary from anything stated in this handbook with or without notice. The information provided herein serves as a general guide but may be subject to local, state, or federal laws. In conflict, applicable laws will precede the policies stated in this manual. This manual supersedes and revokes all prior versions of previous employee manuals and any memo, bulletin, policy, or procedure on any subject discussed in this manual. Copies of the most recently approved manual is always available on SharePoint.

8.2 Equal Opportunity Employer (EEO) Statement

Partners HQ and Partners Mauritania affirms it is an equal opportunity employer. Every team member has the right to work in surroundings that are free from all forms of unlawful discrimination. Partners Mauritania will not engage in or tolerate discrimination on the basis of race, color, gender, religion, age, sexual orientation, national or ethnic origin, disability including HIV/AIDS status, marital status, veteran status, gender reassignment status or any other protected group status under Mauritanian and U.S. federal, state, or local law. Our policy provides equal opportunity to qualified individuals in all aspects of recruitment, hiring, training, promotion, layoff, termination, compensation, and other terms of employment.

Employment is contingent upon the individual's ability to meet the essential tasks as defined in the position description, with or without reasonable accommodation or adjustment. Individuals with physical or mental disabilities will be provided reasonable accommodations/adjustments, as prescribed by relevant law. Any team member who believes s/he needs reasonable accommodation to fulfill the essential functions of their work should notify his/her supervisor and the FO Director (or designee).

8.3 Recruitment

Partners Mauritania may conduct recruitment both internally or externally depending on need and circumstances. In all employment advertisements, the appropriate Equal Opportunity Employer (EEO) verbiage must be used. If recruitment is being done under a Federal Cooperative Agreement, all key personnel must be approved in writing by the donor. If recruitment is being done under a Federal Contract, all positions and the salary ranges must be approved by the donor. All recruitments and new hires will comply with each country's labor laws. In all positions, geographic requirements and/or restrictions must be indicated in the job description. All Mauritanian positions will follow the salary matrix.

All recruitment will be done by Partners. In certain scenarios if Partners has exhausted its own search, and the program or administrative department has funding to cover the cost, a head hunting service may be used. Use of a head hunting service should be the exception, but may be needed for specialty positions.

For all recruitments, a Selection Memo must be signed, indicating the recruitment, hiring process, basis for selection, and justification for the salary. The respective HR will have delegation of authority to sign the selection memos.

- For Field Office staff: the Selection Memo must be signed by:
    1. Employee's new supervisor
    2. Project Director/Chief of Party/Country Director
    3. Home Office Programs (if applicable), and
    4. Field Office HR

8.3.1 Recruiting & Hiring of Employee

The recruitment and hiring of employees must follow Partners' employee recruitment procedure and the checklist.

8.3.2 Personnel Application Process

After a position is posted and becomes available, the applicant will need to respond to the posting and email a copy of their resume and cover letter. Only the final list of eligible candidates will be sent to the position supervisor, who will proceed through the recruitment process, with the support of HR. Please note that all staff recruitment will be internal and/or external.

8.3.3 Internal Recruitment with Internal Job Posting

Internal recruitment refers to the process of filling job vacancies or promotions within an organization by considering current employees. The following scenarios can be considered for internal publishing only:

- In case there is a vacancy and there are several qualified employees who have already been identified within the team or unit; or
- In case it is urgent to occupy the position and it is likely that there is experience within Partners.

To maximize promotion within Partners, the vacant position may be filled by any employee who is interested and who, after competitive evaluation, meets the requirements to fill the vacancy. It is highly recommended that employees interested in applying for an internal vacancy inform their supervisors of their interest in the vacancy.

All internal vacancies will be advertised for a minimum of three business (3) days via a branch office distribution email, allowing all qualified internal candidates to apply. Proof of email must be retained as part of the recruitment documentation package.

After, HR will review and evaluate the candidates, with finalists being selected for an interview. Based on the results of the interview, HR and the position supervisor will make the final candidate selection and draft a Selection Memo. If the promotion is done internally, the employee may be entitled to a maximum 15% pay raise, for horizonal moves organizationally or if remaining in same position with additional responsibilities added. For an employee making a vertical change within the organization the new salary will be based on the new position and salary matrixhttps://partnersnet107.sharepoint.com/:b:/s/FA/ESDGFmND4FBIrdHKeZ9DcnwBI2HzoCB_x9bu_PvA-DrB0g?e=C9tzoh.

8.3.4 Internal Recruitment without Internal Job Posting

The following scenarios are exceptional situations in which Partners may transfer or promote staff internally without an internal job posting:

1. As part of a project closeout or elimination of a position, in an effort to retain staff.
2. For business necessity or continuity purposes, such as for succession planning or where internal candidates are identified for strategic purposes.
3. If there is a need to maintain strict confidentiality for security reasons.
4. For highly specialized or niche roles, there might be a limited number of suitable candidates. Note must justify no other individual internally is qualified.
5. For employee development, Partners may proactively identify high-potential employees and create growth opportunities for them. This scenario requires a performance evaluation to justify the high-potential employees.

If an internal recruitment without an internal job posting is conducted, the employee must undergo a formal interview process. If after the interview process Partners will proceed with the employee, then the Project/Unit Director must draft a Selection Memo and supporting documentation to justify one (or more) of the points 1-5 above. Internal recruitment without an internal job posting should be an exception and rarely used.

If the promotion is done internally, the employee may be entitled to a maximum 15% pay raise, for horizonal moves organizationally or if remaining in same position with additional responsibilities added. For an employee making a vertical change within the organization the new salary will be based on the new position and salary matrix.

8.3.5 External Recruitment

When external recruitment is necessary for a vacancy, the job offer should be actively advertised and promoted locally and internationally, as appropriate. The announcement should be clear, precise, and brief, but it should also provide the necessary conditions, training, and experience, and how to apply. At a minimum, advertisements shall provide:

1. Job description;
2. Information on the candidate's necessary training and experience;
3. Place and deadline for submission of applications.

All job postings must be created using Partners' standard job posting template. All postings must be advertised for a minimum of five business (5) days with active recruitment. Active recruitment means minimum posting on Partners' website and one other highly traffic job website. Proof of posting must be retained as part of the recruitment documentation package.

Note: some projects will require specific qualification/requirements before hiring any Key Personnel. Any specific donor requirements should be followed when hiring any personnel. Final candidate's information will be sent to the FO Director and Partners HQ for final approval.

Meanwhile, the FO Director must perform reference checks in Annex L on 1st choice candidate approved, and complete required vetting, including verifying the candidate's employment, checking references, and Visual Compliance check. Once the reference check has been completed, the FO Director will extend email offer letter Annex M to be signed electronically with email signature by FO Director.

Once approved, the candidate will sign his/her contract and be provided with his/her orientation. All offer letters/agreements should, at a minimum, be signed by both the employee and FO Director.

8.3.6 Hiring Spouses or Family Members

Although Partners may hire family members, domestic partners, and spouses, this practice is not encouraged. Employees who are married or family members of candidates should notify the HR department or the hiring manager of this relationship as soon as possible. Failure to notify will be considered non-disclosure and will merit a disciplinary action or dismissal.

If the determination is made to hire a spouse or family member, Partners will limit the placement, responsibilities, and scope of work in relation to your family member or spouse. Under no circumstances will employees be under the supervision of a family member and spouse, and no family member or spouse will have the responsibility or participate in the evaluation of their job performance.

8.3.7 Transfer within Partners

The transfer of an employee means moving from one department or program to another, to a similar position. The salary remains unchanged. This is not a disciplinary measure. The transfer of an employee is made:

1. By decision of the Project/Unit Director when it is in the interest of Partners;
2. At the request of the employee, the case will be considered according to the possibilities within Partners;

Any transfer of position requires approval from employee's new supervisor, FO Director, Home Office Senior Director, and Field Office HR.

Individuals transferring between one job category and another office (home or field) will undergo a reference review with the relevant HR unit to ensure that their salary and benefits match the category and location of their new employment. Positions may require a new or modified employee contract, and all transfers require a new job description.

The following staff must agree on the official transition date: the employee, the supervisor in the last position, and the supervisor in the new position. Project/Unit Director will make the final decision regarding the transition date.

In the event that an employee is offered a position in another country, the transition will be coordinated by Field Office HR.

For all transfers, supervisors must conduct a 90-day performance review.

8.3.8 Promotion

Partners is committed to promotion practices and ensuring staff are aware of available job opportunities and the requirements for advancement. Promotion is not automatic. Promotion means an employee is being switched to an additional level within the salary matrix (e.g. Director I to Director II). Promotions will include a salary review.

The following are some of the possible scenarios which may merit a promotion:

- After the annual performance evaluation
- After recruitment process
- Demonstrated increased responsibilities
- Time and experience in current position

An employee may benefit from a promotion if there is availability within the organizational structure, depending on the needs of each project/department, and the availability of resources. For promotions to be considered the following criteria must be met:

- Have a minimum seniority in their current position of 6 (six) months.
- Have received their most recent performance evaluation or, if the employee has been in office for less than 12 months, a performance evaluation must be conducted.
- Have the necessary experience and skills for the position.
- May not be in a continuous performance improvement plan, in the midst of a disciplinary sanction process, or under investigation.

Note: increasing workload does not in itself constitute promotion. It must be the result of a significant and measurable increase in the responsibility, scope and/or complexity of the work over 2 months or longer. In the event that an employee's scope changes significantly and sufficiently to warrant a revision of the position description, it should be re-compared to determine if a promotion is occurring or if the employee is simply taking on additional responsibilities.

The supervisor is responsible for requesting and justifying a promotion via email to the respective HR department for review. The promotion request must be approved by the employee's supervisor, FO Director, Home Office Senior Director (if applicable), and Home Office HR. Positions may require a new or modified employee contract, and all promotions require a new job description.

For all promotions, supervisors must conduct a 90-day performance review.

8.3.9 Interim Positions

An interim position is a temporary job change in which a person assumes a new position that is the result of a vacancy or operational need. During the interim position, the employee is expected to assume full responsibility and authority for the new position. Interim charges generally last no longer than 3 to 6 months; however, in specific cases they can be extended up to 9 months maximum. Interim positions may arise while competitive recruitment is underway, during start-up of a new program/department, while waiting on donor approval for key personnel, or to complete a specific assignment. The supervisor will need to send an email to all staff indicating the interim position and the effective dates.

8.3.10 Interim Positions Remuneration

If the interim period extends 2 months or longer, **and** the interim position is in a different salary grade, the employee occupying the position will be remunerated within the new grade during the interim period. If the interim position is under 2 months, no additional compensation will be provided.

In the event that the employee filling the position is already paid at or above that point, the payment will remain the same during the interim period.

Once the interim position comes to an end, the employee returns to their original position and the salary reverts to their original pay rate plus any merit increases during that period. Interim changes often serve as an entry point for a longer-term opportunity, so transparency of expectations and the expected time frame of interim changes is of paramount importance.

Commented [KM6]: @Danielle, will make same changes on F2F manuals

8.3.11 Temporary Coverage of Positions

A temporary coverage of position is when an employee assumes additional roles or responsibilities to support a colleague or supervisor during a short-term leave of absence (such as vacation, maternity or paternity leave, or medical disability). It is different from an interim position because the employee is not fully assuming a new position; only certain aspects of the position.

Prior to their temporary departure, the employee who is taking the leave of absence must send an all staff email to provide notice on roles and responsibilities and who to contact for each.

8.3.12 Temporary Coverage of Positions Remuneration

Taking on additional responsibilities on a temporary coverage basis does not result in an increase in salary. Staff may be asked to sign a waiver indicating that they are not getting an increase to salary or benefits as required in each country.

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8.3.13 Rehiring of Former Employees

Partners will consider rehiring former employees with certain conditions. Former employees who wish to apply for an advertised position, for which they believe they are qualified, may do so by participating in the competitive recruitment, selection, and interview process. Partners will review the employee's past performance, the circumstances of their separation from Partners, and conduct a verification of the positions held before leaving Partners.

8.4 Background and Reference Checks

To ensure that individuals who join Partners are well qualified and to ensure that Partners maintains a safe and productive work environment, it is our policy to conduct pre-employment background checks on all applicants who accept an offer of employment. Background checks may include verification of any information on the applicant's resume, application, or references.

All offers of employment are conditioned on receipt of a background check report that is acceptable to Partners. All background checks are conducted in conformity antidiscrimination local laws. Reports are kept confidential and are only viewed by individuals involved in the hiring process. If information obtained in a background check would lead Partners to deny employment, a copy of the report will be provided to the applicant, and the applicant will have the opportunity to dispute the report's accuracy. Background checks may include a criminal record check, although a criminal conviction does not automatically bar an applicant from employment.

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8.5 Clearing Potential New Hires with Prior USG Employment

Partners will ensure that potential new hires with prior United States Government (USG) employment are thoroughly evaluated and cleared of any conflicts that could prevent them from effectively performing their hired-for positions within Partners.

8.5.1 Conflict of Interest Clearance

Prior to finalizing the hiring decision, all potential new hires with prior USG employment will undergo a thorough clearance process to assess any conflicts of interest, including potential restrictions or obligations that could impact the candidate's ability to fulfill their duties. The assessment will consider factors such as the candidate's prior role, responsibilities, access to sensitive information, and any applicable post-employment restrictions imposed by the USG.

The potential new hire will be required to disclose their prior USG employment and provide relevant details about their roles, responsibilities, and any post-employment restrictions they are aware of. HR will collaborate with the Compliance Team, and if necessary, legal counsel, to review the potential conflicts of interest. In cases where potential conflicts are identified, the candidate will be informed and additional steps may be taken to mitigate or address these conflicts.

8.5.2 Mitigation and Resolution

If conflicts of interest are identified, Partners will work with the candidate to develop appropriate mitigation measures or seek necessary waivers. Mitigation measures could include modifications to job responsibilities, recusals from certain activities, or other actions to prevent conflicts from arising.

The conflict of interest clearance process and its outcomes will be documented for each potential new hire with prior USG employment. Transparency and open communication will be maintained throughout the process to ensure that candidates are aware of the assessment and any actions taken.

8.6 Personnel Records and Privacy

Personnel files will be kept for each employee of Partners and will be maintained in a confidential and secure manner under the custodianship of HR. As required by law, some records relating to medical issues and internal investigations are maintained in separate files. A personnel file

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includes records related to performance and training as well as other records used for hiring, promotion, and disciplinary decisions.

Employees, or their representative, may request access to their personnel file by submitting a request to HR in writing. Personnel file access by current and former employees will generally be permitted upon reasonable request within 3 business days of the request.

Access may be granted during regular working hours and with HR present. Partners may provide copies of employee signed documents, if requested; copies are not permitted on any other documents. Employees are not permitted to remove any documents from the personnel file but may provide a written response to any document in the personnel file. Written responses will be attached to the original document in the personnel file.

Managers and supervisors, other than the HR Office and his or her subordinates, may only have access to personnel file information on a need-to-know basis. A manager or supervisor considering the hire of a former employee or the transfer of a current employee may be granted access to the file, or limited parts of it, in accordance with anti-discrimination laws.

Personnel files may not be taken outside of the HR department. Representatives of government or law enforcement agencies, in the course of their duties, may be allowed access to file information.

HR records must be retained and filed in accordance with Partners' Record Retention Policy and File Structure Policy.

8.7 Independent Contractor (Consultant) Definition

An independent contractor does not provide services under the direction and dependence of another and is not subject to specific working hours. Independent contractors (which includes all compensated consultants) are those who undertake a specific task or project on behalf of Partners on a non-employee, contractual basis. Independent contractors are not employees of Partners and thus are ineligible for the benefits of employment described in this manual. They are required to carry their own liability and health insurance. When determining a consultancy or employee status, the U.S. Department of Labor Independent Contractor Rule must be followed.

The rule includes six (6) factors (with equal weight) when determining the worker relationship:

1. Whether the work is an integral part of the employer's business (e.g., this factor weighs in favor of the worker being an employee if the work is critical, necessary, or central to the employer's principal business);
2. The worker's opportunity for profit or loss depending on managerial skill (e.g., whether the worker engages in marketing or other efforts to expand the business, makes decisions to hire others, purchases materials and equipment. If a worker has no opportunity for a profit or loss, then this factor suggests that the worker is an employee);
3. The extent of the relative investments of the worker and the employer (e.g., is the worker making similar types of investments as the employer (even if on a smaller scale) which would suggest that the worker is operating independently and would indicate independent contractor status);
4. Skill and initiative (this factor indicates employee status where the workers does not use specialized skill in performing the work or where the worker is dependent on training from the employer to perform the work).
5. The permanency of the work relationship (the worker is most likely an employee if the work relationship is indefinite in duration, continuous or exclusive of work for other employers); and
6. The nature and degree of control exercised or retained by the employer (the employer's degree of control over the performance of the work, e.g., sets work schedule, supervises the performance of the work, or limits the worker's ability to work for others. According to the DOL, actions taken by the potential employer that go beyond compliance with a specific, applicable Federal, State, Tribal or local law or regulation and instead serve the potential employer's own compliance methods, safety, quality control or contractual or customer service standards may be indicative of control. More control by the employer favors employee status; more control by the worker favors independent contractor status).

8.7.1 Payment Structure for Consultant Contracts

Upon the creation of a consultant opportunity, the FO Director must determine what type of payment structure for the contract will be needed, based on the work performed. The following types of payments options are available:

- Fixed Price – Fixed price agreements are used mainly for assignments in which the content and length of the services and the required output of the consultant are precisely specific and for these reasons the consultant can generally control the scope of work and duration of services. Under a fixed price agreement, Partners Mauritania agrees to pay the consultant a predetermined set amount of money for certain products of specified technical natures, such as reports, project designs, etc. that is to be delivered within a specified deadline, the quality of which can usually be readily assessed. Fixed-price agreements provide for a price that is not subject to any adjustment on the basis of the consultant's cost experience in performing the contract. It provides maximum incentive for the consultant to control costs and perform effectively.
- Time-Based (Hourly, Weekly, Monthly, etc.) – In a time-based agreement, the consultant provides services at a pre-determined, time-based unit rate and records all hours worked under the scope of work. Time-based labor agreements are recommended when the nature and scope of the services provided are such that a scope of work is general guidelines for the activities to be performed and when it becomes difficult to determine the exact time with sufficient precision, which is common in complex scope of works.

8.8 Volunteer Definition

Volunteers, are those who perform various duties for Partners and who do not receive monetary compensation or any of the benefits received by employees.

8.9 Intern Definition

Interns perform various duties for Partners Mauritania and may receive monetary compensation as independent contractors. All interns must comply with Partners' Code of Conduct. The guidelines for Partners' internship program is as follows:

- **Eligibility:** All interns who meet the following criteria are eligible for a stipend:
  - The internship is at least 6 weeks in duration but cannot exceed 9 months (academic year).
  - The intern is performing work that is related to their field of study or career interests.

- The intern is enrolled in an accredited educational institution or who is a recent graduate (within the last two years).
- The internship program must have a strong educational component. It may be coordinated with the University/College for credit purposes.

- **Compensation Amount:** The compensation amount for interns will be based on the stipend matrix below.
- **Payment Schedule:** Stipends will be paid monthly upon submission of an intern stipend timesheet in Excel or online via Pandadoc Stipend Form.
- **Taxation:** Interns are responsible for paying any applicable taxes on their stipend.
- **Work Hours:** Interns are expected to work a minimum of 12 hours per week, but no more than 40 hours per week. Overtime is not allowed.
- **Performance Expectations:** Interns are expected to produce their best work quality and have the same attendance, punctuality, and responsiveness as employees. Failure to meet these expectations may result in a reduction or revocation of the stipend.
- **Benefits:** Interns are not eligible for any benefits, including health insurance, retirement plans, or paid time off.
- **Termination:** The organization reserves the right to terminate an intern's compensation at any time for any reason, including but not limited to poor performance, misconduct, or violation of company policies.

8.9.1 Recruiting & Hiring of Interns

The recruitment and hiring of interns must follow Partners' internship recruitment procedure and the checklist.

8.9.2 Intern Stipend Matrix

As a guideline for an internship stipend, Partners Mauritania will utilize the following scale which takes into consideration education and years of experience. Placement in the below categories is based on current educational enrollment, or if not in school, most recent degree. All internship stipends are subject to availability of funds, among other factors:

GRADE	DAILY STIPEND

Grade A *In process for high school or Technician diploma or received high school diploma*	**USD $10.00**
Grade B *In process for bachelor's degree or received bachelor's degree*	**USD $15.00**
Grade C *In process for master's degree or received master's degree*	**USD $20.00**

Stipend values are based on a minimum of 12hr/week internship and minimum of 3hr/day. Exceptions must be evaluated and approved by the President & CEO.

8.10 Employee Definition

According to Article 4 of Mauritania's Labor Code, an employee is any person, regardless of gender, nationality, or legal status, who is legally subordinate to an employer, whether a natural or legal person, under public or private law, and regardless of the employer's legal status person. Employees who provide services under the direction and dependence of another in Mauritania are considered to be employees and are therefore subject to the labor laws.

8.10.1 Labor Contract Definition

According to Article 4 of Mauritania's Labor Code, a labor contract is an agreement by which an employee undertakes to place his or her professional activity, in return for remuneration, in the service of an employer under the latter's direction and authorization.

Per Partners Mauritania, individual contracts of employment must be written, and all salary quoted in gross MRU. The contract of employment should include all basic terms and conditions of employment such as wages/salaries, hours of work, overtime, and leave. If agreed upon, other benefits, which may include sickness benefits, promotion, redundancy, likely duration of the employment, etc., may be added.

Labor contracts shall be drafted in English and French side by side in two originals, one of which shall be given to each of the contracting parties. This includes all new contracts, modifications, and/or novation.

All the legally established employee benefits are deemed to be automatically included in any employment contract. The minimum legal terms and conditions apply by default, unless custom or practice in the workplace, or an applicable collective agreement, includes any other term which improves the employment conditions for the employee.

8.10.2 Types of Labor Contracts

Labor relations can be for a specific job, time, by season, or for an indefinite period of time and, where applicable, may be subject to trial or initial training. Below are the options for contracts at Partners Mauritania:

- Fixed-term/Temporary contract - According to Article 15 of Mauritania's Labor Code, the following are considered fixed-term employment contracts:
    - those whose duration is precisely defined by the parties using a unit of time;
    - one with a calendar date;
    - one whose term is subordinated to a future and certain event whose date is not exactly known;
    - a contract entered into for the performance of a specific work or undertaking, the duration of which cannot be precisely estimated.

  According to Article 16 of Mauritania's Labor Code, no employer may enter into more than two successive and uninterrupted fixed-term contracts with the same employee, nor renew a fixed-term contract more than once. The continuation of services after the expiry of a fixed-term contract, except in the cases provided for in the previous paragraph, automatically constitutes the performance of an employment contract of indefinite duration. According to Article 17 of Mauritania's Labor Code, no contract may be concluded for a fixed term of more than two years, including renewals.

- Open-ended/Indefinite period contract - According to Article 22 of Mauritania's Labor Code, open-ended employment contracts are any employment contracts that do not meet the definition of fixed-term contracts. In general, an employment relationship is subject to the principle of 'job stability', which states it's the employee's right to keep their job as long as the employment relationship so requires.

In the absence of express stipulations, the relationship will be for an indefinite period.

According to Article 6 of Mauritania's Labor Code, employment contracts are always individual. A team contract in which an employer hires several people at once, either directly or indirectly, in return for a collective, lump-sum remuneration, is prohibited.

8.10.3 Labor Contract Pay Structure

According to Article 193 of Mauritania's Labor Code, the worker's remuneration is determined either by collective agreement, by decree, or by agreement between the parties, in compliance with the minimum provided for by the regulations or collective agreement in force. All permanent staff members of Partners Mauritania are paid in accordance with the salary matrix.

Each position in a particular category is based on a combination of:

a) Level of responsibility

b) Qualifications required for this position

8.11 Content of Labor Contracts

Each labor contract must include the following elements:

- Full name;
- Nationality;
- Age;
- Sex;
- Domicile of the worker and the employer;
- Definition of the employment relationship - is for a specific job or term, initial training, permanent, and if it is subject to a probationary period;
- Service or services to be provided as specifically as possible (job description);
- Place or places where the work is to be performed;
- Duration of the day;

- Form and amount of the salary including any fringe benefits (holidays, annual leave, sick leave, maternity/paternity leave, bereavement leave, etc.);
- Day and place of payment of the salary;
- Indication that the worker will be trained or trained in the terms of the plans and programs established or established by the employer;
- Other working conditions, such as days of rest, vacations, and others agreed by the worker and the employer;
- The designation of beneficiaries for the payment of wages and benefits accrued and not collected upon the death of workers or those generated by their death or disappearance derived from a criminal act; and
- Signatures of the contracting parties.

Every employment agreement contains an implied relationship of mutual trust and confidence. Furthermore, employment agreements cannot contain an employee's acceptance to waive the necessary legal grounds for justified dismissal on the part of the employer and the minimum mandatory benefits provided by Mauritania's Labor Code.

8.12 Rights and Obligations of Workers and Employers

By entering into a labor contract, below are the obligations of each contracting party.

Partners Mauritania obligations are:

- Comply with the provisions of the labor standards applicable to the company;
- Pay the workers' wages and compensation, in accordance with the regulations in force in the company or establishment;
- Provide the workers in a timely manner with the tools, instruments, and materials necessary for the execution of the work, having to give them of good quality, in good condition and replace them as soon as they cease to be efficient;
- Comply with the regulations and official Mauritanian standards in matters of safety, health, and work environment;

- Allow the inspection and surveillance that the labor authorities practice in their establishment to ensure compliance with the labor standards and give them the reports that are essential for that purpose, when they request it; and
- Implement, in agreement with the workers, a protocol to prevent discrimination based on gender and care for cases of violence and sexual harassment or harassment, as well as eradicate forced and child labor.

Partners Mauritania's prohibitions are:

- Refusing to accept workers for reasons of ethnic or national origin, gender, age, disability, social condition, health conditions, religion, opinions, sexual preferences, marital status, or any other criteria that may give rise to a discriminatory act;
- Demand or accept money from workers as a bonus because they are admitted working or for any other reason that refers to its conditions;
- Force workers, by coercion or by any other means, to join or withdraw from the union or group to which they belong, or to vote for a certain candidacy, as well as any act or omission that violates their right to decide who should represent them in the negotiation collective;
- Execute any act that restricts workers the rights granted by law;
- Make political or religious propaganda within the establishment;
- Perform acts of harassment and / or sexual harassment against any person in the workplace;
- Allow or tolerate acts of harassment and / or sexual harassment in the workplace; and
- Other provisions as established by the Mauritanian Federal Labor Law.

The worker's obligations are:

- Comply with the provisions of the labor standards that are applicable to them;
- Observe the provisions contained in the regulations and official Mauritanian standards in matters of safety, health, and work environment, as well as those indicated by the employers for their safety and personal protection;

- Carry out the service under the direction of the employer or his representative, to whose authority they will be subordinate in everything concerning the job;
- Carry out the work with the appropriate intensity, care, and dedication and in the agreed manner, time, and place;
- Give immediate notice to the employer, except unforeseen circumstances or force majeure, of the justified causes that prevent him from attending his work;
- Restore unused materials to the employer and keep the instruments and tools that he has given them for the job in good condition, not being responsible for the deterioration caused by the use of these objects, nor for that caused by unforeseeable circumstances, force majeure, or due to poor quality or faulty construction;
- Providing aid at any time it is needed, when an accident or imminent risk endangers the people or interests of the employer or his co-workers;
- Communicate to the employer or his representative the deficiencies that they notice, in order to avoid damages or losses to the interests and lives of their co-workers or employers; and
- Keep the technical, commercial, and manufacturing secrets of the products to which they directly or indirectly produce, or of which they have knowledge due to the work they perform, as well as reserved administrative matters, the disclosure of which may cause damage to the company.

The worker's prohibitions are:

- Carry out any act that could endanger their own safety, that of their co-workers or that of third parties, as well as that of the establishments or places where the work is carried out;
- Missing work without just cause or without permission from the employer;
- Subtract from the company or establishment useful work or raw or elaborated material;
- Reporting to work under the influence of any alcohol, narcotic, or unnerving drug, unless there is a medical prescription;
- Carrying weapons of any kind during working hours, unless the nature of the work requires it;

- Use the tools and supplies provided by the employer, for a purpose other than the one for which they are intended; and
- Sexually harass or harass any person or perform immoral acts in the workplace.

8.13 Probation Period 90/180 Days

Probation is a specified period of time at the beginning of employment during which Partners Mauritania and employee test each other. According to Article 8 of Mauritania's Labor Code, the conclusion of a definitive employment contract may be subordinated to a trial engagement in which the parties agree to assess:

- the employer: the quality of the employee's services and their productivity
- the employee: working, living, remuneration, health and safety conditions, and the company's social climate

At the end of the probationary period if Partners Mauritania considers at its sole discretion that the employee does not have the required knowledge or abilities to perform the position duties, it may terminate employment agreement.

If an employment agreement is indefinite or fixed term exceeding 180 days, the new employee is subject to a probationary period of 90 days. For executive positions, which are defined as individuals in positions of leadership, management, or others that exercise functions related to direction and administration of the business, the probationary period will be extended 180 days. The probation period is to occur only once during the period of an individual's employment with Partners Mauritania.

Near the conclusion of probationary period, the supervisor shall meet with the employee in question to discuss the adequacy of the employee's performance. Should the supervisor determine that the employee is not performing adequately but that the problems can be corrected, and if the employee is willing to do so, a correctional program can be agreed upon. The supervisor can recommend either continued employment or termination of the employee in question to the FO Director, who shall consult with the Partners HQ prior to any such termination. At the end of the probationary period, if the candidate does not meet the requirements of the position, he/she may be terminated at the end of his/her probation, without notice, but he/she will be entitled to the bonus and leave proportional to the number months of service and will be compensated for all time worked.

8.14 Suspension & Termination of Labor Contract

Labor contracts may be terminated entirely or suspended for a period in certain circumstances.

8.14.1 Temporary Suspension of Labor Contract without Liability for the Parties

According to Article 38 of Mauritania's Labor Code, employee-initiated contract suspension occurs in the following instances:

1. During the worker's military service and compulsory periods of military training;
2. During a period of absence limited to six (6) months, due to accident or non-occupational illness duly certified by an approved physician, this period is extended until the worker is replaced;
3. During the period of temporary incapacity to work due to a work accident or an occupational disease;
4. During the leave of a female employee benefiting from the provisions of Article 39;
5. During a strike initiated in compliance with the procedure for settling collective labor disputes;
6. During the period of non-remunerated absences of the worker authorized or excused by the employer by virtue of the regulation or individual agreements;
7. During the period of disciplinary lay-off of the worker or the staff representative by decision of the employer;
8. During the worker's preventive detention;
9. During the duration of leave, plus any waiting and travel periods defined in articles 183 and 214;
10. During the period of pilgrimage to the Holy Places of Islam. However, the worker will benefit once in his professional life and within the limit of thirty (30) consecutive days from all the effects produced by his contract; or

11. During the employee's waiting period, up to a maximum of one hundred and thirty consecutive days, without prejudice to the provisions of Islamic Sharia law on the subject.

8.14.2 Termination of Labor Contract

Termination of employment is the final, permanent, and irrevocable severance of the employment relationship between employer and employee. This may occur for a variety of reasons and may be initiated by either employer or employee. The law requires that all salaries and other applicable employee benefits must be paid to the employee up to the date of their dismissal, whether the dismissal is for a just cause.

There are 3 (three) ways in which a labor contract can be terminated.

1) *As a matter of law*; without the need for legal proceedings or a court decision.
    - Expiry of the period laid down in the contract
    - Grounds for termination expressly stipulated in the contract
    - Death of the employee or duly proven case of force majeure
    - Complete and final closure as a result of the death of the employer
    - Early close-down of the project due to local political or economic conditions. In the case of early close-down, it is Partners Mauritania's policy is to try and give its employees 60 days' notice, when circumstances permit.
2) *By mutual consent of the parties* - The cancellation must be confirmed in writing. Partners Mauritania will follow the Labor Code in regard to final payment of time worked and benefits.
3) *By the will of one of the parties* – Any termination shall be subject to a written prior notice by the party initiating the termination. The cause of the termination must be mentioned in writing.

Resignation with Cause: The employee if wishing to terminate the labor contract without liability, must notify the employer on one of the following:

- The employer or, as the case may be, the employer's group, when proposing the work, deceived him/her with respect to the conditions. This cause of termination shall cease to have effect after thirty days of rendering services to the employee;
- The employer, his family members or any of his representatives, within the service acts dishonestly or acts on violence, threats, insults, harassment and/or sexual harassment, bad treatment or other similar acts against the employee, spouse, parents, children, or siblings;
- Incurring the employer, his relatives, or workers, outside the service, in the acts referred to in the preceding section, if they are so serious as to make it impossible to comply with the employment relationship;
- Reduce the employer's salary of the worker;
- Failure to receive the corresponding salary on the agreed or customary date or at the agreed or customary place;
- Suffer damages caused maliciously by the employer;
- The existence of a serious danger to the safety or health of the worker or his family, either because the establishment lacks hygienic conditions or because the preventive and safety measures established by law are not in compliance;
- The employer, by his inexcusable imprudence or carelessness, compromises the safety of the establishment or of staff; and
- To demand the performance of acts, conducts or behaviors that undermine or violate the worker's dignity; and
- Other items similar to above that are equally serious and of similar consequences, as far as work is concerned.

Resignation: The worker can resign freely, provided that he complies with the notice period set out in section Mandatory Notices for Termination of Labor Contract and does not commit any abuse of rights. Abandonment of post, regardless of its duration, cannot be considered as a resignation, but can constitute a breach justifying the termination if such abandonment is not authorized or excused by the employer.

Commented [KM10]: Updated becase Article 45 doesn't refer to employee resignation @Danielle

Partners Mauritania's policy is to discourage terminations as much as possible by trying to make the work and the employment relationship satisfying and rewarding, and by trying to resolve problems as quickly as possible. However, Partners Mauritania will not alter its policies to retain employees. If an employee decides to voluntarily terminate the work relationship, Partners Mauritania requires that the employee notify the FO Director beforehand in writing. It is expected that the employee will give the FO Director a minimum of 15 (fifteen) days written notice. The FO Director or his/her designee shall meet with the departing employee in order to determine the cause of resignation. Employees terminating their employment on a holiday will be treated as having terminated the day before the holiday.

Commented [KM11]: Updated to match Jamaica @Danielle

Commented [KM12]: Deleted reference to Article 45 because it doesn't refer to notice employees must give. I don't think the law stipulates, so we can establish # of days @Danielle

Termination with Cause: Partners Mauritania if wishing to terminate the labor contract of an employee without liability, Partners Mauritania will inform the employee on one of the following grounds:

- Lack of integrity by the worker,
- Use of false documentation to gain employment;
- Dishonest or violent behavior against the employer or the employer's family;
- Dishonest or violent behavior against co-workers that disrupts work;
- Acts of harassment or sexual harassment directed toward any person in the workplace;
- Sabotage of the workplace;
- Negligence;
- Carelessness that threatens the safety of the workplace and of other workers;
- Immoral acts in the workplace;
- Disclosure of trade secrets;
- More than three unexcused absences in a 30-day period;
- Insubordination;
- Failure to adopt preventive measures or to follow procedures to avoid accidents or illnesses;
- Reporting to work under the influence of alcohol or narcotic drugs; and
- Incarceration

Prior to any termination decision, the Partners Mauritania must inform the worker in writing stating the alleged reason and inviting him to provide explanations in writing within forty-eight hours.

According to Article 46 of Mauritania's Labor Code, the contract termination may take place without prior notice in the case of serious misconduct left to the appreciation of the competent jurisdiction.

Commented [KM13]: Updated to correct Article @Danielle

Termination without Cause: If Partners Mauritania terminates the for any reason that differs from what is established by law or agreement, the employer may pay the employee severance for time served (see section 8.17 Severance) and proportional labor benefits (i.e. annual leave).

8.15 Exit Interviews

Exit interviews provide an opportunity to gather feedback, identify areas for improvement, and gain insights into the employee experience within Partners. Partners values the opinions and feedback of our employees. As part of our commitment to continuous improvement, we conduct exit interviews to gain valuable insights into the reasons for an employee's departure and to identify opportunities for enhancing our workplace environment.

Departing staff will be asked for an exit interview within their last 2 weeks, although it is optional. HR will be responsible for conducting the exit interview.

During the exit interview, staff members are requested to express themselves freely. It is hoped that this exit interview will provide insights into possible improvements we can make. All information will be kept strictly confidential and will in no way affect any reference information that Partners management will provide. Exit interviews are written and stored in the employee's file.

8.16 Mandatory Notices for Termination of Labor Contract

Below employees will find the mandatory notice periods for termination of labor contracts.

8.16.1 Notice Period for Fixed-Term Labor Contract

According to Article 45 of Mauritania's Labor Code, in the event of early termination of a fixed-term contract subject to approval, the employer must notify the authority which approved the contract within fifteen (15) days.

8.16.2 Notice Period for Indefinite Labor Contract

According to Article 46, an open-ended employment contract can always be terminated at the will of one of the parties. Prior to any decision to dismiss, the employer must inform the employee in writing, stating the alleged reason and inviting the employee to provide written explanations within forty-eight (48) hours. Any termination is subject to prior written notice of seven (7) days by the party initiating the termination. The reason for termination must be given in writing. The notice period must not be subject to any suspensive or resolutory condition. It begins to run from the date of delivery of the notice. However, the contract may be terminated without notice in the event of gross negligence, subject to the discretion of the competent court.

Commented [KM14]: Contrary to what we said above under "resignation", giving employees 15 days to terminate @Danielle

According to Article 49, in order to look for another job, the employee under an open-ended (indefinite) employment contract is entitled to one (1) day's leave per week during the period of notice, either as a whole or on an hour-by-hour basis, paid at full salary. Free time is taken at the initiative of the employee, who must notify his or her employer at the latest the day before the absence. The party for whom these obligations are not respected is exempted from observing the remaining notice period, without prejudice to any damages it may claim for the loss thus caused.

8.16.3 Pay in Lieu of Notice for Indefinite Labor Contract

According to Article 50, any breach of an open-ended contract without notice or without the notice period having been observed in full, subject to the provisions of article 49, paragraph 3, entails the obligation for the party responsible to pay the other party an indemnity known as "indemnity in lieu of notice", the amount of which corresponds to the remuneration and benefits of any kind that the employee would have received during the notice period that was not effectively observed. If the employment contract is terminated during the employee's leave, the compensation in lieu of notice, calculated in accordance with the provisions of the previous paragraph, is doubled. However, a dismissed employee who finds a job during the notice period may leave the employer immediately without being liable to pay compensation, subject only to notifying the employer of his or her definitive departure.

8.17 Severance

Partners Mauritania will provide severance payments to the employee in accordance with the following:

- Dismissal with just cause: Employees terminated with cause do not receive severance payment.
- Dismissal without just cause: Severance pay will be provided by the employer and the calculation will be based on the employee's last month of salary in MRU. Termination without cause receives one-month salary for every year of service or in proportion to the period of continuous service where this is less than one year.
- Resignation: Severance pay does not apply if the employee terminates the contract voluntarily.

8.18 Record Keeping for Personnel

Partners Mauritania requires that all documentation related to the solicitation, hiring, review and termination of employees be retained in secure personnel folders. These folders should all reprimands, warnings, and suspensions of each for each employee with dates and reasons. Any required documents/provisions from the donor should also be included in the personnel record. Individual personnel folders/files should be maintained for all employees. All information provided by the employee is, and remains, confidential, and the documents in his/her file may not in any way be accessed by unauthorized personnel.

For each Partners Mauritania staff member there will be an individual file which will include:

1) The CV;

2) A copy of the certificates and diplomas mentioned in the CV;

3) The job application form;

4) The employment contract;

5) The job description;

6) Any documentation indicating a salary increase;

7) The Employee Evaluation Forms;

8) Any document relating to a change in position, transfer, or promotion;

9) Any offer letters or warning letters; and

10) Record of paid leave or any other special leave requested and obtained

11) All documents related to:

a) Resignation

b) Revocation

c) Lay-off

d) Other causes of separation.

Partners Mauritania reserves the right to verify the authenticity of any document submitted by the employee. All HR folders must be saved on SharePoint, and in accordance with Partners' policy on HR Files.

8.18.1 Access to Personnel Records

The only individuals at Partners Mauritania, who have access to the personnel files, are FO Director, the Administrative and Financial Director. Employees will not be allowed to access or review their personnel files, however, upon special authorization and approval from FO Director, the employee may review their file. This review must be done in the presence of FO Director. Reference Partners Mauritania's full policy on Privacy & Personally Identifying Information.

9. Worktime, Workdays and Holidays

9.1 Normal Work Hours

Legal working hours may not exceed forty (40) hours a week. The workweek of Partners is seven (7) consecutive days (Sunday – Saturday). The normal work schedule for all full-time employees is five (5) consecutive days a week beginning on Monday. Normal business hours for regular, full-time Partners Mauritania personnel are 8:00 AM – 5:30 PM Monday through Thursday and 8:00 AM – 12 PM Friday and assumes a half-hour lunch break. Time taken for lunch is estimated at half-hour. All employees must be available during Partners Mauritania's core work hours of 11:00 AM - 4:00 PM, although responsibilities may require more than this period.

All staff are required to account for all workdays Monday through Friday (unless there is a holiday) by working a regular day or taking the appropriate type of paid leave. There is no exception to this rule, regardless of the number of days within the month, all workdays Monday through Friday must be accounted for.

9.1.1 Communications outside of office hours

If staff receive emails, Teams messages, or other communications outside the set working hours above or on weekends, employees are not expected to respond until their usual working hours, unless requested otherwise. Employee's will receive a message in Teams and email marked as "urgent" if a respond is needed outside of working hours due to an emergency or otherwise urgent situation which requires immediate attention.

Staff are encouraged to use the function "schedule emails to send" in Outlook and "schedule message to send" in Teams when message are not urgent, so they arrive to employees during normal business hours.

9.2 Overtime and Limitations

Overtime refers to any hours worked beyond normal working hours listed above. Partners Mauritania policy is not to expect, require, or encourage any of its local-hire employees to work overtime. Partners Mauritania believes that the daily work assigned to its employees can be done as part of her/her regular schedule. Therefore, working overtime is not allowed.

9.3 Rest and Break Time

Below is the list of rest and break times allotted to all employees at Partners Mauritania:

- Short Breaks: Short breaks of 5-20 minutes are offered for every 4 hours worked and therefore count as time worked.
- Half-Hour Lunch Break - The worker shall be granted one half hour of rest for lunch.

9.4 Lactation Break

In accordance with Article 42 of Mauritania's Labor Code, female employees have the right to express breast milk in the workplace. Any mother breastfeeding her child may, for this purpose, have at her place of work with privacy, two paid breaks of 30 minutes each within each day to breastfeed her child for fifteen (15) months after the child's birth each time the employee has a need to express milk.

Employees who need to take lactation breaks are encouraged to give Partners notice of the intent to take breaks. The employee may choose to join the two breaks for a 60-minute late arrival or early dismissal. Partners will grant additional breaks if the worker presents a medical certificate in which the reasons justifying the greater number of breaks is stated. Employees will not be discriminated against or retaliated against for exercising their rights under this policy.

9.5 Weekly Rest Day

In accordance with Article 174 of Mauritania's Labor Code, after a period of five consecutive working days (regardless of the number of hours worked during this period) or 40 hours per week, all workers are entitled to a paid rest. This day of rest includes at least twenty-four (24) consecutive hours. If an employee is required to work on a day of rest, those hours are compensated according to Section 9.7 Compensatory Time.

Commented [DM15]: For lawyer, the law says "The weekly rest period must be twenty four consecutive hours at least; it must be given on Fridays."

Can we choose to provide this day on the weekend? Sunday or Saturday? Or are we out of compliance since the law requires Friday.

9.6 Holidays

The following holidays are observed by Partners:

- New Year's Day
- Eid al-Fitr (End of Ramadan)
- Fête du Travail (International Labor Day)
- Journée de l'Afrique (Africa Day)
- Id el-Adha or Tabaski
- 1st of Muharram (Muslim New Year)
- Id el-Mawlud (Prophet's Birthday)
- Mauritania's Independence Day
- All workdays between December 26 and New Year's Day

Additional holidays may be added, if required by Mauritanian law.

When a holiday occurs on the weekend, Partners will observe the holiday on the day observed by the federal government. When a holiday observed by Partners falls within an employee's vacation period, accrued vacation is not charged on that day. In accordance with Article 176 of Mauritania's Labor Code, holidays that are actually not worked give rise to additional pay only for workers paid by the hour or by the day.

If Partners requires an employee to work or travel during a Partners' approved holiday, a compensatory day will be provided.

9.6.1 Floating Holidays

Floating holidays offer flexibility, enabling employees to celebrate personal, religious, or cultural events that may not be covered by the standard Partners holidays. A floating holiday is a paid day off that substitutes one of Partners' regularly observed holidays. Floating holidays include religious or cultural holidays, employee birthdays, anniversaries (work or personal), or other state or federal holidays during which Partners remains open. A floating holiday cannot be used interchangeably as a paid leave.

Employee can elect to use up to four (4) floating holidays a year. Employees must work the regular Federal holiday and determine which day they will recognize in lieu of that holiday. Employees must specify the event for which they are requesting to use a floating holiday. The request must be scheduled and approved in advance by the employee's immediate supervisor.

Floating holidays will not be carried over to the next calendar year, nor may they be paid out if not taken or upon termination of employment.

9.7 Compensatory Time

The purpose of this policy is to provide guidelines for compensatory time off for eligible exempt employees in lieu of overtime pay, fostering a healthy work-life balance and recognizing employees' efforts. Salaried employees may be eligible for compensatory time at Partners' discretion. In this regard, time is available to exempt employees after periods of unusually excessive work with the intention they use this time to catch up on personal matters and to rest.

If Partners requires an employee to work or travel during a Partners' approved holiday, a compensatory day will be provided. If an employee chooses to work on the holiday, and would like to switch days, the employee must use a floating holiday.

Employees will speak with their supervisor to request compensatory time. The employee's supervisor will make the formal request for compensatory time. All request for comp time must be emailed to poahr@partners.net. The request must include number of days requested and the date proposed to use the time. Requests will be reviewed by HR for consistency among units to confirm if comp time is permitted. Supervisors will review the dates proposed for comp time to ensure it works with unit/programmatic needs.

Compensatory time is not related to hours or days worked and does not accumulate or accrue. Any compensatory time must be taken within thirty (30) calendar days following the end of the qualifying events/deliverable, unless an exception is approved in writing by HR.

Illustrative examples of when compensatory time may be requested by the employee to their supervisor:

Employees may be eligible for one (1) day (8 hours) of compensatory time within thirty (30) working days of time for the following circumstances:

- Employee recognition for exceptional performance with approval from HR. All *recognition* award recipients must meet the following criteria:
    - The employee's accomplishments exceed the normal standards/expectations for the job.
    - The employee has fulfilled all normal job duties in addition to performing added duties to accomplish a special project or achieve a certain goal.
    - The employee serves as a role model for others, displaying desirable characteristics such as outstanding customer service, positive attitude, and team leadership.
    - Examples include:
        - **Outstanding achievements and accomplishments.** Demonstrated and sustained outstanding achievements that consistently exceed goals and job expectations.
        - **Teamwork.** Acting as an exceptionally effective and cooperative team member or demonstrating superior interactions within and outside the company and the client population served.

   - **Length of service.** A commitment to Partners of the Americas through long-term service.
- Travel for business purposes beyond their regular working hours. Staff who travel on a Saturday, Sunday, or holiday. If a staff member traveled on a Saturday and Sunday, they would receive two (2) days of compensatory time. Compensatory time will apply to extended travel for travel over multiple weekends, however, it would not mean an exact 1:1 compensation of weekend days spent traveling.
- Staff involved in preparation or conducting annual audit on weekends or working excess hours (over 9 hours/day) during the weekday. Email will be sent by audit manager indicating the employees eligible for this day.
- Staff involved in business development proposal preparation, writing, and reviewing on weekends or working excess hours (over 9 hours/day) during the weekday. Email will be sent by proposal manager indicating the employees eligible for this day.

For exceptional instances and additional qualifying events outside of the illustrative examples above, approval must come from the employee's supervisor and HR.

All compensatory time requests must be tracked and recorded properly on the employee's timesheets in the Replicon. Employees should enter compensatory time as regular hours, with a comment indicating the approved reason for the compensatory time.

10. Wages and Social Benefits

10.1 Wages

All employees will be remunerated for work provided to Partners Mauritania. This wage or salary can be paid per unit of time, per piece work or it can be fixed. Salaries shall be paid in the legal currency of Mauritania.

In order to receive remuneration for time worked, all employees will need to complete timesheets in Replicon. Time records are legal documents and the basic source of information for payroll purposes; therefore, time worked must be reflected accurately and in accordance with the Section 10.3 Timekeeping. All staff is responsible for approving their timesheet to certify the accuracy of all time recorded. Each supervisor will review for accuracy and approve the time sheets after the employee submits. Remuneration to all employees will be based on the approved timesheets only.

All tax and other required deductions as mandated by local law will be withheld from each paycheck. Salaries will be paid on a monthly basis, no later than the last day of each month, or the last working day prior of those days, by bank transfer.

Partners takes all reasonable steps to ensure that employees receive the correct amount of pay in each paycheck and that employees are paid promptly on the scheduled payday. However, employees are responsible for the following:

1. **Regular Paycheck and Paystub Review:** Employees should check their paychecks regularly, to ensure that all hours worked, bonuses, deductions, and other compensation components are accurately reflected. Each pay period employees must examine paystubs and ensure accuracy of the detailed information including gross earnings, deductions (such as taxes, retirement contributions, insurance premiums, etc.), and the net amount received.
2. **Contact HR:** If an employee identifies any issues or discrepancies in their paycheck, they should promptly contact HR to discuss and resolve the matter. This might involve providing additional documentation.
3. **Timely Reporting and Record Keeping:** Employees must report any concerns regarding their paychecks as soon as possible to expedite the resolution process. Employees should keep a record of their paychecks and pay stubs, along with any communication related to paycheck concerns, for future reference if needed.

Partners will make good faith efforts to ensure that any improper deductions or discrepancies concerning pay do not reoccur.

10.2 Wage & Leave Advances

No wage or salary advances are allowed. Payroll is issued after the hours worked are completed and done. Furthermore, no advance leave for vacation, sick, or other leave may be taken.

10.3 Timekeeping

As recipients of federal funds, Partners is required to maintain an accurate and timely system regarding labor charges. Employees shall enter their actual hours worked on a timesheet daily indicating labor charges and use of leave or holidays. Timesheet hours must be coded to the appropriate grant/activity based on actual hours worked within the 40 hour work-week.

10.3.1 Completion and Submission of Timesheet

Timesheets must be completed by the employee, accurately indicating labor distribution based on project/activity as well as use of leave. Partners uses an electronic timesheet software called Replicon. You will be given a username and password, as well as instructions for use by HR.

In order to ensure accurate timekeeping in the field, each employee will be responsible for utilizing his/her account in Replicon to accurately record hours worked and request all types of leave. Moenhly, employees will be responsible for reviewing and certifying their hours worked by clicking “submit” timesheet in Replicon. Subsequently, the respective employee’s supervisor will need to log in and review and approve of the hours worked and click “submit.” All timesheets will not be considered completed until both the employee and the supervisor have certified the timesheet. Monthly, all timesheets should be printed anccordance with 4.2 Filing and Records.

Any leave that is not requested and recorded in Replicon correctly will be disallowed and not approved. Failure to accurately report time and/or leave requests, repeated tardiness with timesheets and/or approvals may result in disciplinary action. can result in disciplinary action, up to and including termination.

10.3.2 Due Dates for Timesheets

Timesheets are semi-monthly with one timesheet covering the 1-15th, and a second covering the 16th – end of month. Employees must submit timesheets within 1 day of the end of the reporting period (i.e. timesheet for 1-15th, will be submitted by COB the 16th). If the submission day fails on a holiday, weekend, or other paid leave, the timesheet must be submitted the last business day prior. Supervisors’ approval is due within 2 days of the end of reporting period (i.e. timesheet for 1-15th, will be approved by COB the 17th).

10.3.3 Timesheet Responsibilities

Payroll is a critical process since it involves personal finances of our staff. Employees are responsible for honest representation of how their time is allocated among programs and for accurate disclosure of use of leave. Supervisors are responsible for ensuring accuracy of the timesheet before approving it for pay. The Finance office is responsible for ensuring the soundness of the system and for processing payroll. Compliance Auditors check timesheets to ensure compliance with the time reporting policy and federal requirements. If an employee does not comply with Partners' time reporting policy or procedures, Partners management may take disciplinary action.

10.4 Pay Slips (Paystubs)

In accordance with Article 221 of the Mauritanian Labor Code, all employees should receive a pay slip with their salary payment (regardless of method of payment) that documents the details of the payment. Pay slips should include the following information:

1. Name of employee
2. Period to which the payment applies
3. Units, rate, and extended amount of gross salary or wage payments
4. Units, rate, extended amount, and description for each additional category of pay
5. Units, rate, extended amount, and description for each deduction
6. Taxes withheld on behalf of the government or other taxation authority (as applicable)
7. Subtotaled net pay amount

The pay slips are completed using information from the reviewed and approved bi-monthly payroll timesheets.

10.5 Wage Deductions

A deduction is any withholding from an employee's salary payment made by Partners Mauritania.

Health insurance premiums for employee's dependents will be withheld from the employee (as applicable).

10.5.1 Statutory Deductions

The following deduction is mandated by Mauritanian law to be withheld from all remuneration payments: Mauritanian Institute of Social Security (IMSS).

Note that except for the social security contributions payable by the employees, Partners Mauritania will not make withholding on the salaries paid to its employees in Mauritania. It will be the responsibility of each employee to calculate his/her income tax, to file the monthly tax returns and to pay the same to the Mauritanian tax authorities. Since Partners Mauritania tax regime is a non-obligated entity, it does not allow Partners Mauritania to make any tax withholding, pursuant last paragraph of article 96 of the Income Tax Law applicable in Mauritania.

10.5.2 Other Deductions

The following deduction may only be made when there is a prior written agreement between the employee and Partners Mauritania:

- Deduction to reduce a salary advance
- Garnishment for alimony payments to a spouse or other family members
- Reimbursement for damages to office, products, etc.

The amount payable may in no case exceed the amount of one month's wages and the discount will be as agreed upon by the worker and the employer, but may not exceed thirty percent of the excess of the minimum wage; except in the case of termination of the employment contract when the reimbursement guarantees given by the worker are insufficient.

10.6 Bonuses & Benefits

10.6.1 13th Month Bonus

Partners Mauritania pays their employees a 13th Month Bonus before the end of December each year, equal to one-twelfth (1/12) of the total regular salary earned during the year. For the calculation of the bonus, regular salary excludes tips, overtime and benefits received from profit sharing (if applicable). If the employee did not work for the entire period, the bonus must be paid proportionately to the time worked.

10.6.2 Life Insurance

Private life insurance is provided to all Partners Mauritania staff and 100% paid by Partners Mauritania. Coverage will be in local MRU, but equivalent to $25,000 - $30,000 USD. This coverage typically offers a death benefit equivalent to a multiple of the employee's annual salary, providing financial support to beneficiaries in the unfortunate event of the employee's death.

10.6.3 Health Insurance

Health insurance is offered to all Partners Mauritania staff. Partners Mauritania will cover 80% of the premium for the employees, spouses, and dependents. The remaining 20% is deducted from the employee's paycheck after receipt of an employee's enrollment form. Upon termination, employee's health coverage will continue through the last day of the termination month.

10.6.4 Workers' Compensation

Health Work-related injuries, illnesses, or disabilities are covered through a Workers' Compensation insurance program for all employees. The entire cost of the insurance program is paid by Partners. Information on the Workers' Compensation policy is on SharePoint. Please be aware that there are waiting periods before wage replacement benefits go into effect.

10.6.5 Professional Development Policy

Partners supports the professional development of its employees. Eligible staff may request reimbursement from the Professional Development fund for up to $750 USD per calendar year for training, conferences, coursework, and other forms of capacity-building that require a paid fee. Professional development will be considered on an individual basis, in consultation with the employee's supervisor and HR. There is a strong bias for short-term, practical training that bears on current or prospective responsibilities. Once a Professional Development program has been identified by the employee, they must complete the Professional Development Application Form in PandaDoc to request approval. Further details can be found in Annex N.

The designated budget outlined in this policy is contingent upon the availability of funding. The allocation of funds is subject to review and adjustment based on the financial resources available at the time. This means that while the policy provides a framework for budgeting, the actual funding may vary depending on the financial situation and resources of the organization. Any changes to the budget due to funding availability will be communicated accordingly.

10.7 Paid Leave

All employees will be entitled to the following paid leave, in addition to all the holidays mentioned above.

Protocol for Planned Leave

Submit leave requests via Replicon under Time Off Requests > Request Time Off with as much advance notice as possible. **For all planned leave, employees must receive approval in system prior to taking the paid leave.** Email approval is not sufficient and the time off must be requested and approved in Replicon prior to the leave start date.

10.7.1 Annual Leave (Vacation)

In accordance with Article 181 of Mauritania's Labor Code, vacation time is accrued by full-time employees from the outset of their employment at the rates shown below:

- **Employees with 0 to 3 years of service:** 20 workdays per year (accrued at the rate of 1.67 days per pay period)
- **Employees with 3 to 10 years of service:** 25 workdays per year (accrued at the rate of 2.08 days per pay period)
- **Employees with 10 to 15 years of service:** 30 workdays per year (accrued at the rate of 2.5 days per pay period)
- **Employees with 15 to 20 years of service:** 42 workdays per year (accrued at the rate of 3.5 days per pay period)
- **Employees with more than 20 years of service:** 54 workdays per year (accrued at the rate of 4.5 days per pay period)

Accrued unused annual leave will be paid upon termination of employment.

10.7.1.1 Use of Annual Leave

Employees are eligible to take vacation (annual leave) with pay as soon as it is accrued. Employees may use annual leave in three-hour increments. Any leave necessary for under three hours should be done in coordination with the employee's supervisor and the hours made up accordingly.

Vacation (annual leave) must be coordinated with working associates to ensure adequate coverage in the office. All vacation leave must be requested in Replicon and approved by the employee's supervisor in the system prior to the leave being taken. Requests must be made at least one (1) week prior to the start date of annual leave.

10.7.1.2 Advance Leave
Paid leave is limited to the number of hours which have been accrued. Advance leave is not allowed. Partners cannot pay an employee for time not worked. With supervisor approval, employees may opt for leave without pay if they have exhausted all paid leave.

10.7.1.3 Vacation Carryover
Employees are encouraged and expected to take their annual leave. Partners will try to accommodate employee vacation plans and will fully be able to do this if the employee and the supervisor agree on vacation plans with ample lead time. As of December 31st each year, employees will be able to carry over a maximum of:

- Employees with 0 to 3 years of service: 20 workdays per year
- Employees with 3 to 10 years of service: 25 workdays per year
- Employees with 10 to 15 years of service: 30 workdays per year
- Employees with 15 to 20 years of service: 42 workdays per year
- Employees with more than 20 years of service: 54 workdays

Any days above the number listed above will be fortified.

10.7.1.4 Annual Leave Payout upon Termination
In case of suspension, dismissal, or resignation of the employee for any reason before the expiration of his year of service, and whatever the duration of employment, the worker is entitled to payment of his/her portion of annual leave based on the accruals indicated in Replicon. Employees are entitled to the number of days of regular annual leave accumulated up to the date of termination. The payment is based on the salary earned at the time of termination.

The payout of vacation must match the days accrued in Replicon. Vacation is prorated on the initial and last month of service for the purposes of the termination payout.

10.7.2 Sick Leave
All employees are entitled to a total of 12 working days of sick leave per year without a reduction in salary, paid by Partners Mauritania. This is accrued at the rate of 1 day per month. If the employee does not have one year of service, sick leave will be calculated in proportion to the length of service already provided.

Sick leave is not cumulative nor paid out upon termination or resignation of the employee for any reason before the expiration of his year of service.

Commented [KM16]: @Danielle, doesn't this contract the sick leave carryover policy below?

10.7.2.1 Use of Sick Leave

All employees receive paid sick and safe leave for use under certain circumstances. Employees may use sick leave in three-hour increments. Any leave necessary for under three hours should be done in coordination with the employee's supervisor and the hours made up accordingly.

Sick leave exceeding three (3) days in one regular work week will only be granted upon presentation of a medical certificate issued by the attending physician.

All sick leave requests must be tracked and recorded properly on the employee's timesheets.

10.7.2.2 Reasons for Leave

Paid sick leave accrued may be used by an employee for any of the following reasons:

- **Personal Illness or Injury:** Employees can use sick and safe leave when they need to address their own physical or mental health conditions, including medical appointments, menstruation, recovery from illness or injury, or preventive care.
- **Family Member's Illness:** Sick and safe leave can be used to care for a family member who is ill or injured, and whose health condition requires care.
- **Medical Appointments:** Sick and safe leave can be used for medical, dental, or optical appointments for the employee or their family members.
- **Domestic Violence or Sexual Abuse:** Employees can use sick and safe leave to seek medical attention, legal assistance, or counseling related to domestic violence, sexual abuse, or stalking for themselves or the employee's family member.
- **Mental or Physical Health:** Employee can use leave for mental health days, counseling, and other health-related reasons.
- **Grieving**: Employee can use leave for mental health day for grieving the loss of friends/family.
- **Child's Immunization:** Employees can use sick and safe leave to take their child to receive immunization shots.

- **Pregnancy and Postpartum Recovery:** Sick and safe leave can be used for pregnancy-related medical appointments and recovery from childbirth.

Covered family members include spouse, domestic partner, children (including foster children), grandchildren, parents and grandparents, siblings, and spouses of siblings. Also included are a child who lives with an employee and for whom the employee permanently assumes and discharges parental responsibility and a person with whom the employee shares or has shared for at least the preceding 12 months a mutual residence, and with whom the employee maintains a committed relationship.

10.7.2.3 Sick Leave Carryover

On January 1st of each year, the sick leave accrual balance will reset. The maximum carry over value is up to 12 days (96 hours). Any days above 12 days will be fortified.

10.7.3 Pregnancy Accommodation

Partners will provide reasonable workplace accommodations for employees whose ability to perform job duties is limited because of pregnancy, childbirth, breastfeeding, or a related medical condition. The employee with a pregnancy-related disability is responsible to notify Partners of the need for accommodation and to work with management concerning the need for accommodation. Partners will make all reasonable accommodations that are advisable as determined by a healthcare provider.

Pregnant employees who wish to request an accommodation must submit a medical certification. The certification must include: (1) the date the accommodation became or will become medically advisable; (2) an explanation of the medical condition and need for a reasonable accommodation; and (3) the probable length of time the accommodation should be provided. The accommodations may vary dependent on the medical advisability and could include changing the employee's job duties, changing the employee's work hours, transferring the employee to a less strenuous or less hazardous position, or providing leave. A transfer may be considered as long as the transfer does not require Partners to create additional employment that Partners would not otherwise create, add an undue burden on other employees, discharge any employee, transfer any employee with more seniority than the pregnant employee requesting the transfer, or promote any employee who is not qualified to perform the job.

10.7.4 Maternity Leave

In accordance with Article 39 of Mauritania's Labor Code, in the event of childbirth, a full-time affected female employee planning to return to Partners will be provided with:

- Maternity Leave: 14 consecutive weeks (70 workdays) of paid maternity leave, including eight (8) weeks post-partum per pregnancy if they carry the child to birth. The period of eight (8) weeks post-partum is irreducible, regardless of the date of delivery.
- Maternity leave may be extended by three (3) weeks in the event of a duly certified illness resulting from pregnancy or childbirth.

Maternity leave may also be preceded by an unpaid rest period, the duration of which is set by a medical certificate stating the absolute need for rest. In accordance with Article 41 of Mauritania's Labor Code, during maternity leave, the employee is entitled to special assistance to ensure both her support and the care required by her condition, under the conditions laid down by social security legislation on family benefits.

In addition to the above and in accordance with Mauritania's Labor Code, affected employees may also take accrued annual and sick leave, and leave without pay once accrued leave is exhausted, but in no event may the total absence period exceed 25 weeks, without a medical certification.

Annual and sick leave hours will continue to accrue, and normal benefits will be maintained while the employee is on paid maternity leave. Unpaid leave will be treated as an unpaid leave of absence.

Maternity leave must be recorded correctly in the Replicon timesheets.

10.7.5 Paternity/Adoption Leave

In the event of childbirth or adoption, a full-time affected employee planning to return to Partners will be provided with four weeks (20 workdays) of paid adoption/paternity leave. It will be left to the discretion of the employee regarding precisely when the leave period will begin, except that it is intended that the leave begin shortly before or immediately after the birth or adoption and that the leave be taken in a single block of time. In addition to the above, affected employees may also take accrued annual and sick leave, and leave without pay once accrued leave is exhausted, but in no event may the total absence period exceed 16 weeks.

Annual and sick leave hours will continue to accrue, and normal benefits will be maintained while the employee is on paid paternity/adoption leave. Unpaid leave will be treated as an unpaid leave of absence.

Paternity/adoption leave must be recorded correctly in the Replicon timesheets.

10.7.6 Family Leave

In accordance with Article 184 of the Mauritania Labor Code, employees are entitled to up to ten (10) days of exceptional paid family leave on the occasion of family events. Such leave authorizations may be taken in one or two periods, such that the number of contract suspensions resulting from the annual leave and the application of these provisions do not exceed three in the same calendar year.

10.7.7 Compassionate (Bereavement) Leave

Employees are provided up to three (3) days of paid compassionate (bereavement) leave in the event of a death. This leave should be requested in writing and approved by the employee's supervisor. Employees may be required to submit a copy of the obituary or other proof of death as documentation. Compassionate (bereavement) leave cannot be accumulated or carried over to the following year and resets on December 31st.

In addition to the three (3) days of paid compassionate (bereavement) leave, the employee can use their sick leave for grieving. Reference section 10.7.2 Sick Leave.

10.7.8 Marriage Leave

The marriage leave recognizes the significance of an employee's marriage and supports their transition into married life. This policy provides employees with paid time off to celebrate their marriage and attend related events including honeymoon. Employees are provided up to five (5) days of paid marriage leave. This leave allows employees to take paid time off for the following circumstances:

- Employee's wedding ceremony

- Marriage registration
- Honeymoon
- Other significant marriage-related events (e.g., religious ceremonies, family gatherings)

Employees will be required to provide proof of marriage certificate or other acceptable documents.

10.7.9 Voting Leave

Employees will be provided two (2) hours of paid leave to vote in elections. The time must be recorded as under voting leave on timesheets.

10.7.10 Statutory Congresses/Seminars Unpaid Leave

In accordance with Article 184 of the Mauritania Labor Code, employees are entitled to up to an annual limit of fifteen (15) working days of leave without pay to enable the employee to attend the statutory congresses and to seminars of the union organizations of workers.

10.7.11 Temporary Office Closure/Emergency Leave

Special paid leave may be granted to the employee in the case of temporary office closure, force majeure, or another emergency. Temporary office closure, force majeure and/or emergency leave will be announced in writing (via email) by the FO Director, and available to all employees for the time period indicated by the FO Director. This type of leave will be paid for a period not to exceed 30 consecutive days. This leave will be available for political/civil unrest, natural disasters, infectious disease, or other emergency situation which would not permit employees to safely return to Partners Mauritania's office. The FO Director will notify Partners HQ in the event that this leave will be used, along with the expected timeline for the return to the office.

10.8 Benefits Accruals

Some types of benefits may be paid out directly when they are earned, such as health benefits and therefore these types of benefits should be recorded as an expense directly in the period in which they are earned and paid.

Other benefits, such as annual leave, bonuses, severance pay, etc. are earned over time and will only be paid out at a later date as defined by the policy above. In order to reflect the future commitment to pay as well as the proper allocation of the expense to projects, these types of benefits will be accrued quarterly on the books. The amount that is earned each quarter will be calculated and recorded as an expense and, since no funds will actually be disbursed until the benefit is paid out in the future, an offsetting liability should be set up on the balance sheet. When the benefit is eventually paid, the payment will clear the liability account.

The FO Finance Manager must ensure that benefits accruals are well documented, as these accruals can carry over for an extended period of time. The leave accruals must match the Replicon timekeeping system totals for each employee.

10.8.1 Submission of Quarterly Benefit Accruals

Each quarterly the FO Manger is responsible for emailing FOandSubReport@partners.net the new accrual amounts. Below are the due dates for quarterly submission, along with the required documentation:

- January to March *Estimated* Accruals:
  - Due Date: April 15
  - Documentation: Email with estimates, no formal supporting documentation required (but recommend using the benefit accrual template to obtain estimates)
- April to June *Estimated* Accruals:
  - Due Date: July 15
  - Documentation: Email with estimates, no formal supporting documentation required (but recommend using the benefit accrual template to obtain estimates)
- July to September *Estimated* Accruals:
  - Due Date: October 15
  - Documentation: Email with estimates, no formal supporting documentation required (but recommend using the benefit accrual template to obtain estimates)
- January to December *Actual* Accruals:
  - Due Date: January 15
  - Documentation: Complete benefit accrual template roll forward schedule for entire year, based on actual final numbers. Hours for annual leave accruals must match to Replicon ending annual leave balances. Benefit accrual templates will be provided by HO Finance Team.

11. Employees

11.1 Job Descriptions

All permanent field staff positions should have job descriptions that are established, accurate and up to date. Job descriptions should reflect the actual work undertaken and should clearly outline the expectations of the worker employed in that position. A copy of the job description should be provided to each staff member when they commence work.

At times, the employee supervisor should give feedback to their staff member based on a comparison of their work performance and the expectations in the job description. Partners recommends that this be in correlation with midterm or yearly performance reviews. Job descriptions should be used in the performance appraisal process to assess the employee's achievements and performance in accordance with the process established by the FO Director.

Should Partners Mauritania choose to alter the duties and responsibilities for a particular position, the job description should be subsequently altered. The decision to alter a job description must be made by the FO Director and employee's supervisor. If the resulting decision has budget implications, approval is also required from Partners HQ.

11.2 Performance Evaluations & Salary

The employee's supervisor will conduct a written performance evaluation on an annual basis. Annual performance evaluations will be conducted using fair and transparent criteria, which will be communicated to employees. Pay decisions will be influenced by these performance evaluations, ensuring that compensation is tied to individual contributions.

Initial performance evaluations will generally be performed after three (3) months of employment upon the end of the probationary period. This evaluation will not be used as basis for salary increases. The evaluation will be written and will be based on available job descriptions, standards of performance, and such other factors which Partners Mauritania determines to be appropriate. Employees will have the opportunity to review, evaluate and discuss their performance as well as obtain feedback from Partners Mauritania.

Standards for evaluation templates will be provided by Partners HQ and also found in Annex O and the template in SharePoint.

11.2.1 360-degree Reviews

The 360-degree review aims to foster a culture of open communication and professional development within Partners. This feedback mechanism is designed to provide individuals with comprehensive insights into their strengths, areas for improvement, and potential blind spots from multiple perspectives, including peers, subordinates, and supervisors. Reviews are encouraged to focus on constructive criticism and honest observations. This process is not tied to performance evaluations but rather serves as a tool for personal and professional growth.

Feedback recipients are encouraged to reflect on received insights, identify actionable steps for improvement, and leverage support resources as needed. Throughout the 360-degreee review process, confidentiality is required to ensure that feedback is shared in a secure and respectful manner. 360-degree review templates are available on SharePoint.

11.2.2 90-day performance review

Partners 90-day performance review is to ensure a smooth onboarding process and setting the stage for long-term success. During the first 90-days of a new hire or employee who moved to a new position (whether as a transfer to another position or promotion), the employee’s supervisor is tasked with providing comprehensive feedback. The review will assess their understanding of job responsibilities, serve as an opportunity to address any early challenges, and identify any need for additional trainings. Moreover, it allows for open dialogue between the employee and their supervisor. All supervisors must complete the template for the 90-day performance review.

11.3 Salary Adjustments for Merit

Salaries for all employees are reviewed annually. Merit based adjustments to salaries may reflect general changes applicable to many positions and may also reflect merit changes based on the performance of an individual. The range for salary increases are usually within a 0%-3% range; although, rate increases outside this range may be authorized by the President & CEO.

The percentage increase will be based on the annual performance review score and proportional to time worked within the year and/or or since the date of the last increase or promotion received during the year. In all instances, increases are dependent on the overall financial health of the organization, reflect recommendations of an employee's supervisor(s) and are based on the approval by Partners' President & CEO.

*Note this policy is currently under review and will be updated.

11.4 One-Time Payments for Inflation Adjustments

Partners recognizes the impact inflation can have on staff. Therefore, if inflation in the country exceeds 10%, Partners HR will conduct an analysis of the inflation trends to determine if a one-time inflation adjustment payment will be made to staff. HR, in collaboration with relevant stakeholders, will assess cost of living factors and economic indicators and use this assessment to determine if a one-time payment is appropriate and the amount. If an inflation adjustment is deemed necessary, and approved by the President & CEO, the payment will apply to all staff within the country and proportional to time worked within the year of analysis. Inflation adjustments are single payments and do not increase the base salary of an employee. In all instances, inflation adjustments are dependent on the overall financial health of the organization.

11.5 Salary Advances

Salary advances are not provided under any circumstances.

11.6 Dress Code for Personnel

The image of Partners Mauritania is reflected in the presentation of each of its employees. Partners Mauritania dress code is business professional clothes from Monday to Thursday. Friday is informal and casual clothes may be worn. In the event that the employees have a field visit, it is recommended that they take into account the location and to dress accordingly. All visits to the US Embassy require formal dress.

Each employee is expected to dress and groom appropriately for the job, presenting a clean and neat appearance. Attire should promote a businesslike, professional attitude and image in keeping with the employee's job and overall work environment. Any employee unsure about appropriate attire or grooming should consult with his or her supervisor. In setting standards for dress and grooming, supervisors will consider exceptions for any religious or similar considerations that are requested.

If an employee's dress or grooming does not comply with established standards, it will be discussed with the employee and the employee may be sent home for the remainder of the day (without pay) or to change clothes and return to work. If discussions fail to bring the desired result, the supervisor may initiate disciplinary action.

11.6.1 Appearance and Attire

Partners Mauritania strives to maintain a workplace environment that functions well and is free from unnecessary distractions and annoyances. Partners staff members are expected to present a professional, businesslike image to clients, visitors, customers, and the public. Each employee is expected to dress and groom appropriately for the job, presenting a clean and neat appearance and be mindful of natural or artificial scents that could be distracting or irritating to others. Any employee unsure about appropriate attire or grooming should consult with his or her supervisor. In setting standards for dress and grooming, supervisors will consider exceptions for any religious or similar considerations that are requested.

Below are a few guidelines for professional appearance:

- All employees should practice common sense rules of neatness, good taste, and comfort.
- The following items are considered inappropriate and generally **not permitted at any time**:
    - Crop tops or clothing showing midriffs, spaghetti straps
    - Shorts
    - Athletic/exercise attire
    - Beachwear
    - Sweatpants
    - Flip flops
    - Slippers
    - Ripped, frayed, or disheveled clothing,
    - Garments that are unnecessarily tight or revealing

- **Personal appearance**: This should include good personal hygiene, including clean, well-groomed hair and facial hair. If wearing perfumes or cologne, please keep it light. Partners reminds employees that they are protected under the CROWN Act, which prohibits race-based hair discrimination. Employees may wear their hair in its natural state or in a manner reflective of their cultural or racial identity.
- **Jeans:** Jeans are allowable on all days (except for external meetings) but must be in good condition.
- **Shoes/Footwear:** Please do not walk with bare feet or socks throughout the office, this does not demonstrate a common sense of neatness. Note that tennis shoes, converse or similar, are allowable on all days (except for external meetings).
- **Business attire:** This includes the following dress shirts, ties, tailored sport coats or blazers worn with dress pants, tailored pantsuits, or dress suits, coordinated separates and dress shoes.

All days will be considered casual dress days, unless there is an external meeting, in which case you must wear business casual. In all cases, attire must still meet the above standards.

Reasonable accommodation of religious beliefs

Partners recognizes the importance of individually held religious beliefs to persons within its workforce. Partners will reasonably accommodate a staff member's religious beliefs in terms of workplace attire unless the accommodation creates an undue hardship. Accommodation of religious beliefs in terms of attire may be difficult in light of safety issues for staff members. Those requesting a workplace attire accommodation based on religious beliefs should be referred to the HR department.

Addressing workplace attire and hygiene problems

Violations of this policy can range from inappropriate clothing items to offensive perfumes and body odor. If an employee's dress or grooming does not comply with established standards, the supervisor will discuss with the employee, and the employee may be sent home for the remainder of the day (without pay for hourly employees) or to change clothes and return to work. The supervisor may initiate disciplinary action if discussions fail to bring the desired result.

If you have any questions regarding this appearance and attire policy, please consult with your supervisor or HR.

11.7 Communicating Delays

If an employee is delayed arriving to work, he/she must notify his/her supervisor with as much advanced notice as possible. If the delays become too frequent or occur without notification, the supervisor must address a memo to the FO Director documenting such incidents. If the cumulative delays in work are consecutive or unjustified Partners Mauritania reserves the right to take disciplinary action, up to and including termination..

11.8 Communicating Absences

Staff members are required to request approval from their supervisors regarding use of leave or other absences with as much notice as possible, following the protocols below. Simply alerting your supervisor that you will be "out of the office" is not sufficient.

If employees will be out of the office for two (2) days or longer, they must notify all office field staff via email at last three (3) business day prior. The email must contain the following:

- Dates the employee will be out of office
- Date they will be back to the office
- Provide alternative points of contacts for urgent matters
- For positions of management, delegation responsibility and signature authority

The FO Director of Partners Mauritania may terminate the employment agreement of any employee who is absent from his/her workstation five (5) consecutive days without authorization and without just cause. Any employee who is absent from work for five (5) consecutive days without notice or justification is automatically considered as resigning from his/her position.

An employee who wishes to be delayed or absent for a valid personal or professional reason during working hours, must first seek and obtain the authorization of his/her immediate supervisor.

11.9 Personal Relationships

An employee who is involved in a personal relationship with another employee may not occupy a position in the same department as, work directly for, or supervise the employee with whom he or she is involved. Partners reserves the right to take prompt action if an actual or potential conflict of interest arises concerning individuals who occupy positions at any level (higher or lower) in the same line of authority that may affect business or employment decisions. Supervisors are strictly prohibited from dating subordinates and may be disciplined for such actions, up to and including termination.

When a conflict or the potential for conflict arises due to a personal relationship between employees, even if there is no line of authority or reporting involved, the employees may be separated by reassignment or terminated from employment. If such personal relationship is established after employment, it is the responsibility and obligation of the employees involved to disclose the existence of the relationship to their supervisor or management. Any employees concerned about others' possibly inappropriate relationships should report it to their supervisor.

When a conflict or a potential for conflict arises because of a relationship, the individuals concerned may be given the opportunity to decide who is to be transferred to another position or terminated if no position is available. Ultimately, management will decide who is to be transferred or, if necessary, terminated from employment based on a neutral factor such as seniority

11.10 Conflict Workplace Resolution Procedure

Partners Mauritania makes a good faith effort in providing a pleasant and a satisfying work environment. Partners Mauritania supports an "open door policy" which encourages open, two-way communication, feedback, and discussion about any matter of importance to an employee and resolving the matter promptly and responsibly.

The initial step is for the employee to discuss any concerns or challenges with his/her immediate supervisor. The matter should be brought to the supervisor within five (5) business days of the incident, and employee should give the supervisor reasonable enough time to get back with them. After considering the supervisor's response, should the employee not feel that the problem is satisfactorily resolved, or if the nature of the problem has precluded a discussion with the supervisor, the employee may refer the problem to the FO Director or his/her designee. The FO Director will meet with the employee promptly. Except in cases requiring further inquiry, the FO Director will reply to the staff member within two weeks of the meeting. The FO Director will save a copy of the reply in the personnel file. An employee who deems the FO Director's response unsatisfactory may refer the matter to the Partner HQ staff as a final resort. In the interests of amicable working relations, however, Partners Mauritania prefers that employees keep problems internal to the project and suppress under any circumstance, the possibility to express personal or professional concerns to the project's donor.

The employee should request a meeting with the Vice President or designee in writing and clearly state the reason for the meeting. Unless the employee specifically requests confidentiality, his/her supervisor/FO Director is expected to attend any meeting with higher management. The employee may choose to communicate verbally, especially if access to a computer is not available. The Vice President or designee will clearly describe the action taken to address the employee's concerns.

In accordance with article 339, the duration of the conciliation attempt in any case may not exceed thirty (30) days from the date of the parties' meeting. If the parties do not reach an agreement within this period, the conciliator must draw up the minutes of non-conciliation.

11.11 Dispute Resolution

Regrettably, conflict can occur in any work environment. To resolve the conflict in an expedient, yet fair manner, Partners recommends the following process for conflict or dispute resolution.

1. Speak directly to the person you are having the dispute with. Many times, conflicts arise due to misunderstandings and miscommunications.
2. If speaking to the individual does not work, please talk to your supervisor, HR, or any other member of the Executive Leadership Team. Then a meeting will be arranged those involved in the dispute to determine a resolution.
3. If the above options cannot resolve a workplace dispute, the parties may be referred to mediation by an outside third party. The resolution of the third-party mediator is binding on both parties of the conflict.

For Partners' full policy on Managing Conflicts, please reference Annex P.

11.12 Labor Disputes

In the event of labor dispute, the employee and Partners Mauritania will work to rectify the dispute immediately. In the case that the labor dispute cannot be resolved between the two parties, disputes will go to the courts to be resolved.

11.13 Reasons for Disciplinary Action

In establishing rules of conduct, Partners Mauritania has no intention of restricting the personal rights of any individual. Rather, we wish to define the guidelines that protect the rights of all employees and to ensure maximum understanding and cooperation. The following list of work rules is an illustration of the type of behavior that will not be tolerated by Partners Mauritania. This list is not all-inclusive. Any employee who violates any of the work rules listed below may be subject to disciplinary action, up to and including termination of employment. The level of disciplinary action taken will be determined at management's discretion and judged by the severity of the violation:

- Failure to comply with Partners' Mauritania procedures, policies, or practices.
- Submission of false, misleading, or incomplete information to obtain employment.
- Failure to comply with Partners' Mauritania Proprietary Information and Confidentiality Policy.
- Theft or inappropriate removal or possession of Partners' Mauritania property.
- Falsification of timekeeping records.
- Negligence or improper conduct leading to damage of employer-owned or client-owned property.
- The use, influence, purchase, or sale of illicit drugs, controlled dangerous substances (excluding lawful use of prescribed medication) or alcohol on Partners property or at a work site during working hours.
- Possession of weapons, explosives, or firearms on company property.
- Committing violent acts or threats of violence.
- Committing acts of illegal discrimination or harassment.

- Insubordination, including refusal to perform assigned tasks or the performance of assigned tasks in an inappropriate manner.
- Violation of safety or health rules.
- Excessive absenteeism and/or tardiness without a proper excuse.
- Failure to meet performance standards.
- Failure to communicate and work well with others.
- All the reasons described at Article 47 of the Mauritanian Federal Labor Law.

11.14 Progressive Discipline

Partners reserves the right to address employee performance or conduct issues with appropriate disciplinary actions, including warnings, suspension, or termination. Decisions will be based on the severity of the issue, the employee's past performance, and business needs. HR and the employee's supervisor will document by completing a disciplinary process report on the template in SharePoint. This approach aims to resolve issues early, supporting both employees and Partners. Employees should reference Partners of Code of Conduct, which lists examples of unacceptable conduct that might result in immediate suspension or termination of employment. By using progressive discipline, Partners hopes that most employee problems can be corrected at an early stage, benefiting both the employee and Partners.

Disciplinary Steps: Partners may use progressive discipline, typically following these steps:

- Verbal warning
- Written warning
- Performance Improvement Plan or Suspension (with or without pay)
- Termination of employment

Disciplinary Process:

- For minor issues, a verbal or written warning will be issued, detailing reasons and any evidence.
- Decisions will account for the issue's severity and frequency. Based on these factors, steps may be skipped.

- A second review by the President & CEO or another Executive Leader is required before any dismissal.

If more than one year has passed since the last action, the process typically restarts. In severe cases, Partners may decide on suspension or termination without progressive steps.

11.14.1 Performance Improvement Plan (PIP)

As part of progressive discipline, Partners Mauritania may issue a Performance Improvement Plan (PIP). A PIP is typically initiated when an employee's performance consistently falls below established expectations despite prior feedback or support. The PIP is a process designed to support employees in enhancing their performance and achieving specific job-related goals. The PIP outlines clear expectations, identifies areas for improvement, and establishes measurable objectives to be met within a designated timeframe. It serves as a collaborative framework between the employee and their supervisor, fostering open communication and providing the necessary resources and support to facilitate improvement. Employees on a PIP will receive regular feedback and have opportunities to discuss their progress. The ultimate aim of the PIP is to help employees succeed in their roles, contributing to both their personal growth and the overall success of the organization. PIP must be issued using the template on SharePoint.

11.15 Office Equipment and Resources

All equipment that Partners owns is furnished to conduct company business. Company equipment includes, but is not limited to, computers (including all files, e-mail, SharePoint, and Internet data), telephones, filing cabinets, desks, vehicles, and work or office space. Partners treats all company equipment as its property and reserves the right to search, access, review, copy, or modify this property. Partners may also disclose such information or property to other parties (inside or outside the company) as appropriate.

Partners purchases and licenses the use of computer software for business purposes. Unless authorized by the software developer, Partners does not have the right to reproduce such software for computer use or for which they are not licensed. Employees may only use the software on local area networks or multiple machines according to the software license agreement. Partners prohibits the illegal duplication of software and its related documentation. No employee may access, or attempt to obtain access to, another employee's computer systems without appropriate authorization.

Upon receiving Partners equipment, employees will need to sign the Receipt of Equipment to ensure they understand the proper use and responsibility while using Partners provided equipment.

11.15.1 Personal and Company-Provided Portable Communication Devices

Partners may provide portable communication devices (PCDs), including cell phones and personal digital assistants, should be used primarily for business purposes. If provided, employees have no reasonable expectation of privacy in regard to the use of such devices, and all use is subject to monitoring, to the extent permitted by applicable law. Some employees may be authorized to use their own PCD for business purposes. These employees should work with the FSI Strategies to configure their PCD for business use.

Communications sent via a personal PCD also may subject to monitoring if sent through Partners' networks. All conversations, text messages, and e-mails must be professional. When sending a text message or using a PCD for business purposes, whether it is a Partners-provided or personal device, employees must comply with applicable Partners guidelines, including policies on sexual harassment, discrimination, conduct, confidentiality, equipment use, and operation of vehicles.

If employees who use a personal PCD and resign or are discharged, they will be required to submit the device to the HR on or before their last day of work.

Please note that whether an employee uses their personal PCD or a Partners-issued device, Partners' electronic communications policies, including but not limited to, proper use of communications and computer systems, remain in effect, including no texting and e-mailing while driving.

11.15.2 Use of Internet, Communication, and Computer Systems

Partners' communication and computer systems are intended primarily for business purposes; however, limited personal usage is permitted if it does not hinder performance of job duties or violate any other Partners policy. This includes the voice mail, e-mail, and Internet systems. Users have no legitimate expectation of privacy in regard to their use of Partners systems. Partners policies prohibiting harassment apply to the use of Partners' communication and computer systems.

In the ordinary course of business when Partners deems appropriate, Partners may access employee's communications systems, without notice. This includes review of employee's voicemail, e-mail, Teams and other messaging platforms, and internet history. The reason Partners may obtain such access include, but are not limited to maintaining the system; preventing or investigating allegations of system abuse or misuse; assuring compliance with software copyright laws; complying with legal and regulatory requests for information; and ensuring that Partners operations continue appropriately during the employee's absence.

Please reference Partners IT Policies. Violators of this policy may be subject to disciplinary action, up to and including termination.

11.15.3 SharePoint and Bulletin Boards

Important notices, policies, procedures, forms, and items of general interest are continually posted on SharePoint. Employees must make it a practice to review SharePoint frequently. This will assist employees in keeping up with what is current. Any major policy and procedures changes will be communicated to staff via email and during an All Staff Meeting.

11.16 Personal Items

Partners is not responsible for employees' personal property at any time, domestically or abroad, and cannot be held liable for loss of personal items, whether by theft or other means. Homeowners or renter's insurance usually covers an individual's personal property while away from the home or rental site, and we encourage our employees to carry such insurance. Different companies provide different coverage forms, so employees should ask their personal insurance agent how their policy will respond.

12. Risk Assessments & Sub-recipient Monitoring

12.1 Risk Assessment Guidelines & Process

Partners Mauritania risk assessment validates that potential sub-recipients are viable, legitimate businesses and confirms that they have the financial capability and organizational resources to provide the required services. At the same time, it makes sure that contractor/ sub-recipients are not engaged in questionable ethical or legal activities. Please refer to the risk assessment folder for complete detailed policy and procedure, along with the appropriate tools and templates.

Each time a new contract/agreement valued at USD $10,000 or more is signed for a sub-recipient, Partners Mauritania will be required to send Partners HQ a completed Risk Assessment. The Risk Assessment template is found in Annex Q.

12.2 Frequency of Risk Assessment

For ongoing sub-recipient monitoring activities, a follow-up Risk Assessment should be completed annually upon renewal of the contract. The completed and updated annual Risk Assessments for all contract/agreements for sub-recipients over USD $10,000 must be sent to Partners HQ.

13. Procurement

13.1 Procurement Overview

The purpose of this policy is to ensure the highest level of procurement integrity is consistently observed throughout the field office while acquiring goods, supplies and services. Please refer to the procurement folder for the complete detailed policy and procedure, along with the appropriate procurement tools and templates. The overall procurement policy is to prevent conflict of interest, facilitate open and free competition, ensure that cost analysis is conducted and that all contracts include clauses that protect the organization contractually, and provide for legal remedies where it is applicable.

All procurements must comply with the Procurement Standards in 2 CFR 200 Uniform Guidance Section 200.318, which can be summarized generally as follows: (1) the purchase complies with Partners' documented procedures, (2) purchases are necessary, (3) open competition (to the extent required by each method), (4) conflict of interest policy applies and (5) proper documentation for the purchases. Consideration should be given to consolidating or breaking out procurements to obtain a more economical purchase. Where appropriate, an analysis must be made of lease versus purchase alternatives, and any other appropriate analysis to determine the most economical approach. When possible, Partners Mauritania should use federal excess and surplus property in lieu of purchasing new equipment and property to reduce project costs. Additionally, to the extent possible, Partners Mauritania will engage in affirmative efforts to utilize small businesses, minority owned firms, and women's business enterprises. Pursuant to the Federal Acquisition Regulations (FAR), POA is required to promote and provide for competition to the maximum extent practical. Therefore, POA, and its clients, benefit from fair and reasonable prices.

All procurements made by Partners Mauritania must:

1. Be necessary, at a reasonable cost, documented, not prohibited by law or the applicable funding source, and made in accordance with this Policy.
2. Avoid acquiring unnecessary or duplicative items.
3. Engage responsible vendors who possess the ability to perform successfully under the terms and conditions of a proposed procurement. Partners Mauritania shall consider vendor integrity, policy compliance, past performance record and financial and technical resources.

13.2 Ethical Conduct for Procurement

Care must be taken to avoid the intent and appearance of unethical practice in relationships, actions, and communications. All procurement activities conducted on behalf of Partners Mauritania must be in compliance with the standards outlined in federal, state, local laws, and Partners' policies. When conducting procurement including but not limited to purchasing goods and services, awarding contracts and grants, or the administration and supervision of contracts, Partners Mauritania must adhere to the following:

1. **Checks and Balances**

   Separation of duties throughout the procurement process must be strictly enforced. At the minimum, for any one procurement action, the person initiating the procurement request and managing the invitation for quotation, bids, or tenders, must be different from the person approving the procurement and signing the contract. It is advisable to have people from outside of the team on the Evaluation Committee.

2. **Confidentiality**

   Partners Mauritania staff participating in a procurement process must not disclose information related to provider quotes, bids/proposals, or other sensitive information to any co-worker without a specific and articulable need to know. Disclosing any non-public information related to procurement to any third party is strictly prohibited.

3. **Conflicts of Interest**

   Partners Mauritania defines a procurement conflict of interest as any situation where a provider may be perceived to be shown unfair favoritism due to a relationship or other connection to an employee, representative or affiliate. Partners Mauritania takes a rigorous, transparent, and forceful approach to identifying and preventing such conflicts. It is the individual and non-delegable responsibility of every employee, representative and affiliate to disclose potential conflicts of interest to their supervisor or another appropriate member of management. Where possible, potential, and actual conflicts of interest will be mitigated with an appropriate and effective mechanism without disqualifying any bidders, but where the integrity of the process demands otherwise, the Partners Mauritania will not hesitate to disqualify problematic bidders or re-compete procurements.

   There are three types of conflict of interest that could occur in the procurement environment.

- ***Actual conflict of interest*** - when an individual member is in a position to be influenced by their private interests when doing their job.
- ***Perceived conflict of interest*** - when an individual member is in a position to appear to be influenced by their interests when doing their job.
- ***Potential conflict of interest*** - when an individual member is in a position where they may be influenced in the future by their private interest when doing their job.

In the context of procurement, a procurement member should:

- Declare potential conflict of interest.
- Not use information obtained during their professional duty for personal profit.
- Disclose and dispose the financial interest involved.
- Withdraw from any procurement process where he/she may have a conflicting interest.

POA takes a rigorous, transparent, and forceful approach to identifying and preventing such conflicts. It is the individual and non-delegable responsibility of every employee, representative and affiliate to disclose potential conflicts of interest to their supervisor or another appropriate member of management. Where possible, potential, and actual conflicts of interest will be mitigated with an appropriate and effective mechanism without disqualifying any bidders, but where the integrity of the process demands otherwise, the POA will not hesitate to disqualify problematic bidders or re-compete procurements.

Examples of conflicts of interest may include, but are not limited to:

a. ***Financial conflicts*:** A conflict where a Partners Mauritania employee, representative or affiliate involved in a procurement has a financial interest in a potential provider/bidder.
b. ***Personal conflicts*:** A conflict where a Partners Mauritania employee, representative or affiliate involved in a procurement has a friend or family member who works for, or otherwise has an interest in, a potential provider. Family member

includes spouse, children, parents, grandparents, grandchildren, siblings, and siblings’ immediate families including their spouses and children.

c. ***Employment offers*****:** A conflict where a Partners Mauritania employee, representative or affiliate involved in a procurement has a job offer, or was a former employee of a potential provider.
d. Any other fact or situation where there is a division of loyalty on the part of the employee, representative or affiliate between Partners Mauritania and a potential provider.

Employees, representatives, and affiliates are responsible for disclosing known or suspected conflicts of interest. If an actual or perceived conflict of interest is identified, the provider is not necessarily or automatically excluded from competing for the procurement. But appropriate mitigating actions need to be in place before the potential bidder can be considered as qualified. The conflict must be clearly documented in writing and the employees, representatives, and affiliates with the actual or perceived conflict must recuse himself/herself from any process related to the procurement, including source selection, contract execution or payment approval/process. Perceived or actual conflicts must be disclosed to the FO Director or his designee, who will make the final decision on appropriate mitigating actions, required which could include exclusion of the potential bidder.

4. Gratuities from Suppliers

Partners Mauritania employees, representatives and affiliates are prohibited from soliciting or accepting money, loans, credits, entertainment, favors, services, or gifts from current or prospective suppliers. Such gratuities, even if of seemingly low value, can give rise to a conflict of interest or the appearance of a conflict of interest. In particular, employees, representatives and affiliates should never accept gratuities from a current or prospective supplier that has submitted or may submit a bid for a Partners Mauritania contract for which a bid solicitation is being contemplated, developed, or is actively accepting bids.

5. **Free and Open Competition**

In all procurement processes Partners Mauritania encourages free and open competition to maximum extent possible. To ensure procurements are free and open, Partners requires the following:

- Reduce unfair competitive advantage – which means vendors who help develop statements of work are barred from bidding on that work.
- Create clear evaluation criteria – which means solicitations should clarify the criteria Partners Mauritania will use to evaluate bids.

As permitted by law, policy, or regulation, Partners Mauritania may pursue appropriate legal, administrative, or disciplinary action against an employee, officer, director, volunteer, vendor, or vendor's agent who is alleged to have committed, has been convicted of or pled no contest to a procurement related offenses. If said person has been convicted, disciplined, or pled no contest to a procurement violation, said person shall be removed from any further responsibility or involvement with grants management, procurement actions or bids.

13.3 Procurement Process

In Mauritania, the following matrix must be used to determine the method of procurement required.

Field Office Threshold					
Procurement Type	***Amount in USD***	***Procurement Method***	***Contract Required***	***Source Selection Method***	***Solicitation Type***
Micro-Purchases	$0 - $2,500.00	No formal procurement needed	No	Lowest Price	None
Small Purchases	$2,500.01 - $9,999.99	Purchase Requisition Form, 3 quotes, matrix/evaluation of quotes, & source selection memo	Yes	Simplified (means most important factor is price) *or* Lowest Price Technically	**Optional** Request for Quotation (RFQ) *or* Request for Proposal (RFP)

				Acceptable *or* Trade Off (Best Value)	
Proposals	$10,000.00+	Full and open procurement reference guidelines	Yes	Lowest Price Technically Acceptable *or* Trade Off (Best Value)	Request for Quotation (RFQ) *or* Request for Proposal (RFP)
Noncompetitive Proposals	No Limit	Memo justification on the reason for sole source	Only if USD $2,500+	Sole Source	None

1. Micro-Purchase Threshold: Less than $2,500.00 USD or MRU equivalent

In accordance with 2 CFR 200.67, micro-purchase means a purchase of supplies or services using simplified acquisition procedures, for an aggregate amount which does not exceed the micro-purchase threshold. The micro-purchase procedure is used in order to expedite the completion of lowest-dollar small purchase transactions and minimize the associated administrative burden and cost. For Partners Mauritania items procured at or below $2,500 USD or the MRU equivalent, the organization will allow a simplified procurement process. Micro-purchases may be awarded without soliciting competitive quotations if Partners Mauritania considers the price to be "fair and reasonable" and is documented. Splitting procurements to keep within the micro-purchase threshold to avoid competition requirements is not allowed. Micro-purchases should be distributed equitably among qualified vendors to the extent practicable. Micro-purchases should follow normal review process in FO finance department (i.e. FO accountant or designed FO officer prepares and FO Finance Manger reviews and approves). For all micro-purchases there must be proof of clear due diligence conducted on the contractor to ensure that they are not suspended or debarred from doing business with the US Government or on a blocked persons list. (Reference 3.2 Visual Compliance Check). Micro-purchase do not require a formal contract or agreement.

2. Small Purchases Threshold: $2,500.01 to $9,999.99 USD or MRU equivalent

Small purchases are those valued above the micro-purchase threshold but below Partners competition proposals threshold. Procurement by small purchase procedures are those relatively simple and informal procurement methods for securing services, supplies, or other property. For a small purchase procurement, a purchase requisition form (PRF), a minimum of three (3) price/rate quotes, an evaluation matrix comparison, and a source selection memo which includes overview of vendors reviewed, provides the reasons for selecting the vendor, and lists final price is required documentation. If the Procurement Team attempts to obtain three quotations, but less than three quotations are received, the Procurement Team must document the efforts made to obtain three quotations and reason why others were not received.

Documentation needs to be in writing from the suppliers and can include written quotes, quotes via email, screen shots from websites, copies of published price lists, advertised pricing in established magazines or journals, etc. Partners Mauritania must select the provider that offers the product or service for the lowest price and meets the required specifications (as opposed to desired specifications). Splitting procurements to keep within the small purchase threshold to avoid further competition requirements is not allowed. Small purchases should follow normal review process in FO finance department (i.e. FO accountant or designed FO officer prepares and FO Finance Manger reviews and approves). For all small purchases there must be proof of clear due diligence conducted on the contractor to ensure that they are not suspended or debarred from doing business with the US Government or on a blocked persons list. (Reference 3.2 Visual Compliance Check). Small purchases require a formal contract or agreement with the provider.

3. Competition Proposals Threshold: $10,000.00+ USD or MRU equivalent

All competitive proposals must be conducted in a manner providing full and open competition consistent with the standards of 2 CFR 200.319c. This method is conducted with more than one source submitting an offer, and either a fixed price or cost reimbursement type contract is awarded. Please see full procurement policy for additional details on competitive proposal requirements. A summary is as follows:

Solicitation:

1. Complete a purchase requisition form
2. Market research - Review the approved requisition and determine whether sufficient market research has been conducted, or needs to be conducted, to determine how the solicitation will be competed. Market research is only required for FO procurements valued at $50,000 USD or more. Market research is required for all HO procurements above the simplified acquisition threshold.
3. Determine how the solicitation will be distributed. There are effectively only three options as follows:
    a. ***Public Advertising***
    b. ***Vendor Distribution List (minimum of 6)***
    c. ***Sole Source***
4. Determine the type of solicitation (request for quotation or request for proposal) that is most appropriate for the procurement.
5. Determine the type of award that is most appropriate for the procurement. This is best done by defining objectives and how the technical teams expect to manage the vendor 's delivery post-award.
6. Issue a formal written solicitation: request for quotation (RFQ), request for proposal (RFP). This includes the following (as applicable):
7. Requests for proposals or quotes must be publicized and identify all evaluation factors and their relative importance.
    a. Any response to publicized requests for proposals must be considered to the maximum extent practical. The required timeline for publicization is as follows:

Field Office	
Estimated Contract Value	**Posting Period Required**
$10,000.00 - $50,000.00	Minimum five (5) Business Days
$50,0000+	Minimum fifteen (15) Business Days

Receiving Bids:

8. Provide question and answer period. All questions posed to POA, and the answers must be distributed to **all** bidders.
9. Proposals must be solicited from a minimum three (3) qualified providers, verbal solicitations and proposals /quotes are not acceptable.
    a. In the absence of three submitted quotes or proposals, then a clearly documented in the source selection memo for justification demonstrating that efforts were taken to obtain three quotes or proposals.

Proposal Review/Selection:

10. For all procurements, including contract modifications, in excess of the Simplified Acquisition Threshold (currently $250,000 USD), POA must perform a cost or price analysis and document budget negotiations in a Negotiation Memo.
11. Determine if a full evaluation committee is needed, or just technical reviewers.
12. After the bid opening has been completed, then Bid Committee shall convene and review the submissions.
13. There must be a written matrix or method for conducting technical evaluations in accordance with the source selection method of the proposals received and for selecting recipients. **Additional evaluation factors introduced during the evaluation must not be considered. All evaluation criteria must be clearly indicated on the RFP/RFQ.**
14. Final evaluation matrix must be prepared and signed by all committee members and approved by the VP/HO Director/COP/PD.
15. Prepare a source selection memo which includes overview of vendors reviewed, provides the reasons for selecting the vendor, and lists final price. If less than three quotes were obtained, reasons why should also be included in this memo.
16. Clear due diligence conducted to ensure vendor is not suspended or debarred from US Government or on a blocked persons list. (Reference 3.2 Visual Compliance Check).
17. Procurement lead will contact winning bidder and negotiate a contract.
18. Competitive proposals require a formal contract or agreement with the provider.

19. Once the agreement is concluded with the winning bidder, the other bidders should be contacted and told that their submission met RFQ/RFP terms but was not the best offer per the procurement ranking process.

Partners Mauritania staff should not put undue restrictions on the competitive process including but not limited to:

a. Placing unreasonable qualification requirements on firms;
b. Requiring unnecessary experience and excessive bonding;
c. Noncompetitive pricing practices between firms or affiliated companies;
d. Noncompetitive contracts to consultants on retainer contracts;
e. Organizational conflicts of interest;
f. Specifying only a ''brand name'' product instead of allowing ''an equal'' product to be offered and describing the performance or other relevant requirements of the procurement;
g. Any arbitrary action in the procurement process: and
h. Use of statutorily or administratively imposed state or local geographical preferences in the evaluation of bids or proposals (except in those cases where the federal awarding agency expressly mandates or encourages geographic restriction or preference).

All competitive proposals must be prepared/documented by the procurement lead or designed staff member and reviewed by the FO Finance Manager, and then approved by VP/HO Director/COP/PD. It is required that an appropriate competitive process be utilized and fully documented. At minimum, a proper procurement process requires:

4. Noncompetitive Proposals - Sole Source Procurements

In rare circumstances a sole source transaction may be permitted. A sole source procurement can be defined as any contract entered without a competitive process, based on a justification that only one known source exists or that only one supplier can fulfill the requirements. Failing to anticipate needs resulting from poor planning is not an exception to competitive requirements. A faster procurement process is not justification.

All sole source procurements must **be approved in writing by HO Compliance Team, regardless of the amount.** All sole source procurement must comply with the circumstances listed in 2 CFR 200.320(c)(1). When an employee, representative or affiliate proposes sole source procurement, he/she must provide clear written justification documenting the process and efforts used for determining that there are no other qualified providers. For an exception to be valid, a clear statement of justification for waiving the competitive bidding process must be submitted in writing. The justification must include:

1. Reason to justify exemption from open competition in accordance with 2 CFR 200.320(c)(1).
2. Explanation/justification about why only one known source that can provide the commodity or service, or unique source (commodity/service is unique/special in nature); or compatibility (e.g., a public safety agency requiring a specific piece of equipment to be compatible with an existing equipment system).
3. Nature and/or description of good or service being approved, and which are required to meet program needs (including the estimated value).
4. A determination that the anticipated cost to the government will be fair and reasonable.
5. Brief statement about how the project determined that the vendor is responsible.

The following are possible scenarios of when sole source procurement may be justified:

1. The acquisition of property or services, the aggregate dollar amount of which does not exceed the micro-purchase threshold.
2. The procurement transaction can only be fulfilled by a single source, such as:
    a. When only one source possesses the patent(s) or exclusive right(s) to manufacture or to furnish the item or service.
    a. Artwork;
    b. Unusual and generally unavailable used equipment; and
    c. Specialized scientific equipment and instruments.
3. The public exigency or emergency for the requirement will not permit a delay resulting from providing public notice of a competitive solicitation such as:

a. Human life, health or Partners' property is in jeopardy
b. Repairs are immediately needed for equipment where delay would lead to higher expense.

4. The recipient or subrecipient requests in writing to use a noncompetitive procurement method, and the Federal agency or pass-through entity provides written approval to Partners Mauritania.
5. When after solicitation of a number of sources, competition is determined inadequate.

All noncompetitive proposals must be prepared/documented by the FO accountant or designed FO officer, reviewed by the FO Finance Manager, and then approved by Partners HQ Compliance Team at compliance@partners.net. For all noncompetitive proposals there must be proof of clear due diligence conducted on the contractor to ensure that they are not suspended or debarred from doing business with the US Government or on a blocked persons list. (Reference 3.2 Visual Compliance Check). Formal contract or agreement is required for procurements over $2,500 USD or the local MRU equivalent.

14. Mauritania Travel Policy and Procedure

14.1 Policy Overview and Applicability

The objective of this policy is to manage a travel process fully compliant with the 2 CFR 200 and Partners Mauritania's rules and regulations with guidance from U.S. Government procedures and Mauritanian Law.

The financial goal of this policy is to increase accountability and efficiency of travel expenditures and to ensure compliance throughout the full process of USG regulations, 2 CFR 200, and other applicable laws, including timely clearance of all travel reports (expense reports and per diem payments).

This policy applies to all Partners Mauritania travelers unless otherwise indicated below. Specific guidance at a country and project level may be prepared on a case-by-case basis and approved by the CFO or CEO. In no event, shall these country or project-specific policies be out of compliance with the procedures and cost/time values identified herein.

14.2 Requesting Travel Authorization

All field staff and local consultants are required to complete a travel authorization and receive approval from their respective supervisors. Effective January 1st, 2022, all staff will complete travel authorizations using the standard template for Replicon. Prior to travel all staff will complete the "Travel Authorization Form" found on SharePoint. This form will collect the following information:

- Traveler's Full Name on official government ID (e.g., Cedula, Passport)
- Date Requested
- Purpose of the Trip/ Scope of Work to be Performed
- Dates of Travel
- Proposed Itinerary

Once the form is completed, it will be uploaded into the Replicon platform at: https://login.replicon.com/. Employees will create a new expense report in Replicon to request approval for the travel authorization. The form will be uploaded into the Replicon database as supporting documentation for the travel. The employee will electronically submit the request for approval. The respective supervisor will then review the proposed travel itinerary, and either approve or reject for modification electronically. Once a fully approved travel itinerary is in Replicon, the employee can proceed with remaining travel plans and bookings.

14.2.1 Itinerary Changes

The appropriate supervisor should approve the traveler's itinerary changes. After receiving approval from the supervisor, travelers can contact the appropriate agency to make the necessary changes. Most importantly, it is critical that the supervisor notifies the FO Finance Department, to ensure that the per diem amount or other changes can be made, as necessary. In emergency circumstances, when a supervisor is not available or after hour changes must be made immediately, it is left to the discretion of the travelers. However, they are required to notify their supervisor once the change(s) have been made. Note that the supervisor reserves the right to not approve the change. In such instance, the traveler will be responsible for any difference in cost associated with the change. Disagreements will be resolved by the CFO at Partners HQ.

14.3 Traveler Definitions

Partners' travel policy is broken out based on three traveler types. All travelers are expected to comply with and follow the provisions in their respective categories as follows:

- US based/HQ
  - US based/HQ are all individuals with their principal desk location at HQ.
  - This includes but is not limited to:
    - HQ Staff
    - Consultants
    - Interns
    - Telecommuting employees, etc.
- Local Field Office staff
  - Local field staff are those on payroll at Partners field offices, including the Country Director
  - Local consultant based abroad are consultants paid directly by the field office
  - All other local travelers
- US based/Other
  - Including but not limited to volunteers, board members, etc.

14.4 Insurance Coverage and Security Protocols

For all Partners travelers, if a TA is completed, the below coverage for insurance and security applies as indicated below.

14.4.1 Travel Insurance

Partners has procured a blanket business travel insurance through AIG. This means Partners travelers are **automatically enrolled in coverage if they are traveling outside of their home country.** Policy information is outlined below and available on SharePoint.

Who does it cover?

The policy covers all Partners travelers both at HO and in the field offices, including staff, consultants, volunteers, and board members. Note: medical, political, and security evacuation is covered for all expatriates and their families, regardless of travel.

What does it cover?

- Travel assistance services including hotel and rental vehicle re-booking, roadside assistance, emergency return travel arrangements, assistance with lost/stolen baggage, assistance with lost passport or travel documents, emergency telephone interpretation assistance and many other services
- Medical emergency evacuation
- Out-of-Country medical expense (does cover medical expenses related to COVID-19)
- Physician/hospital/dental/vision referrals while out of home country
- Emergency prescription replacement (if medications are lost or stolen)
- Dispatch of doctor or specialist to bedside in country
- In-patient and out-patient medical case management
- Security and political evacuations
- Natural disaster coverage
- Support for identity theft
- Accidental death, dismemberment and paralysis including home and vehicle alterations if needed
- Physical therapy, psychological or rehabilitation
- Bereavement and trauma counseling
- Carjacking
- **And many more services**, please reference full policy for more information

When does it cover costs?

The policy provides the attached benefits when a Partners traveler leaves their home country and travels to another country. This means it would cover a Colombian staff member traveling to Panama, as they are leaving their home country, however, it will not cover a Colombian staff member while traveling in Colombia. All medical claims for travelers within their home country will default to their primary insurance and not covered under this policy.

How to access information and ID cards?

To review coverage, ID cards, access security and travel alerts & information, and more, Partners travelers need to **create an account** and enter policy number: **9158541**. All POA travelers should create a separate account as ID cards are issued based on the registration information.

Security Alerts Enrollment

The traveler can also elect to received security and travel alerts for the expected travel plans down to the country and city level when logged into their **AIG account**.

Contact Information for AIG Insurance

Policyholder: Partners of the Americas, Inc.

Policy Number: 9158541

Toll-Free/Free Phone (within the U.S.): **1-877-244-6871**

Collect/Reverse Charge (outside the U.S.): **+1-715-346-0859**

Email: **assistance@aig.com**

aig.com/us/travelguardassistance

14.4.2 Security Provider

All travelers both domestic and internationally are covered by Partners security provider RSM. In event of an immediate life-threatening situation while travelling internationally for work Partners has contracted RSM to provide the following services:

- Emergency and crisis response
- Assist with security, political, medical, natural disaster, and other evacuations
- Safe evacuation routes
- Safe houses
- Other security services as needed by the situation.

To report an emergency or security event call the hotline: +1 209-330-8454, which is available in multiple languages 24/7. More information on the services for RSM is available on SharePoint.

14.4.3 Security Protocols

Partners takes precautions to protect the health and well-being of its travelers while carrying out their duties and responsibilities on behalf of Partners. Partners adheres to Partners' Global Safety and Security Policies. Partners policies consists of a risk assessments, and standard security protocols for each country designed to mitigate threats and maintain contingency planning.

Prior to taking a trip, the traveler should review the respective countries' Pre-Travel Arrival Briefing. All travelers are expected to report all security and safety incidents. Please speak with your supervisor or the COO should you have any questions regarding Partners' security and safety protocols.

14.5 Travel Advances

Travel advances for staff are generally not given, unless there is an exceptional circumstance authorized by Partners HO. Instead, the POA will pay in advance for lodging, transportation, airfare, and other travel costs to the extent possible.

In certain circumstances with authorized, only staff can request a travel advances for additional, necessary cash. Any staff travel advance must be requested before a trip and in accordance with Partners payment processing cycle. The request must include justification and the amount requested. The request must be accompanied by an approved TA. Advance will be limited to 75% of the total M&IE estimated amount. All advances should be cleared 30 days from the issue date, unless the travel period extends beyond two weeks in which case, the staff member has 60 days to clear the advance.

14.6 Allowable and Unallowable Expenses (Applicable to All)

The following allowable and unallowable expenses apply to all Partners Mauritania travelers regardless of their relationship or the location of their base.

Partners Mauritania has a travel policy that provides a per diem for all Meals & Incidental Expenses (M&IE), while all other miscellaneous travel expenses, lodging, rental cars, personal vehicles, airfare, and train costs are reimbursed based upon actual expenses incurred. Allowable expenses are also limited to the conditions established on grants and agreements with funding agencies sponsoring the trip.

Furthermore, only allowable expenses are reimbursable under the category other miscellaneous travel expenses, lodging, rental cars, personal vehicles, airfare, and trains. No later than 30 days following the final day of a trip, an Expense Reimbursement Report should be prepared and submitted to the traveler's FO Finance Department. Partners Mauritania will not accept reimbursement requests made after 60 days unless approved by Senior Management at HQ. All travelers requesting an exception must make their requests in writing with a valid reason for the delay.

14.6.1 Lodging – Reimbursable Based

Lodging is defined as room charges and taxes. For reimbursement purposes, a receipt must be provided. These charges cannot include room service fees, upgrade fees, mini bar tabs, entertainment fees, etc. All of these other expenditures must be paid by the traveler using their personal or per diem funds and excluded from their lodging bill.

Partners Mauritania will recognize and reimburse lodging costs based on actual expenses, but the USG ceiling rates shall be a guide to appropriate expenditures per country and must not be exceeded. Exceptions above the maximum rate can be approved by the CFO or CEO. A list of USG guidance is provided below:

- General Services Administration (GSA) establishes per diem rates for destinations within the lower 48 Continental United States (CONUS).
- The Department of Defense (DOD) establishes non-foreign rates which includes Alaska, Hawaii, and all U.S. Territories (Non-CONUS).
- The State Department establishes all foreign rates which are specific to major cities.

14.6.2 Rental Cars – Reimbursable Based

The cost of rental cars including rental car insurance is allowed only if the nature of the trip or the location of business to be visited is such, that use of field transport or local transportation is unavailable, impractical, or unsafe, as determined by the traveler's supervisor. If deemed necessary and approved as part of the TA process, Partners Mauritania will recognize and reimburse rental car costs based on actual expenses. Prior to reimbursement, the FO Finance Department will need to check that the TA includes an explanation (specific uses) as to why a car rental was necessary. Note, Partners Mauritania does not carry a blanket collision damage waiver policy nor is the traveler covered with liability insurance if collision with the rental vehicle were to occur. Partners Mauritania recommends the purchase of collision and liability insurance each time a car is rented.

14.6.3 Use of Personal Vehicle – Reimbursable Based

Due to the liability and risk, the use of personal vehicles for project use should be used only under very rare circumstances and require prior approval of Partners HQ. The traveler will be reimbursed for gas mileage in accordance with the IRS standard mileage rate. The current mileage reimbursement for business purposes can be found at https://www.irs.gov/tax-professionals/standard-mileage-rates. A map from origin to destination must be included as documentation to receive mileage reimbursement.

Commented [KM17]: Updated to link to new rate

14.6.4 Tolls, Parking, Etc. – Reimbursable Based

For business travel, if renting a car, using a personal vehicle, or using a Partners Mauritania's program vehicle, Partners Mauritania will reimburse based on actual costs for all tolls, parking and other costs associated to the use of the vehicle. These types of expenditures are reimbursed based on actual charges incurred and a receipt must be provided for expenses over USD $25.

14.6.5 Airfare and Trains – Reimbursable Based

Partners Mauritania will reimburse or purchase on behalf of all approved travelers all necessary airfare and train tickets. For reimbursement purposes, a receipt must be provided for all airfare and train tickets. Note below the additional restrictions related to airfare purchases. Refundable tickets should only be purchased if the price difference between refundable and nonrefundable is 10% or less than the total ticket, otherwise nonrefundable should always be purchased.

There may be other circumstances in which refundable tickets are necessary and exceed 10% of the ticket value, such cases include but are not limited to project closeout, pending visas, illness, or other situation that may require a flight change. For these exceptional situations, prior approval in writing must be obtained from the CFO or Director of Grants and Contracts.

14.6.5.1 Seat Selection

Partners Mauritania permits staff to select seats, including seats with extra leg room, or in an exit row, assuming the seat is still in the economy cabin.

14.6.5.2 Seat/Class Upgrades

Only coach class or promotional fares will be paid by Partners Mauritania. Business and first class are considered seat upgrades and must follow the below protocol; otherwise, this will not be covered by Partners Mauritania. While seat upgrades are not to be expected, there are some circumstances when the traveler could be authorized to travel Business class:

- When no space is available in coach-class accommodation and the flight must be taken;
- When use of business class is necessary to accommodate traveler disability or a special need; or
- When the cost is the same or the traveler pays for the difference in cost between coach and the upgrade.

With the exception of no-cost upgrades, or the traveler pays for the difference in cost without Partners Mauritania's funding, all seat upgrades will need to be approved in advance with the FO Director and must include a written justification as to why the upgrade is necessary.

14.6.5.3 Fly America Act

All U.S. government-funded travel will comply with the Fly America Act, which requires that all travel and shipments must be made on U.S. flag carriers to the extent services by such carriers is available. Use of a Fly America compliant carrier is required regardless of whether a foreign carrier can provide the service at a comparable or lower cost, or whether a foreign carrier is preferred due to convenience. The rules generally provide for a limited number of exceptions; however, a U.S. carrier must be used for any travel: 1) within the U.S., or 2) between the U.S. and the last destination point that is served by a U.S. carrier for that particular routing. Exceptions to the Fly America Act can only be approved by Partners CFO at HQ. The exceptions are as listed below:

1. If a U.S. flag air carrier offers nonstop or direct service (no aircraft change) from your origin to your destination, you must use the U.S. flag air carrier service unless such use would extend your travel time, including delay at origin, by 24 hours or more.
2. If a U.S. flag air carrier does not offer nonstop or direct service (no aircraft change) between your origin and your destination, you must use a U.S. flag air carrier on every portion of the route where it provides service unless, when compared to using a foreign air carrier, such use would:
    - Increase the number of aircraft changes you must make outside of the U.S. by 2 or more; or
    - Extend your travel time by at least 6 hours or more; or
    - Require a connecting time of 4 hours or more at an overseas interchange point.

For a flight to be in compliance with the Fly America Act, the code of a U.S. flag air carrier must be noted as part of the flight number on the airline ticket, flight coupon (boarding pass), or passenger receipt. Each airline has a two-letter alpha code. From this list, you will be able to compare airline codes on the ticket with those on the list and thereby be able to ascertain whether or not the flight is on a U.S. Flag air carrier. In order to ensure that the flight is Fly America Act compliant all travel should be booked through the designated travel agent/agency.

Many of the U.S. flag air carriers are listed below:	
• AirTran Airways (FL) • Alaska Airlines (AS) • American Airlines (AA) • Continental Airlines (CO) • Delta Airlines (DL) • Frontier Airlines (F9) • Hawaiian Airlines (HA)	• JetBlue Airways (B6) • Midwest Express (YX) • Southwest Airlines (WN) • Spirit Airlines (NK) • United Airlines (UA) • US Airways (US)

14.6.6 Meals & Incidentals (M&IE) – Per Diem Based

Per diem means the amount of money that Partners Mauritania gives to the employee for an official trip out of his / her office to cover food and other expenses in accordance with current rates.

Partners Mauritania includes the cost of all meals and incidentals under a flat rate per diem provided to the traveler and will NOT reimburse based on actual expenditures. Partial per diem will be provided when one or more of the meals is provided by someone other than the traveler. For the appropriate amount of the per diem and exceptions, please reference Section 14.7 Per Diem for M&IE to determine correct per diem based on the traveler type.

All Partners' M&IE per diem rates are based on a percentage of the government per diems allowed per city and/or country. The per diem is always based on the city where the traveler will rest. For example, if the traveler leaves Bogota, Colombia, and travels to San Diego on day one, and returns back home from San Diego on day three, the first two days the per diem should be calculated based on the San Diego rate and the last day on Bogota, Colombia.

14.6.7 All Other Miscellaneous Travel Expenses (MTE) – Reimbursable Based

All other miscellaneous travel expenses (MTE) are additional expenses and paid as necessary and charged to the POA credit card or reimbursed based on the actual costs incurred. All MTE expenses over USD $25 must be supported by receipts/stubs/invoices as part of the expense report in order to be reimbursed. MTE includes but is not limited to the following:

- All ground transportation fees (buses, taxis, etc.) between place of lodging or business and places off site to obtain meals, meetings, site visits, etc. Reasonable amount for tips on shuttles, taxis, or other similar transport is acceptable and reimbursable in addition to the fare cost. Maximum reimbursable tip percentage is 20%.
- Visas
- Passport or renewal if needed
- Cost for Global Entry including TSA Precheck
- Room cleaning cost: Where an apartment is taken in lieu of hotel accommodations, the traveler may contract, however this must come from the incidental travel expense part of the per diem
- Immunizations and medications on travel
- Reproduction of materials

- Telephone calls and other communication costs that are reasonable and necessary for work-related communications, including SIM cards, data, and in-flight Wi-Fi charges.
- Bank fees for ATM withdrawals or fees for currency exchange.
- Reasonable cost for purchase of business attire in the event that baggage is lost/delayed is permitted (in the event that baggage is lost, and clothing must be purchased in order to keep with meeting schedules).

14.6.8 Business Meals Meeting Expense (Non-Travel) – Reimbursable Based

In certain circumstances business meals may be approved as a meeting expense. When dealing with food costs, always keep in mind that "entertainment" costs may not be charged to federal grant awards. The costs must clearly and directly benefit the grant project to which they are being charged. Under Partners policy on occasion a coffee, lunch or even breakfast may be considered a business meal assuming the work agenda is clear and it is not for entertainment purposes. Typically, the cost for dinner will always be unallowable. Expenses for business meals require names of people attending the meeting and the business purpose of the meal, regardless of the amount.

14.6.9 Business Meals Meeting Expense (Non-Travel) – Reimbursable Based

The cost of meals and refreshments during a conference, training, or meeting is allowable only under the following circumstances:

- The conference/training/meeting is undertaken to further the goals of the project.
- The associated food/refreshment costs appear in the approved project budget.
- There is a formal agenda for the conference/training/meeting and an attendee roster.
- Meals/refreshments provided are necessary to accomplish legitimate meeting or conference business (e.g., a working lunch is provided so that those attending can conduct a planning session or hear a project-related presentation.). The rule of thumb is that conference of 4 hours or longer may include a lunch if attendees cannot leave to obtain their own. Refreshments may typically only be included after 2-3 hours of a conference.

For example, that the cost of a coffee break and a working lunch associated with holding a semi-annual project meeting with attendees from all over the country would typically be allowable.

However, in contrast, a welcome lunch or general regular team meetings would not be an allowable cost.

14.6.10 Unallowable Expenses and Reimbursement Limitations

Partners Mauritania will not reimburse or cover charges for the below prohibited items. Please note these lists are not inclusive and Partners Mauritania reserves the right to refuse payment of any authorized or expense deemed unallowable.

14.6.10.1 Alcohol Purchases

Alcohol purchases may not be made with Partners Mauritania's funds while on Partners Mauritania travel.

14.6.10.2 Other Unallowable Expenses

Partners Mauritania's unallowable expenses include but are not limited to:

- Additional travel insurance, travel accident insurance or trip cancelation premiums
- Non-essential upgrades or packages
- Additional expenses associated with the cost of first or business class airfare, unless it falls into the exception categories listed above
- Childcare and babysitting expenses
- Costs incurred by your failure to cancel transportation or hotel reservations
- Costs incurred by your spouse or other dependents traveling with you, unless spouse or dependents is also on a Partners assignment
- Gasoline expenses when the automobile mileage reimbursement rate is claimed
- Hair styling and haircut expenses
- Spa, nails, or other treatments
- Entertainment or tour expenses, unless activity is required by Partners Mauritania trip
- Kennel/boarding expenses for pets
- Costs incurred for speeding tickets, etc. when renting or driving any vehicle for Partners Mauritania use
- Other expenses not directly related to the business purpose of the travel assignment

For a complete list of unallowable expenses for USG funds, please reference 2 CFR Part 200: Unallowable Costs, which includes any potential exceptions to the above unallowable expenses.

14.7 Per Diem for M&IE

Partners Mauritania has a travel policy that provides a per diem for all expenses related to meals and incidental expenses (M&IE). For the appropriate amount of per diem, please determine the traveler type. All travelers will fall into one of the three categories, as defined in Section 14.3 Traveler Definitions.

14.7.1 M&IE Rates

All Partners Mauritania's M&IE per diem rates are based on a percentage of the government per diems allowed per city and/or country, as defined herein and below. Depending on the destination, travelers should utilize the General Service Administration rates for travel within the continental US, the Department of Defense rates for travel to Alaska, Hawaii, and other US territories, and the State Department for all foreign travel. The websites to obtain the rates are listed below:

- General Services Administration (GSA) establishes per diem rates for destinations within the lower 48 Continental United States (CONUS).
- The Department of Defense (DOD) establishes non-foreign rates which includes Alaska, Hawaii, and all U.S. Territories (Non-CONUS).
- The State Department establishes all foreign rates which are specific to major cities.

Per diems are driven based on the approved TA and include any travel outside of HQ or the respective Country Field Office with travel duration of four (4) hours or longer, regardless of the destination or transportation mode. Exceptions to this must be approved by the CEO or CFO.

14.7.2 M&IE Meal Breakdown

M&IE is intended to cover the costs of meals and incidentals during each day of work-related travel. If a per diem recipient has one or more meals paid for the percentage of that meal must be deducted from the per diem rate. If the traveler is unable to eat a provided meal due to allergies, dietary or religious reason, then they are not required to exclude the meal. Some common examples of Partners provided meals are:

- Continental breakfast or other breakfast included in lodging*

- Work lunch/event paid for by Partners
- Conference registration that includes lunch
- Any other situation in which Partners covers the meal

*If due to Partners approved itinerary the traveler is unable to have breakfast at the hotel, they do not have to exclude. I.e. Breakfast starts at 7AM, but traveler must leave by 6AM. Waking up late or personal preference against the breakfast options, are not sufficient reason to not exclude.

If the daily M&IE rate excludes one or more of the meals, these are to be reduced at the following rates:

- Breakfast: 16% of daily calculated M&IE rate
- Lunch: 24% of daily calculated M&IE rate
- Dinner: 40% of daily calculated M&IE rate

Note that incidentals are calculated at 20% of the total daily rate and excluded from these meal rates; i.e., the sum of incidentals and the three meals is equal to 100% of the daily M&IE.
See examples in Annex R.

14.7.3 M&IE First and Last Day

On the first and last day of travel, partial per diem must be selected, unless a time exception applies. On the first day of travel, if a partial per diem is used, the traveler should not exclude breakfast from the per diem; Likewise, on the last day of travel, if a partial per diem is used, the traveler should not exclude dinner from the per diem.

On return day, if the traveler lands after 12AM but arrive back home before 6AM, no per diem is provided on that day.

For first and last days of travel (travel days), if the itinerary requires the traveler to start their travel day from their home-of-record (or work-related destination) before breakfast and return to their work-related destination (or home-of-record) after dinner, then the full per diem can be recorded and documented in the expense report. Specifically, the following time exceptions apply and allow the traveler to claim full per diem:

- If departure from home on first day of travel is before 6AM;
- If arrival to home on last day of travel is after 7PM; or
- If travel is for only one day, and total travel time that day is 10 hours or longer, regardless of start and end times for the daytrip.

Otherwise, travel day rates will be determined as defined in below.

If selecting full per diem on the first or last day of a multiple day trip, you must include a comment indicating the departure time for the first day or your return time on the last day.

14.7.4 M&IE Allowable Costs

The M&IE portion is intended to substantially cover the costs as described below.

1. The meals allowance portion is intended to include the cost of breakfast, lunch, and dinner while on travel, and is incorporated as part of the per diem.
2. Incidental travel expense portion is intended to include but are not limited to:
    a. Fees and tips to waiters, porters, baggage handlers, bellhops, hotel servants, dining room stewards, and similar employees
    b. Laundry, dry cleaning, and pressing of clothing
    c. Room cleaning tips
    d. All other incidental travel expenses as defined by Chapter 300, Part 300-3, in the Federal Travel Regulation (www.gsa.gov/ftr), under Per Diem Allowance.

Mauritania field office staff are not permitted to charge a corporate card for meals covered by their per diem, for themselves or any other individual receiving a Partners Mauritania's per diem. As all Partners Mauritania travelers receive some form of per diem, their costs should be paid for separately with per diem or personal funds. However, if the meal for the group is charged on a corporate card, this meal must be deducted from the daily per diem rate, at the rate defined above (in Section 14.7.2 M&IE Meal Breakdown) for the specified meal.

If Mauritania field office staff need to cover the cost for meal invitees (e.g. donors, etc.), they may use a corporate card to pay for the bill; however, they should deduct their meal and the meals of any other Partners Mauritania's per diem recipients from the bill and pay the remaining balance on the corporate card, if possible. Alternatively, they may choose to deduct the meal from the daily per diem rate received, as per the rate defined above for the specified meal. Similarly, when paying with personal credit card or cash (intending to be reimbursed), the Mauritania field office staff will only receive reimbursement for the portion of the bill that does not include meals for Partners Mauritania's per diem recipients. If for some reason the bill cannot be split, and there is no other option than to pay on a corporate card, the Mauritania field office staff member must split out the portion of the bill when coding their credit card statement between personal charges and actual business expenses. The Mauritania field office staff member will be liable to pay Partners Mauritania back for their part of the meal and for the meals of any other Partners Mauritania per diem recipient charged to their Partners Mauritania's corporate credit card if they received an advance for per diem; otherwise, this should be deducted from the expense report when requesting travel per diem after the trip.

14.7.4.1 M&IE Weekend Travel

Should a traveler remain away from home on business over a weekend, the per diem will be allowed, assuming that the traveler is required to be away from home over the weekend for business purposes.

14.7.5 Per Diem M&IE – Mauritania Field Office Staff

This portion of the per diem policy guidelines applies to all Mauritania field office staff, local consultants and all other local travelers based outside of the US. This policy includes the FO Director, Chief of Party, etc.

For all full days on travel, the per diem rates will vary based on type of travel as outlined below:

- **Partners Mauritania staff will receive 50% for all domestic travel and 90% for all international travel** (unless an exception is on file) of the government per diem rate for the particular city (or region for travel where not all specific cities are listed).*

On the first and last day of travel, in alignment with the USG guidelines, the maximum M&IE per diem will be based on the type of travel as outlined below:

- **Partners Mauritania staff will receive 37.5% for all domestic travel and 67.5% for all international travel** (unless an exception is on file) of the government per diem rate for the particular city (or region for travel where not all specific cities are listed). See exceptions to this in Section 14.7.2 M&IE Meal Breakdown above.*

*If local field office staff are taking personal vacation time either before or after the Partners Mauritania business travel, they will not receive Partners Mauritania per diem those days. The local field office staff will receive the first and last travel day in accordance with the guidelines listed above, as these local field office staff local field office staff would have had to travel to or from the office or place of residency whether or not they were on personal travel after or prior to the trip.

14.7.6 Payment of Per Diems

Regardless of the traveler, per diems will only be paid upon the Finance Office's receipt of an approved TA and per diem form. The approved TA and per diem form will be the supporting documentation and authorization for the issuance of the per diem. No receipts will be required for per diem payment, except as defined in this policy.

All per diem payments should be made within 30 days from the end date of travel. Partners Mauritania will not accept per diem payment requests made after 60 days unless approved by Partners HQ. All travelers requesting an exception must make their requests for exceptions in writing (e.g. memorandum addressed to the FO Finance Office) with a valid reason for the delay.

It is the traveler's responsibility to utilize their per diem to cover all their meals and incidentals. Unless approved by the CEO, no additional M&IE will be provided. The traveler does not need to reimburse the organization if they do not spend all their daily M&IE.

14.7.6.1 Per Diem Payment for Local Field Office Staff

Local field office staff including the FO Director and all other local travelers outside of the U.S. will be issued their per diem upon submission of the approved travel authorization via Replicon. The per diem request with the attached travel authorization as the supporting documentation will need to be submitted by each employee in Replicon, and then approved by the appropriate supervisor on Replicon. Once completed, this information will be submitted to the FO Finance Department for direct payment into the employee's bank account within 30 days. The exchange pre-populated in Replicon should be used to convert the USD per diem values to local currency.

14.8 Reimbursement Requests (Non-Per Diem Items)

Allowable expenses that may be submitted for reimbursement as described above (lodging, rental cars, personal vehicles, airfare, and trains) are all reasonable costs which are essential and directly related to the objectives of the grant and/or the main purpose of the trip.

14.8.1 Expense Reports for Reimbursement – Mauritania Field Office Staff

No later than 30 days following the final day of a trip as necessary (in which purchases are not made on behalf of the traveler in advance), a reimbursement request should be prepared in Replicon and submitted to the FO Finance Department. The method for requesting expense reimbursement will be done via the Replicon application. This report should include the following:

- A fully executed Travel Authorization
- Expense Report which includes all proper documentation and copies of receipts attached for all items over USD $25 or the local MRU equivalent.
    - Please note that a bank or credit card statement is not sufficient documentation for a receipt. Where sufficient documentation has not been obtained, an affidavit will need to be filled out confirming the expenses were for business purposes and that the expenses did not include any alcohol. A copy of an appropriate affidavit is found in Annex S.
- The exchange rate is automatically pre-populated in Replicon using the prior months average exchange rate.

14.9 Personal Travel During Business Trips

If, for personal reasons, the traveler wishes to go to places other than those on the authorized Partners itinerary, he/she may book and must pay for those reservations and additional costs. To document the price difference, the traveler must build a cost construct. To build the cost construct the traveler must get two quotes from our travel agents, 1) for the POA approved dates and routes, and 2) for the traveler's preferred dates and/or routes. The traveler must provide a copy of the cost construct the Compliance Team if they are booking personal travel/personal portion of the trip. If the flight cost is a cheaper ticket price including personal days on the beginning or end of the trip, the traveler does not need to reimburse any money. Travelers are only responsible for paying the difference of the ticket price. For example, travel dates for business ticket cost equals $500, travel dates including a personal portion of the trip equals $600, the staff must reimburse Partners the $100 difference between business ticket cost and personal portion of the trip. If the personal travel is booked on the same ticket as the Partners authorized trip, the traveler will be responsible for covering their personal travel within 10 days of the booking. Appropriate documentation showing the additional costs must be kept on file for audit purposes.

15. Vehicle Policy and Procedure

15.1 Overview of Vehicle Policy

Partners Mauritania has company/project vehicles that may be available for business purposes only. All employees must comply with the following policy which describes the processes to operate, fuel, maintain, keep records, and generally manage vehicles owned, rented, or leased by Partners. The policy is intended to reduce risks to Partners and its personnel by establishing reasonable restrictions on the use, maintenance and management of vehicles owned, rented, or leased directly by Partners. Each FO Director is responsible for compliance with the policy of any vehicle owned or leased by Partners under their project. For the purposes of this policy a "Vehicle" is defined as cars, trucks, motorcycles, or any other motorized vehicle owned by Partners Mauritania. Failure to comply with this policy will constitute a serious offense and will result in disciplinary action up to and including termination.

15.2 Authorization for Use of Partners Mauritania's Vehicles

Only authorized employees or approved external drivers are eligible to operate Partners vehicles. All authorized employees and approved outside drivers must be named/covered by local and/or international insurance policies. Authorization may be given for a short, one-time period or for longer periods of time up to the entire life of the project under which the vehicle will be used. Authorization may be revoked based on changes in the safety context, accidents or other misuse of the vehicles, operation of the vehicle by unauthorized drivers, failure to track mileage, or other non-compliance with this policy. To be an authorized driver of Partners vehicle, the authorization form in attachment 1, must be completed. Available in Pandadoc here.

15.3 General Requirements on Use of Partners Vehicles

All employees using company vehicles must following the below requirements:

- Only authorized employees of Partners are eligible to drive company vehicles.
- Partners provides vehicles for business use to allow employees to drive on designated business assignments. Company vehicles are **only** to be used for business travel.
- Vehicle drivers shall not take actions that contradict Partners policies and procedures unless there is a safety situation or an emergency that requires it.
- Only vehicles owned or titled by Partners may be used for official Partners business, unless authorization is given in writing by the FO Director to use a personal vehicle for business use, see guidelines for personal vehicles below.
- Persons who are not employees and passengers who are not directly linked to Partners projects may only travel in Partners vehicles when authorized.
- All authorized employees or approved external drivers must be 25 years of age or older and must have a valid driver's license, and have proof of annual background check and vision screening. FO Directors for each project must maintain copies of all documentation in the project files.
- Authorized employees and external drivers approved to drive Partners vehicles must inform the FO Director of any changes that may affect their legal or physical ability to drive.

- On occasion supervisors must check the employee's driving record to ensure that the employee’s record is clean and without motorized vehicle violations.
- Copies of the vehicle insurance, registration and the emergency telephone numbers must remain in Partners vehicles at all times.
- Smoking or vaping is prohibited in all Partners vehicles.
- Under no circumstances may weapons or illegal substances be transported in Partners vehicles.
- Keys must be keep in a secure location or should be returned to the FO Director when the vehicle is not in use or on business assignment.
- Key should only be held by authorized employees of Partners who are eligible to drive company vehicles.
- Any driver of Partners’ vehicles must ensure that the equipment does not experience any deterioration either by his/her direct negligence or by the fault of a third party. Therefore, the employee will personally ensure the proper physical maintenance of the vehicle he/she is responsible for by checking the daily cleanliness and routine parameters, which the employee will note before each use.
- All individuals driving Partners’ vehicles, must always have a valid driver license on them while utilizing the company vehicle.
- Employees holding jobs requiring regular driving for business as an essential job function must, as a condition of employment, be able to meet the driver approval standards of this policy at all times.
- Drivers must always drive safely and responsibly and follow all traffic regulations, including the speed limit and pay special attention to pedestrians and cyclists.
- Drivers must be mindful of the weather, and avoid driving during severe weather conditions, when feasible.
- Use of handheld cell phones (including texting) while behind the wheel of a moving vehicle being used on company business is strictly prohibited.
- Employees are responsible for any driving infractions or fines as a result of their driving.
- Nonbusiness passengers (i.e., family and friends) are should not ride in company vehicles.

- Vehicle doors must be locked when in motion.
- Company vehicles shall always be secured when not in transit by being locked, keys removed, and alarms activated if so equipped.
- Employees must report any accident, theft or malicious damage involving a company vehicle to the FO Director and HO project team and the Compliance Team at compliance@partners.net, regardless of the extent of damage or lack of injuries. Such reports must be made as soon as possible but no later than 6 hours after the incident unless employee is medically incapable of reporting.
- Employees are expected to cooperate fully with authorities in the event of an accident. However, employees should make no voluntary statement other than in reply to questions of investigating officers.
- Seatbelts must always be worn by all passengers in the vehicle.
- Employees are not permitted, under any circumstances, to operate a company vehicle with any physical or mental impairment that causes the employee to be unable to drive safely. Furthermore, employees shall not operate any company vehicle while using or consuming alcohol, illegal drugs or prescription medications that may affect their ability to drive.
- The driver is responsible for ensuring all necessary precautions are always taken to prevent damage and theft of the company vehicle and/or its contents. Whenever an employee leaves a company vehicle, the following must be done:
    - Roll up all windows
    - Lock all doors
    - Do not leave merchandise and equipment in open view inside a car, which may tempt a break-in. Remove all valuable items or lock them inside the trunk and out of sight when the vehicle is left unattended.
- Authorized employees and approved external drivers must never leave the vehicle unattended unless it is parked in a secure parking lot or garage. In the event that the authorized employee or approved external driver does not find a safe place to store the Partners vehicle overnight, he/she shall return and store it in the Partners office parking lot.

Any violation of the above requirements will result in disciplinary action, up to and including termination.

15.4 General Requirements on Use of Personal Vehicles

Personal vehicles may not be used for official business without express written permission of the FO Director and acknowledgement that Partners is not responsible for loss, damage, injury, or death of passengers resulting from the use thereof. If an employee is authorized to use their vehicle, they must comply with all maintenance and technical and mechanical inspection requirements and other legal obligations. To request approval to use a personal vehicle for business purposes, the approval form in attachment 2 must be completed. Also available in PandaDoc here. To use a personal vehicle for business purposes, the vehicle must have the following minimum insurance coverage: $100,000 USD coverage with maximum deductible of $5,000 USD for third party liability.

15.5 Waivers for Non-Business Related Passengers

Non-business related passengers (i.e. family or friends) seeking to accompany employees on company-sponsored travel must obtain a waiver prior to travel. This waiver process ensures that non-business related individual acknowledge and assume any associated risks, liabilities, and responsibilities during the journey. Failure to secure a waiver may result in non-business related passengers being ineligible to join company-related travel activities. All non-business related passengers must sign indemnity waivers in attachment 3 and available in PandaDoc here.

15.6 Vehicle Driving Restrictions

Any employee who has a "major violation" in the last five years will not be eligible to drive company vehicles unless special authorization is given by the COO. Major violations include but are not limited to:

- Driving under the influence of drugs/alcohol;
- Failure to report an accident;
- Reckless driving;
- Making a false accident report;
- Driving while license is suspended or revoked; or

- Attempting to evade a police officer.

15.7 Vehicle Travel Restrictions

Vehicles within cities must take into account the current security situation in the country. It is recommended to check with the FO Finance Manager for the restrictions in place and adhered to U.S. Embassy restrictions for travel. For trips, the maximum time of departure is: 5:00am and the maximum time of return is 7:00pm. Exceptions may be requested by writing to Partners HQ, in consultation with Embassy Security and depending on the geographic area for travel.

A seat belt is required at all times and the speed must not exceed 100 km/h or 60 miles on national roads and 40-50 km/h on dirt roads, depending on the state, or less based on the road signs and Mauritanian traffic laws.

15.8 Vehicle Inspections

Before each use, employees must complete a basic vehicle and safety check before and update the TripLog application. Vehicles found to be in an unsafe condition may not be operated until repaired. The basic check should include confirmation that the following parts and components are functioning properly:

- or brakes
- or steering mechanism
- or whistle
- or windshield wipers
- or mirrors
- or lights
- or tires

Any damage identified during the basic verification should be recorded on TripLog and reported to the FO Director.

15.9 Vehicle Logs

A mileage log must be maintained for each vehicle, identifying the date and purpose of each trip and the beginning, and ending odometer readings. The mileage log must be maintained for each vehicle using the TripLog application. Vehicle drivers are responsible for ensure the application is tracking for each trip. Mileage is tracked on the application, even when offline. If for someone reason the driver is having difficulty with the AutoStart of the application, they must manually start and stop the route for their trip on the application.

At the end of each day, the employee will need to ensure TripLog is updated and report any damages and/or issues with the vehicle on the application, including taking any photos of issues/damages. If an employee fails to update the mileage log, they will face disciplinary action. The FO Director is responsible for ensuring that records are accurately maintained for project vehicles.

At the end of each month by the 5th of the following month (or business day prior if the 5th falls on a weekend or holiday), employees will submit all the prior month's trips on TripLog. Supervisors will need to review and approve the prior month's trips on the application by the 10th of the month (or business day prior if the 10th falls on a weekend or holiday).

15.10 Reporting Vehicle Accidents

In the event of an accident, drivers involved/responsible parties shall take the following measures:

- If anyone is hurt or injured, call for medical assistance;
- Contact the FO Director and HO Project Team immediately;
- Report the incident immediately to the local police and obtain a copy of the police report;
- Get the below information if possible:
    - Nature and extent of the damage to vehicles and other property;
    - Name and address of the legal owner of the other vehicle or vehicles, if any.
    - Name, address, driver's license number, and date of birth of the driver of the other vehicle or vehicles, if any;
    - License number, make and model of the other vehicle or vehicles, if any;
    - Name of the insurance company of any other driver or drivers, policy number and expiration date, and policy holder's name and address;
    - Time, place, and date of the accident;

    - Names and addresses of anyone injured and description of injuries; and
    - Names and addresses of any passengers and other witnesses.
- Exchange vehicle identification, insurance company name and policy numbers with the other driver (if applicable);
- Do not admit negligence or liability. Give no information except as required by law enforcement officers;
- Do not attempt settlement, regardless of how minor;
- Take a photograph of the scene of accident;
- Complete the employee accident report found in Annex F.

After the accident, the employee should follow legal guidelines for exchanging information with other drivers and report the accident to local police. Employees cannot guarantee payment to other parties. The employee will be responsible for completing the Employee Accident Report Form found in Annex F. Such reports must be made as soon as possible but no later than 6 hours after the incident unless employee is medically incapable of reporting. All photos, police reports, employee accident reports, and other information relating to the incident must be retained and a copy sent to the FO Director and HO Project Team. The HO Project Team will work with the Compliance Team & HR to contact the insurance provider and file claim, as necessary.

15.11 Vehicle Repairs and Maintenance

For all vehicle repairs, employees must review the warranty on the vehicle when applicable. The warranty must be reviewed to ensure that the repairs are not covered under the existing warranty and/or that the repairs are done at the necessary shop which are authorized outlets for service. Additionally, the driver must check that the original parts of the vehicle are not replaced used parts, a dishonest practice quite common for radiators, batteries, lamps etc. in some places.

15.11.1 Normal Vehicle Maintenance

The driver will respect the normal maintenance schedule of the vehicle, usually based on the mileage of the car or the number of months of use if it occurs before. The objective is to maintain company vehicles in a safe and operating condition by using the most economical, reliable, and up-to-date procedures and technologies available, all in accordance with the original manufacturer's recommendations. Employees who are having vehicles serviced for normal maintenance, should follow all necessary procurement standards and recommended maintenance timelines.

The FO Director is responsible for ensuring that Partners vehicles receive normal maintenance according to the schedule (e.g., based on mileage or number of months of use).

15.11.2 Major Vehicle Repairs

For all major vehicle repairs the process and selection of the provider will be documented in accordance with the normal procurement standards set forth in Partners Procurement Policy. If the major repair pertains to an accident report and an insurance claim is filed, then HO Compliance Team in coordination with the FO Director will work with the insurance agent to cover the cost less any deductible.

15.12 Vehicle Insurance and Registration

All Partners' vehicle must be registered in the respective country with the appropriate authorities. Any vehicle that is not properly registered cannot be used for business, until the registration is completed and/or updated. Copies of current vehicle registration information must always be retained in the glovebox of the vehicle, and a second copy filed with the FO Director and HO Project Team.

Under Partners HO vehicle insurance policy, it provides protection to authorized drivers of company vehicles while on official business. The insurance policy covers collision, fire, theft, and liability and includes a deductible. If the accident is due to driver negligence, the insurance claim may be denied, and the employee may be responsible for all costs associated with the incident.

Attachment 1 – Authorization Form: Employee Business Use of Vehicle

REQUEST FOR AUTHORIZATION TO OPERATE PARTNERS VEHICLE

Available in Pandadoc here.

This form is the application to operate vehicles at Partners. You must have the approval of the FO Director to operate any vehicle at Partners.

Country:		**Vehicle Description & Plate Number:**	
Employee's Full Name		**Position**	
Date of vehicle request:		**Authorization period:**	
Vehicle location (Address)		**Grant number for vehicle use reason:**	
Reason for use:			
Signature of key handover and vehicle condition check			

CERTIFICATION AND KNOWLEDGE

I hereby certify that, whenever I operate a vehicle for company business I will comply with:

- That I am an employee with a current contract with Partners.
- I have a valid driver's license, and will not drive with a suspended or cancelled driver's license.
- That I am over 25 years old.
- I have not received more than one traffic ticket and I have not had any accidents in the last year.
- That the vehicle will be used for program activities and not for personal activities.
- Perform vehicle and safety inspection before the start of the trip.
- Will track mileage on TripLog application.
- I will not smoke or allow the use of cigarettes of any kind inside the vehicle.
- I will maintain all security measures for the vehicle including parking in authorized and secure locations.
- That I will comply with the speed and traffic regulations in force.

- I will comply with safety regulations including the use of seat belts for the driver and passengers, not using a cell phone while driving, or driving while fatigued, under the influence of alcohol/illegal drugs or driving under unfavorable weather conditions.
- Not to transport or allow the transport of weapons or illicit substances in vehicles.
- I will assume the payment of the traffic violations that have been imposed on the vehicle during the time the vehicle is assigned to me.
- I will immediately report to the FO Director any accident or damage to the vehicle that occurs.
- Any violation of the above requirements may result in disciplinary action for the person responsible for the vehicle including termination of employment with just cause.

By signing below you certify that you have read and understood the conditions of use of the Partners vehicle use policy and the condition set forth above.

Signature of employee: ____

Date:______________________

By signing below, I approve the employee's authorization to use Partners vehicle.

Signature of FO Director: ____

Date:______________________

Attachment 2 – Authorization for Use of Personnel Vehicles for Official Business

Available in PandaDoc here.
Name and position of Employee:
____

Period of authorization: ☐ Life of Project ☐ Other _______________

If other, dates and purpose:
____

Vehicle information:
Make/Model/Year:
VIN:
License Plate:
Insurance information (please attach copy of insurance card):

Contact information in case of an emergency: Name: Phone:

Certification and Acknowledgement

I hereby certify that, whenever I operate my personal vehicle for company business I will comply with:

- That I am an employee with a current contract with Partners.
- I have a valid driver's license, and will not drive with a suspended or cancelled driver's license.
- That I am over 25 years old.
- I have not received more than one traffic ticket and I have not had any accidents in the last year.
- That the vehicle will be used only for program activities.
- Check tire pressure, fuel level, brake fluid and oil level before the start of the trip.
- I will not smoke or allow the use of cigarettes of any kind inside the vehicle.
- I will maintain all security measures for the vehicle including parking in authorized and secure locations.
- That I will comply with the speed and traffic regulations in force.
- I will comply with safety regulations including the use of seat belts for the driver and passengers, not using a cell phone while driving, or driving while fatigued, under the influence of alcohol/illegal drugs or driving under unfavorable weather conditions.
- I will not transport or allow the transport of weapons or illicit substances in the vehicle.
- I will assume the payment of the traffic violations that have been imposed on the vehicle

during the time the vehicle is assigned to me.

- I will immediately report to the FO Director any accident or damage that occurs.
- Any violation of the above requirements may result in disciplinary action for the person responsible for the vehicle including termination of employment with just cause.
- I understand that **(i)** Partners is not responsible for loss, damage, injury, or death of passengers resulting from the use of the same, and that **(ii)** the exceptional authorization to use personal vehicles may be revoked based on changes in the security context, accidents or other misuse of the vehicles, operation of the vehicle by unauthorized drivers, failure to monitor mileage or other non-compliance with this policy.

Informed consent and indemnity waiver for non-employee passengers

I, the undersigned, as the occupant of the vehicle with license plates above, voluntarily declare and accept the following:

1. That I understand and accept that Partners does not provide a transportation or rental service.
2. That I have decided to use the vehicle as an occupant, assuming full responsibility for the occurrence of any conduct that affects or endangers my life, health, integrity, and conduct.
3. That by occupying the vehicle I understand that I have no contractual relationship with Partners regarding the use of the vehicle and therefore I waive to claim any indemnity, damage, or compensation of any nature, arising from a conduct or fact that affects or endangers my life, health, integrity, and conduct.
4. That as a consequence of the above, I hold harmless Partners, its affiliates, directors, employees, partners, and representatives, against any conduct or fact that affects or endangers my life, health, integrity, and conduct.
5. That I conduct Partners, its employees, administrators, and contractors from all liability arising from the negligence or fault of Partners for personal injury or death, 174on or damage to conduct or any other risk to which I may be exposed and that may occur to me during my transfers in the vehicles administered by Partners.
6. That I agree to hold Partners harmless from any claim, conduct action for any conduct or omission on my part, affecting Partners.

By signing below you certify that you have read and understood the conditions of use of the Partners vehicle use policy and the condition set forth above.

Signature of employee: ____

Date:______________________

By signing below, I approve the employee's request to use their personal vehicle for business purposes.

Signature of FO Director: ____

Date:______________________

Attachment 3 - Authorization for Non-business Related Passengers

Available in PandaDoc here.

Name and position of Employee:
____

Passenger name: ____

Passenger connection with Partners: ☐ Friends ☐ Family ☐ Other _______________
Period of authorization: ☐ Life of Project ☐ Other

If other, dates and purpose:
____

Vehicle information:
Make/Model/Year:
VIN:
License Plate:

Informed consent and indemnity waiver for non-employee passengers
I, the undersigned, as the occupant of the vehicle above, voluntarily declare and accept the following:

1. That I understand and accept that Partners does not provide a transportation or rental service.
2. That I have decided to use the vehicle as an occupant, assuming full responsibility for the occurrence of any event that affects or endangers my life, health, integrity, and property.
3. That by occupying the vehicle I understand that I have no contractual relationship with Partners regarding the use of the vehicle and therefore I waive to claim any indemnity, damage, or compensation of any nature, arising from an event or fact that affects or endangers my life, health, integrity, and property.
4. That as a consequence of the above, I will hold harmless Partners, its affiliates, directors, employees, partners, and representatives, against any event or fact that affects or endangers my life, health, integrity, and property.
5. That I release Partners, its employees, administrators, and contractors from all liability arising from the negligence or fault of Partners for personal injury or death, loss or damage to property or any other risk to which I may be exposed and that may occur to me during my transfers in the vehicles administered by Partners.
6. That I agree to hold Partners harmless from any claim, demand or action for any conduct or omission on my part, affecting Partners.

By signing below you certify that you have read and understood the conditions of use of the Partners vehicle use policy and the condition set forth above.

Signature of occupant: ____

Date:______________________

Annex A: Inventory & Equipment Listing Report

Inventory & Equipment Listing Report

Project Name or Admin Department: ____________________

Grant Number (if applicable): ____________________

Inventory as of: 1/31/2024

#	Photo	Description of Inventory & Equipment	Condition	Brand	Model	Serial #	Method of Acquisition	Acquisition/ Purchase Date	Purchase Price	% Charged to Grant	Amount Charged to Grant	Current Price	Useful Life in Days	Current Price Charged to Grant	Grant	Type of Equipment/ Supply	Useful Life	City & Physical Location	Responsible Person	Notes
Equipment (over $5,000 USD)																				
1								5/1/2023	$ 18,000.00	100%	$ 18,000.00	$ 15,287.67	1,825.00	$ 15,287.67		Vehicle	5 Years			
2																				
3																				
4																				
5																				
6																				
7																				
8																				
9																				
10																				
Inventory & Supplies (under $5,000 USD)																				
1								5/1/2023	$ 100.00	100%	$ 100.00	$ 24.66	365.00	$ 24.66		General Supplies	1 Year			
2																				
3																				
4																				
5																				
6																				
7																				
8																				
9																				
10																				
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21																				
22																				
23																				
24																				
25																				
26																				
27																				
28																				
29																				
30																				
Total									$ 18,100.00		$ 18,100.00	$ 15,312.33		$ 15,312.33						

Submitted by name: ____________________

Signature: ____________________ Date: __________

Reviewed & Approved by name: ____________________

Signature: ____________________ Date: __________

Annex B: Petty Cash Count

Petty Cash Count

Partners of the Americas - USDA600 Mauritania Field Office - Petty Cash Count			
Petty Cash Count on		**22-Oct-24**	
Bank Notes	1,000 Mauritanian ouguiya	**MRU 0.00**	
	500 Mauritanian ouguiya	**MRU 0.00**	
	200 Mauritanian ouguiya	**MRU 0.00**	
	100 Mauritanian ouguiya	**MRU 0.00**	
	50 Mauritanian ouguiya	**MRU 0.00**	
	20 Mauritanian ouguiya	**MRU 0.00**	
Coins	Coins Total	**MRU 0.00**	
	Total Cash On Hand	**MRU 0.00**	
By signing below I certify that I have conducted a cash count and verified Petty Cash Float in the presence of the petty cash float holder on:			***10/22/2024***
Prepared by:		Signature:	
Title of Preparer:	**Accountant**	Date:	10/22/2024
Certified by:		Signature:	
Title of Certifier:	**Director of Administration & Finance**	Date:	10/22/2024
Remarks:			

Annex C: Field Expenditure Report and Certification

Field Expenditure Report and Certification

V.2022.05

Setup

Prepared By:	Danielle Martin
Country Code:	MAU
Local Currency:	MRU
Period:	202403
Exchange Rate:	39.95
Reference Number	2024-03 Mauritania USDA600 FO Report
Transaction Description	2024-03 Mauritania USDA600 FO Report

>>>>>

OK

Upload Hide/ Clear

Lin	Posting Dat	Transaction Da	Budget Code Description	Budget Code	Account	Vendor/Payee	eference Nu	Description	Line Description	Cu	change
1	3/31/2024	3/2/2024	Administration - Office Meeting Expenses	MEETING	87010	PIEDAD COLLAZOS - LA FONDA T	uritania USDA60	2024-03 Mauritania	DSE134-FV2705 Meeting with cacao farmers and ext	MRU	39.95
2	3/31/2024	3/2/2024	Activity 1 - Local Transportation for Trainings	LOCALTRV-1	86000	RODRIGO DE JESUS ROJAS MORE	uritania USDA60	2024-03 Mauritania	DSE135 Transports Santa Marta visit cacao farms in M	MRU	39.95
3	3/31/2024	3/31/2024	Cash Flow Advance - USDA600 Funds	99999	12229		2024-03 Mauritania USDA60	2024-03 Mauritania	USDA600 FO Report	MRU	39.95

Partners of the Americas
General Information & Certifications

Name of the Country office	**Mauritania Field Office**
Project Code:	***USDA600***
Project Name:	***USDA FFPr Mauritania***
Project Start Date:	**01-Oct-23**
Project End Date:	**30-Sep-28**
Report Date:	**01-May-24**

Certification of Expenses:

1. The undersigned hereby certifies (1) the fiscal report & attachments have been prepared from the books & records of the field office in accordance with the terms of the grant award, and to the best of my knowledge and belief, that they are correct, that the sum claimed under this award is proper and that all the costs of the field office performance (except as herewith reported in writing has been accrued or paid or will be paid currently to the award when due in the ordinary course of business.)

2. That the work reflected by the costs above have been performed, that the quantities and amounts involved are consistent with the requirements of the award.

3. That all required approvals have been obtained and appropriate refund to Partners of the Americas will be made upon request in the event of disallowance of costs not reimbursable under the term of this award.

4. By signing this report, I certify that the expenses contained in the present report below were incurred by the field office, and are related to activities carried out by the project. I certify to the best of my knowledge and belief that the report is true, complete, and accurate, and that the expenditures and disbursements are for the purposes and objectives set forth in the terms and conditions of the USDA's Award. I am aware that any false, fictitious, or fraudulent information, or the omission of any material fact, may subject me to criminal, civil or administrative penalties for fraud, false statements, false claims or otherwise. I understand that if the expenses contained herein are questioned or not approved by Partners CFO or by the USDA, I will provide full cooperation to all the involved parties to complete such review, audit or investigation.

F&A Director

Name of Certifier: ______________________________

Signature: ______________________________

Bank Reconciliation

PARTNERS of the AMERICAS
Connect • Serve • Change Lives

USDA600 - Mauritania
Bank Reconciliation
Bank Account: XXX

Month and Year: **May-24**

Exchange Rate for the Month MRU to USD **39.65**

According to the Bank

Balance as end of:	*May-24*	**MRU 10,292,732.21**
Plus:		
Deposits in Transit		**MRU 0.00**
Less:		
Check in Transit		**MRU 0.00**

Number of Check	Details of Expense	Date	Amount
			MRU 0.00
			MRU 0.00
			MRU 0.00
			MRU 0.00
			MRU 0.00
			MRU 0.00

Balance According to the Bank:	**May-24**	**MRU 0.00**
Exchange Rate Applied MRU to USD		**39.65**
USD Balance According to the Bank end of:	**May-24**	$ -

According to the Books

Balance as Beginning of:	*May-24*	**MRU 0.00**
Plus:		
Deposits for the Month		**MRU 0.00**
Less:		
Check Written in Current Month		**MRU 0.00**

MRU Balance According to the Books end of:	**May-24**	**MRU 0.00**
Exchange Rate Applied MRU to USD		**39.65**
USD Balance According to the Books end of:	**May-24**	$ -
Difference of Bank and Book Balance as end of:	**May-24**	$ -

By signing this report, I certify that the expenses contained in the present report for month of XXXX equivalent to US dollars $XXX were incurred by the entity, and are related to activities carried out by the project. I certify to the best of my knowledge and belief that the report is true, complete, and accurate, and that the expenditures and disbursements are for the purposes and objectives set forth in the terms and conditions of the USDA Award. I am aware that any false, fictitious, or fraudulent information, or the omission of any material fact, may subject me to criminal, civil or administrative penalties for fraud, false statements, false claims or otherwise. I understand that if the expenses contained herein are questioned or not approved by Partners CFO or by USDA, I will provide full cooperation to all the involved parties to complete such review, audit or investigation.

Prepared By: ______________________ ________
Accountant Date

Approved By: ______________________ ________
Director Administration & Finance Date

Annex D: Cash Flow Request

Cash Flow Request

PARTNERS *of the* AMERICAS
Connect • Serve • Change Lives

Partners of the Americas

	CASH FLOW REQUEST for	**May-24**	
Office: Mauritania	***Currency:*** MRU	***Date Requested:***	4/29/2024
Program/Grant #:	**USDA600**		

			Amount
Ending Bank Balance from Previous Month (MRU)			MRU -
Exchange Rate of MRU to USD			39.65
Ending Bank Balance in USD			$ -
Last Cash Flow Request (if not in previous month bank statement, otherwise put 0)			$ -
Total Projections for Current Month in USD	**Apr-24**		$ -
Total Projections for Next Month in USD (Rounded Numbers)		**May-24**	
Personnel (Administration)			$ -
Fringe Benefits (Administration)			$ -
Travel (Administration)			$ -
Professional Services/Contractual (Administration)			$ -
Equipment (Administration)			$ -
Office Expenses (Administration)			$ -
Office Supplies (Administration)			$ -
Other (Administration)			$ -
Activity 1			$ -
Activity 2			$ -
Activity 3			$ -
Activity 4			$ -
Total			$ -
Necessary Funding for Next Month			$ -
Total Cash Flow Request			$ -

Prepared by:		Signature:	
Title of Preparer		Date:	
Certified By:		Signature:	
Title of Certifier:		Date:	

Annex E: Petty Cash Certification

Petty Cash Certification

Date

Name of Country Director/Chief of Party
Country Director/Chief of Party

Dear **Name of Country Director/Chief of Party**:

Re: CERTIFICATE OF PETTY CASH FLOAT HELD FOR PROJECT NAME AND GRANT NUMBER

TOTAL OF PETTY CASH FLOAT: ________________________

LESS TOTAL PETTY CASH VOUCHERS: ________________________

EQUALS TOTAL CASH ON HAND: ________________________

I certify that I have conducted a cash count on ______________ (date) and verified Petty Cash Float in the presence of the petty cash float holder.

PETTY CASH VERIFIER: ____________________ Name

_____________________Signature

PETTY CASH FLOAT HOLDER: ____________________ Name

____________________ Signature

Annex F: Complaint Form

Complaint Form

The information you provide below is considered sensitive and will be shared only with those who are considered essential to the investigation and disposition of this complaint. Do not feel limited by the space provided in this form – you are encouraged to attach additional pages if you believe it will assist in the investigation.

If you are more comfortable with verbally relaying your report, your supervisor, or any member of management you've discussed your complaint with can complete the form on your behalf. However, you must sign the last page.

Complainant Name:	
Position:	
Department:	
Supervisor:	
1. Describe the alleged incident(s).	
2. Who was responsible for the alleged incident(s)?	

3. Identify any witnesses to the alleged incident(s).
4. Where did the alleged incident(s) take place?
5. List the date(s) and time(s) that the alleged incident(s) occurred.
6. Have you reported this incident to anyone else? If so, whom?

Employee Signature		***Date***
Signature of Person Completing Form (if not employee):		***Date***
Name of Person Completing Form (if not employee):		

Employees have a right to work in an environment free of discrimination and harassment. Partners' policy prohibits retaliation against any employee for complaining about discrimination or harassment.

Annex G: Gender Identity Policy

Partners does not discriminate in any way based on sex, sexual orientation, gender identity, or gender expression. This policy is designed to create a safe and productive workplace environment for all employees. This policy sets forth guidelines to address the needs of transgender and gender non-conforming employees and clarifies how the law should be implemented in situations where questions may arise about how to protect the legal rights or safety of such employees. This policy does not anticipate every situation that might occur with respect to transgender or gender non-conforming employees, and the needs of each transgender or gender non-conforming employee must be assessed on a case-by-case basis. In all cases, the goal is to ensure the safety, comfort, and healthy development of transgender or gender non-conforming employees while maximizing the employee's workplace integration and minimizing stigmatization of the employee. Contact HR for more information on this policy.

It is the policy of Partners to treat all individuals with dignity and respect and to provide a workplace and environment that is free from discrimination. Partners recognizes that there can be differences between physical sex and gender identity and/or expression. Partners will at no time discriminate against people on the grounds of transvestism, transsexualism, intersex conditions, or any process of gender reassignment, whether it has begun or been completed. Where this policy refers to 'trans people', it has in mind people living with any of these identities. When it refers to 'gender identity', it covers both the fixed identity of people living in the gender of their birth and the more fluid identities of many trans people. Transphobic abuse, harassment, or bullying (name-calling/derogatory jokes, unacceptable or unwanted behavior, and intrusive questions) is a serious disciplinary offence and will not be tolerated at Partners. Any and all complaints of transphobic abuse or harassment will follow our guidelines under workplace bullying and harassment.

The purpose of this policy is to provide descriptions and guidance to address some of the common questions regarding gender identity in the workplace and appropriate behavior.

- *Sex versus Gender*: Sex (i.e., male or female) is assigned at birth based on a combination of a baby's biological characteristics, including chromosomes, hormones, and reproductive organs, and is originally documented on a person's birth certificate.

The World Health Organization defines gender as the "socially constructed roles, behaviors, activities, and attributes that a given society considers appropriate for men and women." These characteristics are traditionally referred to as "masculine" or "feminine."

- *Transgender*: Transgender individuals are people with a gender identity that is different from the sex assigned to them at birth. Someone who was assigned the male sex at birth but who identifies as female is a transgender woman. Likewise, a person assigned the female sex at birth but who identifies as male is a transgender man. Some individuals who would fit this definition of transgender do not identify themselves as such, and identify simply as men and women, consistent with their gender identity. The guidance discussed in this policy applies whether or not a particular individual self-identifies as transgender.
- *Transition*: Some individuals will find it necessary to transition from living and working as one gender to another. Trans or transgender is an umbrella term referring to people with diverse gender identities and expressions that differ from stereotypical gender norms. It includes but is not limited to people who identify as transgender, trans woman (male-to-female), trans man (female-to-male), transsexual, cross-dresser, gender non-conforming, gender variant or gender queer. These individuals may seek some form of medical treatment such as counseling, hormone therapy, electrolysis, and reassignment surgery. These treatments may be deemed medically necessary for many individuals, based on determinations of their medical providers. Some individuals, however, will not pursue some (or any) forms of medical treatment because of their age, medical condition, lack of funds, other personal circumstances, or because they may not feel the treatment is necessary for their well-being. All individuals should be aware that not all transgender individuals will follow the same pattern, but they all are entitled to the same consideration as they undertake the transition steps deemed appropriate for them, and should all be treated with dignity and respect.
- *Gender identity*: It is each person's internal and individual experience of gender. It is their sense of being a woman, a man, both, neither, nor anywhere along the gender

spectrum. A person's gender identity may be the same as or different from their birth-assigned sex. Gender identity is fundamentally different from a person's sexual orientation.

- *<u>Gender Expression</u>*: It is how a person publicly presents, represents, and expresses their gender. This can include behavior and outward appearance such as dress, hair, make-up, mannerisms, speech patterns, body language, voice and other characteristics and behaviors. A person's chosen name and pronoun are also common ways of expressing gender.

All Employee or Non-Employee Transition

There are several issues that commonly generate questions from individuals who are working with a transitioning employees or non-employees (such as interns, program participants, volunteers, consultants, and independent contractors). To ensuring that transitioning employees and non-employees are treated with dignity and respect, Partners offer the following guidance on those issues.

Confidentiality and Privacy

An individual's transition should be treated with as much sensitivity and confidentiality as any other individual's significant life experiences, such as hospitalization or family difficulties. Employees and non-employees in transition often want as little publicity about their transition as possible. They may be concerned about safety, employment, or other issues if other people or employers become aware that he or she has transitioned. Moreover, medical information received about individual employees is protected under the Privacy Act (5 U.S.C. 552a).

Supervisors should be sensitive to these special concerns and advise employees not to spread information concerning any employee or non-employee who is in transition: gossip and rumor-spreading about gender identity are inappropriate. Other individuals may be given only general information about the employee or non-employee transition. Personal information about the individual in transition should be considered confidential and should not be released without the individual's prior agreement. Questions regarding the individual in transition should be referred to the individual himself or herself. It should be noted, however, that questions regarding a coworker's medical process, body, and sexuality are inappropriate. Issues that may arise should be discussed as soon as possible confidentially between the individual and their supervisor or other member of Executive Leadership Executive Leadership.

Dress and Appearance

Once an individual has informed Partners that he or she is transitioning, Partners dress codes should be applied to individual transitioning to a different gender in the same way that they are applied to others of that gender. Dress codes should not be used to prevent a transgender individual from living full-time in the role consistent with his or her gender identity.

Names and Pronouns

Supervisors, coworkers, and others should use the name and pronouns appropriate to the gender the employee is now presenting. Refer to each person by the name, and the gender-specific pronoun, by which the person wants to be called. If you do not know the proper term, please ask in a tactful way. Further, supervisors, coworkers, and others should take care to use the correct name and pronouns in records and in communications with others regarding the individual in transition. Continued intentional misuse of the individual's new name and pronouns, and reference to the individual's former gender by supervisors, coworkers, and others is contrary to the goal of treating transitioning employees with dignity and respect. It creates an unwelcoming work environment and may be considered harassment.

Restrooms, Lodging and Other Related Facilities

For transitioning individuals, this means that, once he or she has begun acting and/or working in the gender that reflects his or her gender identity, Partners should allow access to restrooms, lodging and other facilities consistent with his or her gender identity. Partners will protect the transitioning individual's rights and privacy and therefore may not inform others of the individual's sexual orientation, gender identity or gender expression. Under no circumstances may anyone require an individual to use facilities or lodging that are inconsistent with the individual's gender identity.

Assignments and Duties

For a transitioning individual, once he or she has begun acting and/or working full-time in the gender that reflects his or her gender identity, Partners should treat the individual as that gender for purposes of all job assignments and duties.

Employee Transitions

Transitioning individual should not be required to have undergone or to provide proof of any particular medical procedure (including gender reassignment surgery) to be eligible for gender-specific assignments or duties.

Recordkeeping: For employees, the employee's personnel folder, and other employee records (payroll, benefits documents, and so on) should be changed to show the employee's new name and gender once the employee has begun working full-time in the gender role consistent with the employee's gender identity. The employee should submit a request to Partners HR to update his or her personnel information and records. Employees will also be permitted to change any identity documentation, such as but not limited to email account, business cards, etc.

Sick and Medical Leave: Employees receiving treatment as part of their transition may use sick leave in accordance with Partners sick leave policy. Employees who are qualified under the Family Medical Leave Act may also be entitled to take medical leave for transition-related needs for themselves or for their families.

Insurance Benefits: Employees in transition who already have insurance benefits must be allowed to continue their participation, and new employees must be allowed to elect participation, based on their updated names and genders. If the employees in transition are legally married at the time of the transition, the transition does not affect the validity of that marriage, and spousal coverage should be extended or continued even though the employee in transition has a new name and gender.

Summary

Partners intends to provide for its employees, and non-employees (such as interns, program participants, volunteers, consultants, and independent contractors), an environment that treats all of its employees and non-employees with dignity and respect and to provide a workplace environment that is free from discrimination including sex and/or gender identity. Our approach is to be as inclusive and accommodating for all individuals, regardless of identities. This policy applies to all individuals when interacting with members of the Partners staff or network.

Annex H: Sexual Exploitation and Abuse Policy

Purpose

This policy applies to all Partners Affiliates interacting with Participants, as defined below under 4. Definitions. Partners of the Americas (Partners) has a zero-tolerance policy toward sexual harassment, exploitation, and abuse. This policy is intended to protect participants of Partners programs, and it applies to Partners operations both in the U.S. and abroad. This policy is meant to provide a general guidance and to comply with U.S. Government regulations, donor requirements, and all other applicable local laws.

While Partners does not tolerate harassment of any nature, there is a distinction between sexual exploitation and abuse (SEA) and sexual harassment. SEA occurs when a position of power (such as being a staff member of an NGO) is used for sexual purposes against a beneficiary or vulnerable member of the community. Sexual harassment occurs when differences in power are abused among staff, to the extent that the harassers conduct or behavior interferes with an individual's work performance, is made a condition of employment, or creates an intimidating, hostile or offensive work environment. Please reference Partners' Sexual Harassment Policy for further questions.

No code or policy can anticipate every situation that may arise. Accordingly, this policy is intended to serve as a source of guiding principles. Partners reserves the right to make all decisions on a case-by-case basis.

Goal

Partners is committed to providing a safe and nurturing working environment, free from sexual abuse, exploitation, and harassment for all program beneficiaries (hereafter referred to as "Participants") who participate in programs and/or events sponsored by the organization. Partners commits to supporting victims, improving safeguarding capacity, reporting, investigating, responding to, and preventing sexual harassment and sexual exploitation and abuse. Sexual exploitation and abuse[1] (SEA) of any sort – verbal or physical – is prohibited and will not be tolerated by Partners. Moreover, Partners will not tolerate acts of SEA by any employee, non-employee, members of the Board of Directors, members of a partner organizations with a contractual relationship to Partners, or members of the Partners network, including but not limited to consultants, volunteers, Chapters, and members (hereafter referred to as a "Partners Affiliate"). This policy is intended to provide guidelines and best practices for promoting and maintaining a safe and secure environment in all interactions with Participants while ensuring Partners Affiliates act responsibly to protect Participants. It further seeks to minimize the possibility of acts of SEA against Participants.

Compliance

This policy applies to all groups, activities, and events sponsored by Partners, as well as groups using Partners' facilities who serve Participants. This policy also applies to all Partners Affiliates, defined as:

- All staff (full-time, part-time, international, and national), and those engaged on short-term contracts (e.g., consultants, facilitators, mentors, sub-contractors, researchers, etc.);
- Volunteers, board members, trustees; and
- Partner organizations who have a formal/contractual relationship with Partners.

Order of Precedence

If any conflicts occur between this policy and donor requirement, the issue shall be resolved by giving precedence in the following order:

1. Requirements according to the donor (if the Partners Affiliate works on a U.S. Government-funded project)
2. Partners' SEA Prevention Policy

Definitions

For the purposes of this policy, Partners defines the following terms:

[1] Per the UN Secretary-General's Bulletin (ST/SGB/2003/13), sexual exploitation is defined as "any actual or attempted abuse of a position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to, profiting monetarily, socially or politically from the sexual exploitation of another." Sexual abuse is defined as "the actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions."

1) **“Partners Affiliate”**: Any employee, non-employee, members of the Board of Directors, individuals of a partner organization with a contractual relationship to Partners, or members of the Partners network, including but not limited to consultants, volunteers, and Chapter members, implementing programs on behalf of Partners HQ.

2) **“Beneficiary” or “Beneficiaries”**: A person who receives assistance as part of humanitarian relief or development programs.

3) **“Bullying”**: Intentional and aggressive behavior occurring repeatedly against a victim where there is a real or perceived power imbalance, and where the victim feels vulnerable and powerless to defend himself or herself. The unwanted behavior is hurtful: it can be physical, including hitting, kicking, and the destruction of property; verbal, such as teasing, insults, and threats; or relational, through the spreading of rumors and exclusion from a group. The definition of bullying is not limited to overt harassment, but encompasses any repeated actions intended to cause distress physically or emotionally.

    i) **“Cyberbullying”**: the posting or sending of electronic messages, including pictures or videos, aimed at harassing, threatening, or targeting another person. A whole range of social platforms, including chat rooms, blogs, and instant messaging, are used in cyberbullying. Cyberbullying can cause profound harm as it leaves a permanent footprint in cyberspace and can quickly reach a wide audience. Bullying and cyberbullying feed into each other, forming a continuum of damaging behavior.

4) **“Child” or “Children”**: A child or children are defined as persons who have not attained 18 years of age, irrespective of local country definitions of when a child reaches adulthood.

5) **“Child Safeguarding”**: The set of policies, procedures, and practices employed to ensure that Partners is a child-safe organization. Child Safeguarding is making Partners safe for children. It involves our collective and individual responsibility and preventative actions to ensure that

all children are protected from deliberate or unintentional acts that lead to the risk of or actual harm by Partners Affiliates who come into contact with children or impact them through our development interventions, humanitarian responses, and operations. This includes our direct program implementation, work through partners, and management of children's personal data. For more information, please reference Partners' Child Safeguarding Policy.

6) **"Complainant"**: The person reporting (or "making a complaint" about) SEA. This could be the victim or another person who becomes aware of the wrongdoing.

7) **"Complaint"**: The report of an incident of SEA.

8) **"Complaint's procedure"**: A framework that describes the course of action for receiving and processing allegations of SEA. This includes systems for processing complaints within an organization, as well as procedures for beneficiaries to bring complaints forward.

9) **"Economic exploitation"**: The deliberate misplacement, exploitation, or wrongful temporary or permanent use of belongings or money.

10) **"Emotional abuse or ill treatment"**: Constitutes injury to one's psychological capacity or emotional stability, caused by acts, threats of acts, or coercive tactics. Emotional abuse may include, but is not limited to: Humiliation, control, isolation, withholding of information, or any other deliberate activity that makes one feel diminished or embarrassed.

11) **"Exploitative relationship"**: A relationship that constitutes sexual exploitation (i.e., any actual or attempted abuse of a position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to: Profiting monetarily, socially, or politically from the sexual exploitation of another.)

12) **“Incident”**: Instances of sexual exploitation and abuse, violence, suicide, accident, or other trauma.

13) **“Participant or Participants”**: Partners program beneficiaries

14) **“Partner Organizations”**: Any organization that has a contractual relationship with Partners, including subcontractors and sub-awardees.

15) **“Physical abuse”**: Constitutes acts or failures to act resulting in injury (not necessarily visible), unnecessary or unjustified pain or suffering without causing injury, harm, or risk of harm to an individual’s health or welfare, or death. Such acts may include, but are not limited to: Punching, beating, kicking, biting, shaking, throwing, stabbing, choking, or hitting (regardless of object used), or burning. These acts are considered abuse regardless of whether they were intended to hurt the individual.

16) **“Sexual exploitation”**: Any actual or attempted abuse of position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to: Profiting monetarily, socially, or politically from the sexual exploitation of another. Other types of exploitation associated with sexual exploitation include:

    i. **“Transactional sex”**: The exchange of money, employment, goods, or services for sex, including sexual favors other forms of humiliating, degrading, or exploitative behavior. This includes any exchange of assistance that is due to beneficiaries of assistance.
    ii. **“Solicitation of transactional sex”**: Requesting transactional sex.
    iii. **“Digital Exploitation”:** Non-consensual digital, video or audio recording of nudity or sexual activity. Unauthorized sharing or distribution of digital, video or audio recording of nudity or sexual activity[2]

[2] https://www.elon.edu/u/ceie/violence-response/types-of-violence/sexual-violence/

17) **"Sexual abuse"**: The actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions. Other types of abuse associated with sexual abuse include:

   i. **"Sexual abuse perpetrated by an adult"**: Any contact or activity of a sexual nature that occurs between a child and an adult. This includes any activity which is meant to arouse or gratify the sexual desires of the adult or child.

   ii. **"Sexual abuse perpetrated by another child or children"**: Any contact or activity of a sexual nature that occurs between a child or children and another child when there is no consent, when consent is not possible, or when one child has power over the other child. This includes any activity which is meant to arouse or gratify the sexual desires of any of the children.

18) **"Victim"**: The person who is sexually exploited or sexually abused. The term Victim is not meant to imply a lack of strength, resilience, or capacity to survive.

Core Principles

Partners Affiliates will respond to Participants with respect, consideration, and equal treatment, regardless of sex, gender, race, religion, sexual orientation, culture, ability, or socio-economic status. Affiliates must conduct themselves in a professional manner as representatives of the organization, consistent with the standards for U.N. employees in Section 3 of the U.N. Secretary General's Bulletin-Special Measures for Protection from Sexual Exploitation and Sexual Abuse (ST/SGB/2003/13). Thus, as a condition of their employment or engagement, Partners Affiliates must acknowledge and agree to the following core principles which are consistent with Section 3 of the U.N. Secretary-General's Bulletin (ST/SGB/2003/13):

1) Sexual exploitation and abuse by a Partners Affiliate constitute acts of gross misconduct and are therefore grounds for termination of employment and/or relationship;

2) Sexual activity with children (defined according to the Convention on the Rights of the Child as all persons under the age of 18) is prohibited regardless of the age of majority or age of consent locally. Mistaken belief in the age of a child is not a defense;

3) Exchange of money, employment, goods, or services for sex, including sexual favors or other forms of humiliating, degrading, or exploitative behavior, is prohibited. This includes exchange of assistance that is due to beneficiaries;

4) Sexual relationships between Partners Affiliates and Participants are prohibited since they are based on inherently unequal power dynamics. Such relationships undermine the credibility and integrity of humanitarian aid work;

5) Where a Partners Affiliate develops concerns or suspicions regarding SEA by another Partners Affiliate, they must report such concerns via established organizational reporting mechanisms;

6) Partners Affiliates are obliged to create and maintain an environment that prevents SEA and promotes the implementation of this code of conduct. Managers at all levels have a particular responsibility to support and develop systems that maintain this environment.

Screening and Requirements

To reduce the risk of SEA and protect Participants, Partners has established the following practices, which apply to all Partners Affiliates.

Screening

Partners will screen individuals and entities who are expected to directly interact with Participants on Partners HQ programs as follows:

For Individuals:

- Receive signed SEA Prevention Code of Conduct;
- Run a Visual Compliance check (https://www4.visualcompliance.com/_logon.cfm); and
- If the individual is U.S. based, run a sex offender registry (https://www.nsopw.gov/).

If additional verification is required or Partners staff has concerns: reference checks by persons outside the organization who know the Partners Affiliate.

For Partner Organizations:

- Receive signed SEA Prevention Code of Conduct from entity's legal representative;
- Verify the entity has a policy and procedure in place for SEA Prevention. If not, provide guidance to the entity to establish procedures on SEA Prevention.

All Program Directors are responsible for ensuring that any Partners Affiliates on Partners HQ programs are screened prior to interacting with participants. Partners' HR department is responsible for verifying that Partners HQ staff, interns and consultants complete the above requirements as part of the new hire onboarding process.

Onboarding Requirements

Prior to interacting with Participants, all Partners Affiliates must complete the following:

For Individuals:

- Fully read and review the SEA Prevention Policy;
- Sign Partners' SEA Prevention Code of Conduct; and
- Annually attend a training/course, all Partners Affiliates must choose one of the following options:
    1. Attend a Partners SEA Prevention training in-person or watch on-demand online. Trainings will be available at least once a year in-person led by Partners' HR staff and/or an external firm. Annual trainings will be recorded and available on-demand via Partners' External SharePoint. These trainings will be in English; however, the PowerPoint slides will be available in Spanish and Portuguese.
    2. Complete the online SEA Prevention course provided by Interaction.org annually and send copy of certification to their point of contact at Partners. This course is only available in English.
    3. For non-English speaking Partners Affiliates as an alternative to the above options, individuals may watch the SEA Prevention video found here, with subtitles in their appropriate language. If individuals select this option, they should send a

confirmation email to their point of contact at Partners to confirm that they have watched the video, following up with any questions as applicable.

- Once training is completed, the individual will need to complete a confirmation of training which is available electronically or hard copy from the individuals point of contact at Partners.

For Partner Organizations:

- If able, sign Partners' SEA Prevention Code of Conduct; and
- Follow organizational policy and procedure on SEA Prevention

Partners' Program Directors are responsible for verifying that Partners Affiliates under their program(s) complete the above requirements. Partners' HR Department is responsible for verifying that Partners HQ staff, interns and consultants complete the above requirements as part of the new hire onboarding process.

Education and Training Requirements

Partners understands the importance of providing adequate training and awareness to staff and Partners Affiliates to ensure a clear understanding and effective enforcement of the policy. Therefore, Partners commits to:

1. Disseminating and promoting the policy to all Partners Affiliates. Partners will make the policy available and accessible both in print and electronic formats.
2. Translating and creating versions of the policy in the primary languages (English, Spanish, Portuguese, French, Burmese, and other language as appropriate).
3. Providing regular briefings and annual trainings on the policy and incorporating trainings as part of its onboarding process for new hires.
4. Providing training to all Partners Affiliates who will teach, work with, counsel, supervise, chaperone, lead, or direct any Participant.
5. Ensuring Partners Affiliates attend at least one training on SEA Prevention annually.
6. Providing further training for Partners Affiliates with specific responsibilities under this policy. These groups would include anyone working directly with children, and Partners'

Program Directors and Country Directors designated to receive and respond to SEA complaints.

7. Partners' Program Directors are required to:
    a. Ensure all Partners Affiliates review and sign the SEA Prevention Code of Conduct;
    b. Ensure all staff within their unit attend a SEA Prevention training annually; and
    c. Maintain individual confidential records that include who has attended the training and the date of attendance.

Partners will use the Excel database on SharePoint that HR and Program Directors have access to verify who has attended trainings and when, and whether those people are one-time Partners Affiliates or reoccurring. Partners will use PandaDoc to request that Partners Affiliates annually sign a SEA Prevention Training Confirmation form, attaching their training certificate as applicable. Partners Affiliates will sign the SEA Prevention Code of Conduct when they first start working with Partners. HR will conduct annual checks to ensure all Partners Affiliates have signed the Code of Conduct and attended a SEA Prevention training.

Partners will ensure Partners Affiliates have access to materials and resources on the External SharePoint that support understanding and implementation of this policy. Partners will also encourage and facilitate the sharing of best practices in implementing the SEA Prevention Policy.

Reporting Procedures

Partners is committed to protecting any Participant affected by SEA and anyone who submits a report on behalf of a Participant affected by SEA. Therefore, the following procedures were developed to maintain a safe and confidential experience during the reporting process.

Filing a Report

For Individuals:

- All reports of inappropriate behavior or policy violations with Participants will be taken seriously. If Partners Affiliates observe any inappropriate behavior or behavior that may violate any provision of this policy, they must immediately report their observations in one of the following ways:

1. Contact the immediate supervisor, program, or country director of the alleged offender.
2. Contact Partners' external and confidential hotline, Foster Thomas, at bbulger@fosterthomas. *Foster Thomas is an outside party who will relay any concerns to the Ethics Committee of the Board. Reports may be made anonymously.*
3. Contact Partners' internal HR department at Partnershr@partners.net.

- If the reporter does not receive a response from one of the above personnel within three business days, they should immediately submit a report via another method listed above.

For Partner Organizations:

- In accordance with Section Complaints about Partner Organizations, Partner Organizations with a contractual relationship to Partners upon receiving a SEA violation report, should follow their organization policy. Notification of the alleged SEA violation should be sent to Partners' point of contact within three (3) business days.

Malicious reporting of SEA with the intention of harming another person's integrity or reputation amounts to misconduct and is subject to disciplinary action. This is distinct from reports made in good faith based on the judgment and information available at the time of the report, which may not be confirmed by an investigation.

Response to a Report

Once Partners and/or Foster Thomas receives an alleged SEA report, Partners will consult with a 3rd party firm to determine if a formal investigation is necessary, and if so, the 3rd party firm will lead the investigation effort in coordination with Partners. Partners' HR department will notify the complainant if an investigation is deemed necessary by the 3rd party firm. Foster Thomas, Partners' HR department, and any supervisors that receive a report are expected to notify the 3rd party firm within three (3) business days. The 3rd party firm is expected to convene a meeting to review the report within three (3) business days of receipt. They will then review the circumstances of the incident and develop a response plan accordingly. If Partners and/or the 3rd party firm believe that there are any serious or imminent threats to the safety of the report's subject, appropriate action will be taken immediately to ensure the individuals safety. Partners' HR department will continuously update the complainant regarding the status of the investigation.

In the absence of a 3rd party firm, Partners will designate a minimum of two members of the Board of Directors to serve in the Partners Compliance Committee who will be available to investigate good faith disclosures or reports of any wrongdoing, including anonymously or confidentially. The Partners Compliance Committee will lead an investigation, with outside advisory consultation provided as needed. Based on the consultation and investigation, the Partners Compliance Committee will render a decision on how to respond and what actions, if any, to take. No prior experience in a legal or investigative field is necessary to serve on the committee. However, Partners will allocate funds to support training for the Compliance Committee.

Confidentially

Partners understands due to the nature of incidents related to SEA; action must be taken immediately. SEA investigations will be carried out in a timely, fair, objective, and confidential manner. This includes the use of appropriate interviewing practice with reports and witnesses. All information and documented evidence will be held securely and in the strictest confidence. The name of the complainant will not be revealed to the person(s) potentially implicated in the allegation or to any other person unless the individual personally authorizes the disclosure of their identity.

Every effort will be made to maintain confidentiality throughout the complaints process. Information that identifies individuals involved in a complaint will be limited to essential personnel and will not be shared further without obtaining the informed consent of those involved, except if someone's life is at risk, a child is at risk, or as required by law in consultation with legal counsel and where safe to do so. Non-identifying information will be shared with authorized people which will include the 3rd party investigation firm, Partners' HR manager, Foster Thomas, and local law enforcement if necessary.

All SEA-related information must be kept confidential, identities must be protected to the extent possible, and personal information should be collected and shared only to a limited number of authorized people for the purpose of investigating.

Staff involved in the complaints process will be made aware of the importance of maintaining confidentiality and will be asked to sign a confidentiality agreement. Employees who breach confidentiality may be subject to disciplinary action up to and including termination of employment, and others who work with Partners may have their relationship with Partners terminated. In some cases, such breaches may constitute breaking the law.

Retaliation against Complainants, Witnesses, or Victims

Partners prohibits any retaliation against anyone who legitimately exercises their rights under this policy or who participates/cooperates in an investigation. There is to be no interference, coercion, discrimination, reprisal, or retaliation against any person for making a valid and truthful complaint or report of a violation. Anyone who believes they are being discriminated against because of legitimately filing a complaint or truthfully participating in an investigation should immediately file a report in one of the following ways:

1. Contact the immediate supervisor, program, or country director of the alleged offender.
2. Contact Partners' external and confidential hotline, Foster Thomas, at bbulger@fosterthomas. Foster Thomas is an outside party who will relay any concerns to the Ethics Committee of the Board. Reports may be made anonymously.
3. Contact Partners' internal HR department at Partnershr@partners.net.

Anyone who becomes aware of possible harassment or retaliation must immediately file a report so that the organization can investigate in a timely and confidential manner. Partners will take action against anyone, whether they are the subject of a complaint or not, who seeks or carries out retaliatory action against complainants, witnesses, or victims. Employees may be subject to disciplinary action, up to and including termination of employment. Others who work with Partners may have their relationship with Partners terminated.

Complaints about Partner Organizations

As mentioned in Filing a Report, Partner Organizations should notify Partners' point of contact of any alleged SEA violation within three (3) business days. Where Partners receives a complaint about a partner organization, Partners will expect the partner to respond safely, quickly, and appropriately. Partners will assist the partner to ascertain its reporting obligations.

Where appropriate, Partners will work with the partner to address the issue through an appropriate independent investigation. If the outcome is that abuse has occurred, ongoing work with the partner cannot involve the individual(s) concerned. If there is reason to believe that an allegation of abuse has been dealt with inappropriately by a partner, then they risk withdrawal of funding or ending of the relationship.

Communication

If there is an alleged SEA violation, Partners Affiliates are not permitted to send communications to employees, donors, participants, or others about the incident. Due to the sensitivity of the subject matter, all communications must be approved by Partners' HR. This especially includes, but is not limited to, communications with the general public or the media.

Accountability of Management

Partners Management is committed to taking all appropriate corrective actions. Disciplinary, legal, or other applicable actions in response to any violation of the SEA Prevention Policy will be taken against any individual who has committed a SEA violation and/or anyone who knew of such a violation and failed to act or report. Partners Management will continuously evaluate findings of violations to the SEA Prevention Policy to identify and address gaps and/or weaknesses in applicable policies, procedures, and protocols.

Annex I: Child Safeguarding Policy

Introduction

This This policy and related procedures describe Partners of the Americas' (Partners) commitment to child protection and safeguarding. The purpose of the policy is to ensure that Partners' programs and operations are safe for children. Partners aims to promote awareness and prevention to mitigate the risk of or actual harm that may come to children involved in Partners' programs and operations.

Definitions

For the purposes of this policy, Partners defines the following terms:

1) **"Beneficiary" or "Beneficiaries"**: A person who receives assistance as part of humanitarian relief or development programs.
2) **"Bullying"**: Intentional and aggressive behavior occurring repeatedly against a victim where there is a real or perceived power imbalance, and where the victim feels vulnerable and powerless to defend himself or herself. The unwanted behavior is hurtful: it can be physical, including hitting, kicking, and the destruction of property; verbal, such as teasing, insults, and threats; or relational, through the spreading of rumors and exclusion from a group. The definition of bullying is not limited to overt harassment, but encompasses any repeated actions intended to cause distress physically or emotionally.
3) **"Cyberbullying":** the posting or sending of electronic messages, including pictures or videos, aimed at harassing, threatening, or targeting another person. A whole range of social platforms, including chat rooms, blogs, and instant messaging, are used in cyberbullying. Cyberbullying can cause profound harm as it leaves a permanent footprint in cyberspace and can quickly reach a wide audience. Bullying and cyberbullying feed into each other, forming a continuum of damaging behavior.
4) **"Child" or "Children"**: A child or children are defined as persons who have not attained 18 years of age, irrespective of local country definitions of when a child reaches adulthood.
5) **"Child abuse, exploitation, or neglect**": Constitutes any form of physical abuse; emotional ill-treatment; sexual abuse; neglect or insufficient supervision; trafficking; or commercial, transactional, labor, or other exploitation resulting in actual or potential harm to the child's health, well-being, survival, development, or dignity. It includes, but is not limited to: Any act

or failure to act which results in death, serious physical, or emotional harm to a child, or an act or failure to act which presents an imminent risk of serious harm to a child. The main categories of Child Abuse are Physical Abuse, Emotional Abuse, Neglect, Sexual Exploitation & Abuse, and Exploitation.

i) **"Child physical abuse"**: Constitutes acts or failures to act resulting in injury (not necessarily visible), unnecessary or unjustified pain or suffering without causing injury, harm, or risk of harm to a child's health or welfare, or death. Such acts may include, but are not limited to: Punching, beating, kicking, biting, shaking, throwing, stabbing, choking, or hitting (regardless of object used), burning, female genital mutilation, torture, and other physical acts. These acts are considered abuse regardless of whether they were intended to hurt the child. Physical injury or suffering may include, but is not limited to: Bruises, marks, soft tissue swelling, hematomas, fractures, sprains, dislocation, burns, damage to organs, death, permanent disfigurement, and any other nontrivial injury.

ii) **"Child emotional abuse or ill treatment"**: Harm to a child's emotional, intellectual, mental, or psychological development caused by acts, threats of acts, or coercive tactics. This may occur as an isolated event or on an ongoing basis. Emotional abuse includes, but is not limited to: Any humiliating or degrading treatment (e.g., bad name calling, threats, yelling/screaming/cursing at, teasing, constant criticism, belittling, persistent shaming, etc.), control, withholding of information on their rights, failure to meet a child's emotional needs, and rejecting, ignoring, terrorizing, isolating, confining a child, or any other deliberate activity that makes the child feel diminished or embarrassed.

iii) **"Child neglect"**: Constitutes failure to provide for a child's basic needs during activities that are responsible for the care of a child in the absence of the child's parent or guardian and failure to meet a child's basic needs either deliberately or through negligence. Neglect includes, but is not limited to: Failing to provide adequate food, sufficient or seasonally-appropriate clothing and/or shelter; failing to prevent harm; failing to ensure adequate supervision; failing to ensure access to appropriate medical care or treatment or providing inappropriate medical treatment (e.g., administering medication when not authorized); or failing to provide a safe physical environment (e.g., exposure to violence, unsafe programming location, unsafe sleeping practices, releasing a child to an unauthorized adult, access to weapons or harmful objects, failing to child-proof a space that children will occupy, etc.).

iv) **"Child Sexual Exploitation & Abuse"**: All forms of sexual violence and coercion, sexual solicitation, manipulation, or trickery including incest, fondling a child's genitals, penetration, sodomy, early and forced marriage, rape, involvement in or exposure to indecent images/video (aka pornography), sexual slavery/trafficking, and statutory rape. Sexual abuse may include, but is not limited to: Indecent touching or exposure, explicit sexual language towards or about a child, and grooming (see definition below). Sexual abuse does not always involve touching. Sexual Exploitation is any actual or attempted abuse of a position of vulnerability, differential power, or trust for sexual purposes including, but not limited to: Profiting monetarily, socially, or politically from the sexual exploitation of another. Be aware that technology is a tool sometimes used to sexually exploit a child.

v) **"Child Sexual Abuse":** The actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions. Other types of abuse associated with sexual abuse include:

iii. **"Sexual abuse perpetrated by an adult"**: Any contact or activity of a sexual nature that occurs between a child and an adult. This includes any activity which is meant to arouse or gratify the sexual desires of the adult or child.

iv. **"Sexual abuse perpetrated by another child or children"**: Any contact or activity of a sexual nature that occurs between a child or children and another child when there is no consent, when consent is not possible, or when one child has power over the other child. This includes any activity which is meant to arouse or gratify the sexual desires of any of the children.

vi) **"Child Exploitation"**: Constitutes the abuse of a child where some form of remuneration is involved or whereby the perpetrators benefit in some manner. Exploitation represents a form of coercion and violence that is detrimental to the child's physical or mental health, development, education, or well-being. The actual or attempted abuse of a position of vulnerability, power differential, or trust for the benefit of the individual leveraging their position, power, privilege, or wealth (through enticement, manipulation, coercion, or trickery) to engage a child in labor, domestic servitude, forced criminality, soldiering, or organ harvesting. Typically, the person(s) exploiting a child does so to profit monetarily, socially, or politically. It can happen to one or a group of children in the community of origin, outside of the community, or internationally. The exploitation of a child may include, but is not limited to:

(a) Domestic servitude (e.g., cleaning, childcare, cooking, etc.);
(b) Forced labor (commonly in factories or agriculture);
(c) Forced criminal activities such as pickpocketing, begging, transporting drugs, manufacturing drugs, selling pirated merchandise;
(d) Used for benefit fraud;
(e) Forced to become a child soldier or join a gang.

vii) **"Transactional sex"**: The exchange of money, employment, goods, or services for sex, including sexual favors other forms of humiliating, degrading, or exploitative behavior. This includes any exchange of assistance that is due to beneficiaries of assistance.

viii) **"Solicitation of transactional sex"**: Requesting transactional sex.

ix) **"Grooming"**: Is the process in which an adult builds a relationship with a child or the child's caretaker to gain the child's or the caretaker's trust for the purposes of sexually abusing and/or exploiting the child. Grooming typically occurs in phases, and it can happen online or face to face, by a stranger or by someone the child or caretaker knows. Since it is a gradual process, it can sometimes be difficult to detect. Here are a few indicators an adult may be grooming a child or his/her caretaker:

(a) Favoring the child over others;
(b) Providing the child with rewards or privileges;
(c) Isolating the child from others;
(d) Expressing interest in a child who is particularly vulnerable or in need of support (e.g., previous abuse of the child by another);
(e) Befriending the parents or caretakers who are responsible to protect the child;
(f) Providing the child with alcohol or drugs;
(g) Building intimacy (i.e., having inside jokes or telling the child that nobody understands him/her like the groomer does);
(h) Threatening, blackmailing, intimidating, or scaring a child by saying the groomer will do something to the child's family or friends.

5) **"Child Data"**: Paper or electronic information containing Personally Identifiable Information (PII) collected for programmatic or operational purposes. PII is considered confidential and includes sensitive or protected categories including but not limited to health information.
6) **"Child Protection"**: The goal of child protection is making the world safe for children. Child Protection responses are macro-level in scale and involve holistic approaches to meet the social and legal protection needs of children and their families within vulnerable communities.
7) **"Child Safeguarding"**: The set of policies, procedures, and practices employed to ensure that Partners is a child-safe organization. Child Safeguarding is making Partners safe for children. It involves our collective and individual responsibility and preventative actions to ensure that all children are protected from deliberate or unintentional acts that lead to the risk of or actual harm by Partners Affiliates who come into contact with children or impact them through our development interventions, humanitarian responses, and operations. This includes our direct program implementation, work through partners, and management of children's personal data.
8) **"Gender Responsive Safeguarding"**: is a safeguarding approach that takes full account of gender in considering the specific safeguarding needs of girls, boys, and other gender

identities; and integrates safeguarding measures that address protection risks for children (girls, boys, and other gender identities) that stem from issues relating to gender bias and discrimination.

9) **“Child Welfare”**: Child Welfare is making the community safe for children. It includes claims of child abuse that happen external to Partners and/or that are required by law or local norms to be reported to local authorities.
10) **“Complainant”**: The person reporting (or “making a complaint” about) a violation of the Child Safeguarding Policy. This could be the victim or another person who becomes aware of the wrongdoing.
11) **“Complaint”**: The report of a violation against the Child Safeguarding Policy.
12) **“Complaints process”**: A framework that describes the course of action for receiving and processing allegations of a violation of the Child Safeguarding Policy. This includes systems for processing complaints within an organization, as well as procedures for beneficiaries to bring complaints forward.
13) **“Economic exploitation”**: The deliberate misplacement, exploitation, or wrongful temporary or permanent use of belongings or money.
14) **“Exploitative relationship”**: A relationship that constitutes sexual exploitation (i.e., any actual or attempted abuse of a position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to: Profiting monetarily, socially, or politically from the sexual exploitation of another.
15) **“Incident”**: Instances of sexual exploitation and abuse, violence, suicide, accident, or other trauma.
16) **“Partners Affiliate”**: Any employee, non-employee, or member of the Partners network, including, but not limited to all contractual relationships, consultants, volunteers, chapters, and members.
17) **“Partner Organizations”**: Any organization that has a contractual relationship with Partners, including subcontractors and subawardees.
18) **“Victim”**: The child who is sexually exploited, abused, or otherwise harmed. The term Victim is not meant to imply a lack of strength, resilience, or capacity to survive.

Purpose

This policy applies to all Partners Affiliates interacting with children both in the U.S. and abroad. This policy and related procedures describe Partners' commitment to Child Safeguarding. Partners' current programs support activities with children, who are particularly vulnerable to abuse and exploitation. This is due to the inherent power differential that exists between aid organizations and impacted communities, which heightens the risk of abuse and exploitation. To protect all program beneficiaries against this power differential, this Child Safeguarding Policy, the Sexual Exploitation and Abuse Prevention Policy, and the Sexual Harassment Policy serve to transform Partners' values into behaviors to which all Partners Affiliates are expected to conform. This policy is meant to provide a general guidance and to comply with U.S. Government regulations, donor requirements, and all other applicable local laws. No code or policy can anticipate every situation that may arise. Accordingly, this policy is intended to serve as a source of guiding principles. Any violations of this policy will be treated as a serious infraction and will result in disciplinary action, up to and including termination, and any other available legal remedy. Partners reserves the right to make all decisions on a case-by-case basis.

Goal

Partners is committed to providing a safe, nurturing working environment and protecting children who participate in programs and/or events sponsored by the organization. Partners is committed to supporting victims, improving safeguarding capacity, and ensuring that children are safe when participating in Partners programs and/or events sponsored by the organization. Child Safeguarding is preventative actions to ensure that all children are protected from deliberate or unintentional acts that lead to the risk of or actual harm by Partners Affiliates who come into contact with children or impact them through our development interventions, humanitarian responses, and operations. Moreover, Partners will not tolerate any violations of this Child Safeguarding policy and confirms commitment to report, investigate, respond to any alleged policy violations. Partners takes a zero-tolerance approach to child exploitation and/or abuse by any Partners Affiliates. This policy is intended to provide guidelines and best practices for promoting and maintaining a safe and secure environment in all interactions with children while ensuring Partners Affiliates act responsibly to protect children.

Compliance

This policy applies to all groups, activities, and events sponsored by Partners, as well as groups using Partners' facilities who serve children. This policy also applies to all Partners Affiliates and organizations, defined as:

- All staff (full-time, part-time, international, and national), and those engaged on short-term contracts (e.g., consultants, facilitators, mentors, sub-contractors, researchers, etc.);
- Volunteers, board members, trustees; and
- Partner organizations who have a formal/contractual relationship with Partners.
    - Partners should verify that the entity has a policy and procedure in place for Child Safeguarding. If not, Partners will provide guidance to the entity to establish procedures on Child Safeguarding. If a partner elects to use its own policy, the partner policy must be of equal or higher standard for protecting and recognizing the rights of children, including following any donor requirements.

Order of Precedence

If any conflicts occur between this policy and Donor requirement, the issue shall be resolved by giving precedence in the following order:

1. Requirements according to the Donor (if the Partners Affiliate works on a U.S. Government-funded project)
2. Partners' Child Safeguarding Policy

Child Safeguarding Core Principles

Partners' capacity to achieve its vision and mission depends upon all Partners Affiliates. Therefore, all Partners Affiliates must uphold and promote the highest standards of ethical and professional conduct. Partners prohibits any act of child abuse, child exploitation, child neglect, economic exploitation, bullying and cyberbullying, or ill treatment, as defined under Definitions. The following core principles are to be followed by all Partners Affiliates:

A. All children under the age of 18 have equal rights to protection from all forms of violence, as declared in Article 19 of the United Nations Convention on the Rights of the Child. The human rights of children will be respected and applied to all, irrespective of age, sex, gender, gender identity, sexual orientation, nationality, ethnicity, color, race, language, religious or political beliefs, marital status, disability, physical or mental health, family, socio-economic or cultural background, class, or any other aspect of their background or identity. Inequality, exclusion, and discrimination will be challenged and will not be tolerated;

B. Ensure compliance with host country and local child welfare and protection legislation or international standards, whichever gives greater protection, and with U.S. law where applicable;
C. Prohibit all personnel from engaging in child abuse, exploitation, or neglect;
D. Consider Child Safeguarding in project planning and implementation to determine potential risks to children that are associated with project activities and operations and identify gaps and ways to address;
E. Apply measures to reduce the risk of child abuse, exploitation, or neglect, including, but not limited to, limiting unsupervised interactions with children; prohibiting exposure to pornography; and complying with applicable laws, regulations, or customs regarding the photographing, filming, or other image- generating activities of children;
F. Promote child-safe screening procedures for personnel, particularly personnel whose work brings them in direct contact with children;
G. Have a procedure for ensuring that personnel and others recognize child abuse, exploitation, or neglect; mandating that personnel and others report allegations; investigating and managing allegations; and taking appropriate action in response to such allegations, including, but not limited to, dismissal of personnel;
H. Train all Partners Affiliates to know how to report and who to contact when any concern arises, no matter how seemingly small or insignificant;
I. Respond to concerns including a mandate to investigate all credible allegations violations of this Child Safeguarding Policy. Partners Affiliates are required to cooperate with any subsequent investigation. Corrective measures, including any personnel or disciplinary action, will be taken to prevent the recurrence of such activity; and

J. Ensure all Partners Affiliates receive training and are made aware of the expectation in this policy to prevent, report, and respond to safeguarding concerns. Additionally, ensuring that all program beneficiaries are aware of the standards of behavior they can expect from Partners Affiliates and of how they can raise a concern or report an alleged violation.

Child Safeguarding Code of Conduct

Partners Affiliates are required to comply with the following code of conduct when interacting with children:

A. Any individual under the age of 18 is a child and is "underage," regardless of the legal age of consent of the country in which the child lives and/or in which the offense occurs;
B. Partners Affiliates must not abuse or exploit a child or behave in any way that places a child at risk of harm;
C. Sexual activity with children (defined according to the Convention on the Rights of the Child as all persons under the age of 18) is prohibited regardless of the age of majority or age of consent locally. Mistaken belief in the age of a child is not a defense;
D. Partners Affiliates are prohibited from dating or becoming romantically involved with a child;
E. Partners Affiliates are prohibited from using language or behave towards a child or young person in a way that is inappropriate, offensive, abusive, sexually provocative, demeaning, or culturally inappropriate;
F. Partners Affiliates are prohibited from fondling, holding, kissing, hugging, or touching children in an inappropriate or culturally insensitive way;
G. Partners Affiliates are prohibited from acting in ways that shame, humiliate, belittle, or degrade children and young people, or otherwise perpetrate any form of emotional abuse;
H. Partners Affiliates are prohibited from doing things of a personal nature for children, with whom they are in contact in a work-related context (e.g., taking a child/young person to the toilet/bathroom; helping them get un/dressed);
I. Partners Affiliates are prohibited from sleeping in the same beds, sleeping bags, tents, hotel rooms, or other rooms with children unless the adult is an immediate family member of all

children in the bed, sleeping bag, tent, hotel room, or other room. It is acceptable to have multiple adults sleep with all the children participating in one open space, such as a camp lodge. Furthermore, Partners Affiliates are prohibited from having a child/children with whom the employee is in contact in a work-related context (program beneficiaries) stay overnight at their home or any other personal residential location or accommodation;

J. Partners Affiliates are prohibited from discussing their own sexual activities, including dreams and fantasies, or discussing their use of sexually oriented or explicit materials, such as pornography, videos, or materials on or from the Internet, with children;

K. Partners Affiliates are prohibited from possessing, viewing, streaming, downloading from the Internet, etc. any sexually oriented materials (magazines, cards, videos, films, clothing, etc.) on organization property or in the presence of children except as expressly permitted as part of a pre-authorized educational program;

L. Partners Affiliates are prohibited from using computers, mobile phones, or video/digital cameras or other electronic devices, to access, view, create, download, or distribute child pornography, including abusive images of children or young people;

M. Partners Affiliates are prohibited from using computers, mobile phones, video and digital cameras, or other electronic devices or mediums to exploit, harass, or bully children;

N. Partners Affiliates are prohibited from dressing, undressing, bathing, or showering in the presence of children;

O. Partners Affiliates are prohibited from discriminating against, showing differential or preferential to, or favoring particular children;

P. Partners Affiliates are prohibited from using physical punishment in any way for behavior management of children. No form of physical discipline is acceptable. This prohibition includes spanking, slapping, pinching, hitting, or any other physical force. Physical force may only be used to stop a behavior that may cause immediate harm to the individual or to a child or others;

Q. Partners Affiliates are prohibited from the use, possession, distribution, or being under the influence of alcohol, illegal drugs, or the misuse of legal drugs while participating in or assisting with programs or activities specifically for children;

R. Every program for children must have established ratios of 2 adults per 1-20 children. Compliance with the established ratio is required at all times, including activities that occur off the organization's premises;

S. When boys, girls and other gender identities are participating, male, female and other gender identities adults must be present;

T. One-to-one counseling/meetings with children will be done in an open or public or other place where private conversations are possible but occur in full view of others or with another adult present;

U. When supervising or assisting private activities, such as dressing or showering children, Partners Affiliates will remain in an area observable by other adults or work in pairs;

V. Parents or guardians must complete written permission forms before Partners Affiliates transport children for a company sponsored activity or for any purpose; and

W. Implement a safeguarding approach that recognizes and responds to the specific safeguarding risks and needs of differing gender and other identities including take appropriate measures to address gender bias and other forms of discrimination and violence which may arise as a result of this bias. All approaches should take full account of gender in considering the specific safeguarding needs of girls, boys, and other gender identities to promote equality, equity, and ultimately increase safety and protection.

Screening and Requirements

To ensure Child Safeguarding, Partners has established the following practices, which apply to all Partners Affiliates.

Safe Recruitment and Screening

In addition to Partners' standard recruitment processes, the following child safeguarding measures will be applied as part of the safe recruitment process. Partners will screen individuals and entities who are expected to directly interact with children on Partners HQ programs as follows:

For Individuals:

- Receive a signed Child Safeguarding Code of Conduct;
- Run a Visual Compliance check (https://www4.visualcompliance.com/_logon.cfm); and
- If the individual is U.S. based, run a sex offender registry (https://www.nsopw.gov/).

If additional verification is required or Partners staff has concerns: reference checks by persons outside the organization who know the Partners Affiliate. Please see sample reference check form.

For Partner Organizations:

- Receive signed Child Safeguarding Code of Conduct from entity's legal representative;
- All agreements with Partners Organizations must include the requirements of this policy if the Partners Organization will be interacting with children.

All Program Directors are responsible for ensuring that any Partners Affiliates on Partners HQ programs are screened prior to interacting with children. Partners' HR department is responsible for verifying that Partners HQ staff, interns and consultants complete the above requirements as part of the new hire onboarding process.

Onboarding Requirements

Prior to interacting with children, all Partners Affiliates must complete the following:

For Individuals:

- Fully read and review the Child Safeguarding Policy;
- Sign Partners' Child Safeguarding Code of Conduct; and
- Annually attend a training/course, all Partners Affiliates must choose one of the following options:
  1. Attend a Partners Child Safeguarding training in-person or watch on-demand online. Trainings will be available at least once a year in-person led by Partners' HR staff and/or an external firm. Training will include a review of the Child Safeguarding Policy, guidance on promoting a culture where children's rights are observed, how to identify potential harm to children, and how to report allegations and suspicions of abuse. Annual trainings will be recorded and available on-demand via Partners' External SharePoint. These trainings will be in English; however, the PowerPoint slides will be available in Spanish and Portuguese.
  2. Complete the online Child Safeguarding training provided at no cost by UNICEF annually and send copy of certification to their point of contact at Partners. This course is available in English, Spanish, French, and Arabic.

Once training is completed, the individual will need to complete a confirmation of training which is available electronically or hard copy from the individuals point of contact at Partners.

For Partner Organizations:

- If able, sign Partners' Child Safeguarding Code of Conduct; and
- Follow internal organizational policy and procedure on Child Safeguarding

Partners' Program Directors are responsible for verifying that Partners Affiliates under their program(s) complete the above requirements. Partners' HR Department is responsible for verifying that Partners HQ staff, interns and consultants complete the above requirements as part of the new hire onboarding process.

Education and Training Requirements

Partners understands the importance of providing adequate training and awareness to staff and Partners Affiliates to ensure a clear understanding and effective enforcement of the policy. Therefore, Partners commits to:

1. Disseminating and promoting the policy to all Partners Affiliates and program beneficiaries. Partners will make the policy available and accessible both in print and electronic formats.
2. Translating and creating versions of the policy in the primary languages within the Western Hemisphere (English, Spanish, Portuguese, and French), and other languages as appropriate.
3. Providing regular briefings and annual trainings on the policy and incorporate trainings as part of its onboarding process for new hires.
4. Providing training to all Partners Affiliates who may teach, work with, counsel, supervise, chaperone, lead, or direct any child.
5. Ensuring Partners Affiliates who may work with children attend at least one training on Child Safeguarding every year.
6. Providing further training for Partners Affiliates with specific responsibilities under this policy. These groups would include anyone working directly with children, and Partners'

Program Directors and Country Directors designated to receive and respond to allegations of possible violations of the Child Safeguarding Policy.

7. Partners' Program Directors are required to:
    a. Ensure all Partners Affiliates review and sign the Child Safeguarding Policy and Code of Conduct;
    b. Ensure all staff within their unit attend a Child Safeguarding training annually; and
    c. Maintain individual confidential records that include who has attended the training and the date of attendance.

Partners will ensure Partners Affiliates have access to materials and resources that support understanding and implementation of this policy. Partners will also encourage and facilitate the sharing of best practices in implementing the Child Safeguarding Policy.

Reporting Procedures

Partners is committed to protecting any victim and anyone who submits a report on behalf of a child. Therefore, the following procedures were developed to maintain a safe and confidential experience during the reporting process.

Filing a Report

For Individuals:

- All reports of inappropriate behavior or policy violations with children will be taken seriously. If Partners Affiliates observe any inappropriate behavior or behavior that may violate any provision of this policy, they must immediately contact the immediate supervisor, program, or country director of the alleged offender.
- If the reporter believes that there is a conflict with this reporting mechanism or does not receive a response within three business days, they should immediately submit a report via the first method listed below, followed by the second if there is no response.
    - Contact Partners' internal HR department at Partnershr@partners.net.
    - Contact Partners' external and confidential hotline, Foster Thomas, at bbulger@fosterthomas. *Foster Thomas is an outside party who will relay any concerns to the Ethics Committee of the Board. Reports may be made anonymously.*

For Partner Organizations:

- In accordance with Section Complaints about Partner Organizations, Partner Organizations with a contractual relationship to Partners upon receiving a violation report, should follow their organization policy. Notification of the alleged Child Safeguarding violation should be sent to Partners' point of contact within three (3) business days.

Malicious reporting of violations with the intention of harming another person's integrity or reputation amounts to misconduct and is subject to disciplinary action. This is distinct from reports made in good faith based on the judgment and information available at the time of the report, which may not be confirmed by an investigation.

Response to a Report

Once Partners and/or Foster Thomas receives a report of an alleged violation of this policy, Partners will determine if a formal investigation is necessary with a 3rd party firm, and if so, the 3rd party firm will lead the investigation effort in coordination with Partners. Partners' HR department will notify the complainant if an investigation is deemed necessary by the 3rd party firm. Foster Thomas, Partners' HR department, and any supervisors that receive a report are expected to notify the 3rd party firm within three (3) business days. The 3rd party firm is expected to convene a meeting to review the report within three (3) business days of receipt. They will then review the circumstances of the incident and develop a response plan accordingly. If Partners and/or the 3rd party firm believe that there are any serious or imminent threats to the safety of the report's subject, appropriate action will be taken immediately to ensure the individuals safety. Partners' HR department will continuously update the complainant regarding the status of the investigation.

In the absence of a 3rd party firm, Partners will designate a minimum of one member of the Board of Directors to serve in the Partners Compliance Committee who will be available to investigate good faith disclosures or reports of any wrongdoing, including anonymously or confidentially. The Partners Compliance Committee will lead an investigation, with outside advisory consultation provided as needed. Based on the consultation and investigation, the Partners Compliance Committee will render a decision on how to respond and what actions, if any, to take. No prior experience in a legal or investigative field is necessary to serve on the committee. However, if necessary, Partners will allocate funds to support training for the Compliance Committee.

Child Data and Cybersecurity

All Partners programs and activities that involve children will follow child data security and cybersecurity protocols to protect sensitive data. This includes password-protecting and encrypting sensitive files through Adobe before they are shared or stored on digital platforms. Staff that are not supervisors, and country or program directors will have limited and restricted access to sensitive data. Partners will additionally prioritize the safety and security of children participating in programs by designing tools and strategies to protect personally identifiable information (PII). For instance, Partners will redact PII in all public reports and use pseudonyms or other codes in place of full names for children.

Confidentially

Furthermore, Partners will ensure that all complaints or allegations can be made anonymously. Every effort will be made to maintain confidentiality throughout the complaints process. Information that identifies individuals involved in a complaint will be limited to essential personnel and will not be shared further without obtaining the informed consent of those involved, except if someone's life is at risk, a child is at risk, or as required by law in consultation with legal counsel and where safe to do so. Non-identifying information will be shared with designated focal points as per reporting requirements.

All Child Safeguarding related information must be kept confidential, identities must be protected, and the personal information on survivors should be collected and shared only to a limited number of authorized people for the purpose of conducting an investigation. Informed consent of the person concerned will be requested prior to an investigation.

Staff involved in the complaints process will be made aware of the importance of maintaining confidentiality and will be asked to sign a confidentiality agreement. Employees who breach confidentiality may be subject to disciplinary action up to and including termination of employment, and others who work with Partners may have their relationship with Partners terminated. In some cases, such breaches may constitute breaking the law.

Retaliation against Complainants, Witnesses, or Victims

Partners prohibits any retaliation against anyone who legitimately exercises their rights under this policy or who participates/cooperates in an investigation. There is to be no interference, coercion, discrimination, reprisal, or retaliation against any person for making a valid and truthful complaint or report of a violation. Anyone who believes they are being discriminated against because of legitimately filing a complaint or truthfully participating in an investigation should immediately file a report in the same manner as defined in section 9.1 above.

Anyone who becomes aware of possible harassment or retaliation must immediately file a report so that the organization can investigate in a timely and confidential manner. Partners will take action against anyone, whether they are the subject of a complaint or not, who seeks or carries out retaliatory action against complainants, witnesses, or victims. Employees may be subject to disciplinary action, up to and including termination of employment. Others who work with Partners may have their relationship with Partners terminated.

Complaints about Partner Organizations

As mentioned in Filing a Report, Partner Organizations should notify Partners' point of contact of any alleged violation of the Child Safeguarding policy within three (3) business days. Where Partners receives a complaint about a partner organization, Partners will expect the partner to respond safely, quickly, and appropriately. Partners will assist the partner to ascertain its reporting obligations.

Where appropriate, Partners will work with the partner to address the issue through an appropriate independent investigation. If the outcome is that abuse has occurred, ongoing work with the partner cannot involve the individual(s) concerned. If there is reason to believe that an allegation of abuse has been dealt with inappropriately by a partner, then they risk withdrawal of funding or ending the relationship.

Communication

If there is an alleged violation, Partners Affiliates are not permitted to send communications to employees, donors, program participants, or others about the incident. Due to the sensitivity of the subject matter and protection of child data, all communications must be approved by Partners' HR. This especially includes, but is not limited to, communications with the general public or the media.

Accountability of Management

Partners Management is committed to taking all appropriate corrective actions. Disciplinary, legal, or other applicable actions in response to any violation of the Child Safeguarding Policy will be taken against any individual who has committed a violation and/or anyone who knew of such a violation and failed to act or report. Partners Management will continuously evaluate findings of violations to the Child Safeguarding Policy to identify and address gaps and/or weaknesses in applicable policies, procedures, and protocols.

Annex J: Trafficking in Persons Policy

Purpose and Scope

This policy applies to all Partners of the Americas (Partners) Affiliates, as defined below under 4. Definitions. This policy provides an analytical framework to ensure that Partners programs comply with the Victims of Trafficking and Violence Protection Act of 2000, as amended (TVPA). TVPA provides tools to combat trafficking in persons (TIP) both worldwide and domestically. Partners maintains a zero-tolerance policy against TIP. Partners will apply this policy to ensure risks associated with TIP are minimized in all operations both in the U.S. and abroad. This policy is meant to provide a general guidance and to comply with U.S. Government regulations, donor requirements, and all other applicable local laws. This policy sets forth the expectations Partners as an organization has to ensure Partners Affiliates avoid engagement of, complicity in, or benefiting from human trafficking.

This procedure implements FAR 52.222-50, mandatory provision of M15 Standard Provisions for U.S. Nongovernmental Organizations, and the Depart of Labor's Management Procedures & Guidelines (MPG) for Cooperative Agreements which require implementers of U.S. Government contracts and cooperative agreements to administer policies and procedures to prevent human trafficking.

Compliance and Responsibility

This policy also applies to all Partners Affiliates, defined as:

- All staff (full-time, part-time, international, and national), and those engaged on short-term contracts (e.g., consultants, facilitators, mentors, sub-contractors, researchers, etc.);
- Volunteers, board members, trustees; and
- Partner organizations who have a formal/contractual relationship with Partners .

Senior Directors at home office and the field office Chief of Party (COP)/Project Director (PD) are responsible for ensuring customization, implementation, and monitoring of the Trafficking in Persons (TIP) compliance plan. The COP/PD is also responsible for certifying the TIP compliance plan on an annual basis on the contract/agreement anniversary date.

Order of Precedence

If any conflicts occur between this policy and donor requirement, the issue shall be resolved by giving precedence in the following order:

1. Requirements according to the donor (if the Partners Affiliate works on a U.S. Government-funded project)
2. Partners 's TIP Policy

Definitions

For the purposes of this policy, Partners uses the TVPA and U.S. Department of State Office to Monitor and Combat Trafficking in Persons in defining the following terms:

1) **Partners Affiliate**: Any employee, non-employee, members of the Board of Directors, individuals of a partner organization with a contractual relationship to Partners, or members of the Partners network, including but not limited to consultants, volunteers, and Chapter members, implementing programs on behalf of Partners HQ.

2) **Bonded Labor or Debt Bondage:** The status or condition of a debtor arising from a pledge by the debtor of his or her personal services or of those of a person under his or her control as a security for debt if the value of those services as reasonably assessed is not applied toward the liquidation of the debt or the length and nature of those services are not respectively limited and defined.

3) **Child or "Children:** A child or children are defined as persons who have not attained 18 years of age, irrespective of local country definitions of when a child reaches adulthood.

4) **Child Sex Trafficking:** Any child (under the age of 18) who has been recruited, enticed, harbored, transported, provided, obtained, advertised, maintained, patronized, or solicited to engage in a commercial sex act is a victim of human trafficking regardless of whether or not force, fraud, or coercion is used. The use of children in the commercial sex trade is prohibited both under U.S. law and by legislation in most countries around the world.

5) **Complainant**: The person reporting (or "making a complaint" about) TIP. This could be the victim or another person who becomes aware of the wrongdoing.

6) **Complaint**: The report of an incident of TIP.

7) **Complaint's procedure**: A framework that describes the course of action for receiving and processing allegations of TIP. This includes systems for processing complaints within an organization.

8) **Domestic Servitude:** A form of forced labor in which the trafficker requires a victim to perform work in a private residence. Domestic workplaces are often informal, connected to off duty living quarters, and not shared with other workers. Such an environment is conducive to exploitation because authorities cannot inspect private homes as easily as formal workplaces. The use of informal, or even verbal, employment contracts compounds vulnerability. Foreign domestic workers are particularly vulnerable to abuse due to factors such as language and cultural barriers and lack of community ties.

9) **Exploitation:** includes, at a minimum, the exploitation of the prostitution of others or other forms of sexual exploitation, forced labor or services, slavery, or practices similar to slavery, servitude, or the removal of organs. The recruitment, transportation, transfer, harboring, or receipt of someone under the age of 18 for the purpose of exploitation is considered "trafficking in persons".

10) **Forced Child Labor:** Although children may legally engage in certain forms of work, forms of slavery or slave-like practices – including the sale of children for exploitation, forced or compulsory child labor, and debt bondage and serfdom of children – continue to exist, despite legal prohibitions and widespread condemnation.

11) **Forced Labor:** Means knowingly providing or obtaining the labor or services of a person:

a) By threats of serious harm to, or physical restraint against, that person or another person;
b) By means of any scheme, plan, or pattern intended to cause the person to believe that, if the person did not perform such labor or services, that person or another person would suffer serious harm or physical restraint; or
c) By means of the abuse or threatened abuse of law or the legal process.

12) **Human trafficking**: Refers to recruiting, harboring, transporting, providing, or obtaining a person for compelled labor or commercial sex acts through the use of force, fraud, or coercion. Human trafficking can include, but does not require, movement. People may be considered trafficking victims regardless of whether they were born into a state of servitude, were transported to the exploitative situation, previously consented to work for a trafficker, or participated in a crime as a direct result of being trafficked. At the heart of this phenomenon is the traffickers' goal of exploiting and enslaving their victims and the coercive and deceptive practices they use.

13) **Incident**: Instances of TIP.

14) **Partner Organizations**: Any organization that has a contractual relationship with Partners, including subcontractors and sub-awardees.

15) **Severe forms of trafficking in persons:**
    a) Sex trafficking in which a commercial sex act is induced by force, fraud, or coercion, or in which the person induced to perform such act has not attained 18 years of age; or
    b) The recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery."

16) **Sex Trafficking:** When a person is required to engage in a commercial sex act as the result of force, threats of force, fraud, coercion, or any combination of such means, that person is a

victim of human trafficking. This is true even if the victim previously consented to engage in commercial sex.

17) **Trafficking in persons:** Means the recruitment, transportation (including failure to provide return transportation), transfer, harboring, or receipt of persons, by means of the threat or use of force or other forms of coercion, of abduction, of fraud, of deception, of the abuse of power or of a position of vulnerability or of the giving or receiving of payments or benefits to achieve the consent of a person having control over another person, for the purpose of exploitation.

18) **Victim**: The person who is the subject of human trafficking. The term Victim is not meant to imply a lack of strength, resilience, or capacity to survive.

Policy

It is the policy of Partners to comply with laws and regulations prohibiting trafficking in persons. Partners staff and Partners Affiliates must avoid and are prohibited from active engagement, complicity in or benefiting from any practice that constitutes trafficking in persons. The consent of a victim of trafficking is irrelevant.

Furthermore, the Partners, its employees, subrecipients, subrecipients' employees, contractors and contractors' employees may not engage in or use labor recruiters, brokers or other agents who engage in:

i. severe forms of trafficking in persons;
ii. the procurement of a commercial sex act during the period of time that the grant, contract, or cooperative agreement is in effect;
iii. the use of forced labor in the performance of the grant, contract, or cooperative agreement; or acts that directly support or advance trafficking in persons.

Examples of conduct that would violate this policy because it contributes to trafficking in persons, include (but are not limited to):

- Procuring commercial sex acts;
- Using forced labor in the performance of any contract, cooperative agreement, or award;

- Destroying, concealing, confiscating, or otherwise denying any employee access to his or her identity or immigration documents, such as passports or drivers licenses;
- Soliciting a person for the purpose of employment, or offering employment, by means of materially false or fraudulent pretenses, representations, or promises regarding that employment;
- Using misleading or fraudulent recruiting practices during the recruitment of employees or offering of employment/contract positions; such as failing to disclose, in a format and language accessible to the potential candidate, basic information or making material misrepresentations during the recruitment of candidates regarding the key terms and conditions, including wages and fringe benefits, the location of work, the living conditions, housing and associated costs (if provided by Partners), any significant cost to be charged to the candidate, and, if applicable, the hazardous nature of the work;
- Using recruiters that do not comply with local labor laws of the country in which the recruiting takes place;
- Charging applicants/candidates/employees recruitment fees or unreasonable placement fees;
- If required by law or contract, failing to provide return transportation, or failing to pay for the cost of return transportation upon the end of employment. Failing to provide return transportation or pay for return transportation costs to an employee from a country outside the United States to the country from which the employee was recruited upon the end of employment if requested by the employee, unless exempted from the requirement to provide or pay for such return transportation by the Federal department or agency providing or entering into the grant, contract, or cooperative agreement; or the employee is a victim of human trafficking seeking victim services or legal redress in the country of employment or a witness in a human trafficking enforcement action.;
- If required by law or contract, failing to provide or arrange housing that meets the host country housing and safety standards; or
- If required by law or contract, failing to provide an employment contract, recruitment agreement, or other required work document in writing.

Partners Affiliates who violate this policy will be subject to discipline, up to termination, and may be subject to criminal prosecution. Partner Organization may have their agreements terminated, be prohibited from working with Partners in the future and/or be subject to criminal prosecution.

Counter-Trafficking in Persons Minimum Compliance Requirements

Counter-TIP Minimum Compliance Requirements apply to all projects, regardless of the TIP risk categorization for the country or the relevant project. Senior Directors at home office and the field office COP/PD are responsible for monitoring programs to verify compliance with the TIP Policy and the Minimum Compliance Requirements.

Customize the TIP Compliance Plan

Senior Directors at home office and the field office COP/PD are responsible for ensuring customization, implementation, and monitoring of the Trafficking in Persons Compliance Plan.
The COP/PD is responsible for customizing the TIP compliance plan within three months of the project start date. Collect information regarding the trafficking-in-person's risk level for the project. The COP/PD should use the following resources:

- Read the latest State Department TIP Report.
    - In the State Department TIP Report, each country is categorized as Tier 1 (low risk), Tier 2 (high risk), or Tier 3 (extremely high risk). The TIP tiers measure the severity of human trafficking in that country and how well its government complies with the Trafficking Victim's Prevention Act. If the project operates in a Tier 2 or Tier 3 country, it is operating in a country with individuals who are at high risk for human trafficking and a government that is not adequately enforcing anti-trafficking laws.
- Identify the State Department TIP tier ranking for the country of operation (Low, Medium, or High).
    - Note, if the project is identified as a Tier 1 (low risk) country by the State Department TIP report but interacts with a high-risk sector, region, or population the risk level must be adjusted accordingly.

- If the risk level for the project is Medium or High, include more robust awareness activities and detailed information on the risks in the project's environment.
- If the risk level for the project is High, consult with the home office Senior Director regarding the need to engage a TIP expert to assist with customization of the compliance plan.

- Identify which economic sector(s), geographic region(s), or ethnic population(s) are at greatest risk, and which types of human trafficking are most prevalent and determine the extent to which the project will work with these sectors, regions, or populations.
- As needed, collect information on trafficking in persons from other credible sources, Partners within the country or using notes gathered during reconnaissance assignments in the country.

Once the plan has been approved by the COP/PD, the plan must be submitted to home office Senior Directors.
The COP/PD is responsible for certifying the TIP compliance plan on an annual basis, thereafter, on the contract/agreement anniversary date. Certify the compliance plan using the certification form on the final page of the TIP compliance plan. This certification acknowledges through due diligence efforts that:

- To the best of his/her knowledge and or belief, the project's employees, and agents, as well as its Partner Organizations, subcontractors, sub-awardees and their employees and agents are not engaged in prohibited activities; and
- If prohibited abuses are found, Partners and/or its subcontractor and sub-awardees will take the appropriate remedial and referral actions.

The annual certification must be sent to home office and a copy sent to the Compliance Department at compliance@partners.net. Annual certifications must be submitted within three months of a new award, and annually thereafter by January 31st.

Awareness

To reduce the risk of TIP, Partners has established the following practices, which apply to all Partners Affiliates.

For Individuals:

- Fully read and review the TIP Policy; and
- Sign Partners 's Code of Conduct which includes TIP language

For Partner Organizations:

- Sign TIP Certification;
- Have in place and follow organizational policy and procedure on TIP; and
- For Partner Organizations with agreements over $550,000 USD, a copy of their Compliance Plan must be collected annually.

During site visits or visits to vendors, project staff should be cognizant of human trafficking warning signs, and report potential violations as per the "Reporting" section of the Compliance Plan for that Partner Organization.

Partners 's home office Program Directors are responsible for verifying that Partners Affiliates under their program(s) complete the above requirements. Partners 's HR Department is responsible for verifying that Partners HQ staff, interns and consultants complete the above requirements as part of the new hire onboarding process.

Education and Training

Partners understands the importance of providing adequate training and awareness to staff and Partners Affiliates to ensure a clear understanding and effective enforcement of the policy. Therefore, Partners commits to:

1. Disseminating and promoting the policy to all Partners Affiliates. Partners will make the policy available and accessible both in print and electronic formats.
2. Translating and creating versions of the policy in the primary languages (English, Spanish, Portuguese, French, Burmese, and other language as appropriate).
3. Providing regular briefings and annual trainings on the policy and incorporating trainings as part of its onboarding process for new hires. The trainings are listed below:
    a. FAI.gov:https://www.fai.gov/sites/default/files/FAC_022-Combating_Trafficking_in_Persons/story.html or
    b. Polaris Project: https://polarisproject.org/human-trafficking-101/#gf_4

4. All Partners agreements with Partner Organizations will include a clause that requires the Partner Organization to adhere to the substance of this policy and to communicate this policy to their staff.
5. Members of Senior Leadership are required to report all suspected violations of this policy to the Human Resource (HR) Team.

Partners will ensure Partners Affiliates have access to materials and resources on the External SharePoint that support understanding and implementation of this policy. Partners will also encourage and facilitate the sharing of best practices in implementing the TIP Policy.

Reporting Procedures
Partners is committed to protecting anyone affected by TIP and anyone who submits a report on behalf of a person affected by TIP. Therefore, the following procedures were developed to maintain a safe and confidential experience during the reporting process.

Filing a Report
For Individuals:

- All reports of potential TIP violations will be taken seriously. If Partners Affiliates observe any inappropriate behavior or behavior that may violate any provision of this policy, they must immediately report their observations in one of the following ways:
    4. Contact supervisor,
    5. Contact Partners 's external and confidential hotline, Foster Thomas, at bbulger@fosterthomas. *Foster Thomas is an outside party who will relay any concerns to the Ethics Committee of the Board. Reports may be made anonymously.*
    6. Contact Partners 's internal HR department at POAHR@partners.net.
    7. Hotline phone number of the Global Human Trafficking Hotline at 1-844-888-FREE and its email address at help@befree.org.
- If the reporter does not receive a response from one of the above personnel within three business days, they should immediately submit a report via another method listed above.

For Partner Organizations:

- In accordance with Section 6.5 Complaints about Partner Organizations, Partner Organizations with a contractual relationship to Partners upon receiving a TIP violation report, should follow their organization policy. Notification of the alleged TIP violation should be sent to Partners 's point of contact within three (3) business days.

Malicious reporting of TIP with the intention of harming another person's integrity or reputation amounts to misconduct and is subject to disciplinary action. This is distinct from reports made in good faith based on the judgment and information available at the time of the report, which may not be confirmed by an investigation.

Response to a Report

Once Partners and/or Foster Thomas receives an alleged TIP report, Partners will open a formal investigation. The 3rd party firm will lead the investigation effort in coordination with Partners . If Partners and/or the 3rd party firm believe that there are any serious or imminent threats to the safety of the report's subject, appropriate action will be taken immediately to ensure the individuals safety. In the absence of a 3rd party firm, Partners will designate a minimum of two members of the Board of Directors to serve in the Partners Compliance Committee who will be available to investigate good faith disclosures or reports of any wrongdoing, including anonymously or confidentially.

The Partners Compliance Committee will lead an investigation, with outside advisory consultation provided as needed. Based on the consultation and investigation, the Partners Compliance Committee will render a decision on how to respond and what actions, to take.

If the violation is found to be true, Partners will also report the incident to the donor as needed and as required by the award. Partners HR will inform the Home Office Project Director and Vice President of Programs of the violation and the Program Team will be responsible for communicating the TIP violation to the donor as required.

Confidentially

Partners understands due to the nature of incidents related to TIP; action must be taken immediately. TIP investigations will be conducted in a timely, fair, objective, and confidential manner. This includes the use of appropriate interviewing practice with reports and witnesses. All information and documented evidence will be held securely and in the strictest confidence. The name of the complainant will not be revealed to the person(s) potentially implicated in the allegation or to any other person unless the individual personally authorizes the disclosure of their identity.

Every effort will be made to maintain confidentiality throughout the complaints process. Information that identifies individuals involved in a complaint will be limited to essential personnel and will not be shared further without obtaining the informed consent of those involved, except if someone's life is at risk, a child is at risk, or as required by law in consultation with legal counsel and where safe to do so. Non-identifying information will be shared with authorized people which will include the 3rd party investigation firm, Partners 's HR manager, Foster Thomas, and local law enforcement if necessary.

All TIP-related information must be kept confidential, identities must be protected to the extent possible, and personal information should be collected and shared only to a limited number of authorized people for the purpose of investigating.

Staff involved in the complaints process will be made aware of the importance of maintaining confidentiality and will be asked to sign a confidentiality agreement. Employees who breach confidentiality may be subject to disciplinary action up to and including termination of employment, and others who work with Partners may have their relationship with Partners terminated. In some cases, such breaches may constitute breaking the law.

Retaliation against Complainants, Witnesses, or Victims

Partners prohibits any retaliation against anyone who legitimately exercises their rights under this policy or who participates/cooperates in an investigation. There is to be no interference, coercion, discrimination, reprisal, or retaliation against any person for making a valid and truthful complaint or report of a violation. Anyone who believes they are being discriminated against because of legitimately filing a complaint or truthfully participating in an investigation should immediately file a report in one of the following ways:

4. Contact the immediate supervisor, program, or country director of the alleged offender.
5. Contact Partners 's external and confidential hotline, Foster Thomas, at bbulger@fosterthomas. Foster Thomas is an outside party who will relay any concerns to the Ethics Committee of the Board. Reports may be made anonymously.
6. Contact Partners 's internal HR department at POAHR@partners.net.

Anyone who becomes aware of possible harassment or retaliation must immediately file a report so that the organization can investigate in a timely and confidential manner. Partners will take action against anyone, whether they are the subject of a complaint or not, who seeks or conducts retaliatory action against complainants, witnesses, or victims. Employees may be subject to disciplinary action, up to and including termination of employment. Others who work with Partners may have their relationship with Partners terminated.

Complaints about Partner Organizations

As mentioned in 6.1 Filing a Report, Partner Organizations should notify Partners 's point of contact of any alleged TIP violation within three (3) business days. Where Partners receives a complaint about a Partner Organization, Partners will expect the partner to respond safely, quickly, and appropriately. Partners will assist the partner to ascertain its reporting obligations.

Where appropriate, Partners will collaborate with the partner to address the issue through an appropriate independent investigation. If the outcome is that a violation has occurred, ongoing work with the partner cannot involve the individual(s) concerned. If there is reason to believe that an allegation of abuse has been dealt with inappropriately by a partner, then they risk withdrawal of funding or ending of the relationship.

Policy Administration

Responsibility for ensuring this policy is monitored, enforced, and remains up-to-date and compliant rests with the Compliance Team. Partners 's Executive Management Leadership is committed to taking all appropriate corrective actions. Disciplinary, legal, or other applicable actions in response to any violation of the TIP Policy will be taken against any individual who has committed a TIP violation and/or anyone who knew of such a violation and failed to act or report. The Compliance Team will continuously identify and address gaps and/or weaknesses in applicable policies, procedures, and protocols.

Annex K: Employee Incident Report

Employee Incident Report

A. Injured Employee Data					
Employee Name:		Position:	Full Name of Witness (If applicable):		
Work Location:					
Date of Accident	Time of Accident A.M. ☐ P.M. `☐		Claim Number (if known)		
Phone:	Other/Cell Number:		Email:		
Supervisor			Supervisor Telephone Number		

Check all that Apply:

Type of Accident/Loss: ( )Injury ( )Vehicle Accident ( )Illness ( )Property Damage ( )Fire

(_)Other-Specify:____

Location of Occurrence: ( )On Premises - Office ( )Off-Premises

Nature of Injury/Illness: (Strain, Laceration, Burn, Fracture, etc.)___________________________

Part(s) of Body: (Back, Finger, Hand, Foot, etc.)______________________

Date of 1st Medical Treatment:_____Time_AM/PM

Employee Sent: ( )Back to Work ( )To Doctor ( )Home ( )To Hospital

If applicable: Estimated Time of Disability:______Days

For Vehicle Accidents Only

Owner: ( ) Partners Mauritania ( )Other (Name/Address)__________

License Plate Number:__________________Year:_______

Make/Model:______________

Brief Damage Description:

____
____
____
____
____

Repair Hours (Estimated)____ Estimated Material Costs $_____________

B. Accident Description
Instructions: Obtain written and/or recorded statements from injured employee. What happened? What caused the accident? What were the contributing factors? Reconstruct the sequence of events that led to the injury. Attach additional sheets if necessary. This document becomes an official accounting of the facts surrounding the accident. When documenting the facts, include answers to the following questions:
Where did the accident happen and who was involved? Provide a full description of the surroundings of the location and the individuals involved.
What was happening at the time of the accident and why was it taking place?
What were the events leading up to the accident? Describe the sequence in order and when they took place.
What exactly caused the injury and how did it happen? What were the mechanics, equipment or tools involved?

Describe the injury or injuries incurred. What body part and what kind of injury? (Indicate if no injury occurred.)
If a physical injury was avoided, what could have happened to cause an injury?
7. If damage occurred to employer vehicle, please describe the damage:
8. If damage occurred to employer equipment, please describe the damage:
C. Accident Findings
After review of all facts, what was the hazardous condition, unsafe work practice, or other causal factors (procedure, equipment, people, and environment) that contributed to the accident / injury?

Employee Signature: ____

Date:_________________

Witness Signature (If Applicable):____

Date: __________

Supervisor Signature: ____

Date: _________________

Employee Accident Investigation Report

To Be Conducted by FO Director

For all question below please write one of the following: *(Y for Yes; N for No; NA for Not Applicable)*

I. Environmental Data

Temperature__
Humidity____
Weather_____
Wind__
Visibility____
Lighting_____
Surface (road, steps, floor, etc.). ______________
Condition (smooth, wet, slippery, etc.) ______________

Type Surface (wood, asphalt, grass, etc.)___ _______________
Describe Roadway (Curve, uphill, intersection, etc.) _______________
Traffic Control Devices (Y/N):
(1) Present___
(2) Visible___
For ramps, stairs, steps (Y/N):
(1) Present___
(2) Obstructions______

II. Operator/Vehicle (If applicable)

A. Driver Injured________________
B. Passengers Injured ____________
C. Others Injured________________
D. Vehicle Damaged_____________
F. Other Vehicle Damaged________

G. Other Property Damaged______________
H. Driver Licensed for Vehicle____________
I. Seat Belts Worn______________________
J. Alcohol/Drugs Involved ______________
H. Alcohol/Drugs a Factor___________
I. Adequate Rest for Use____________

III. Equipment/Training Data

A. Safety Equipment Required_______
B. Safety Equipment Available_______
C. Safety Equipment Used___________
D. Experience a Factor______________
E. Instructions Available____________

F. Instructions Written______________
G. Instructions Adequate____________

Have similar accident occurred before? ____

How many accidents has this employee had in the past 12 months? __________________________

Of the above accidents how many were preventable? ____________________________________

Once the investigator has completed the questions above and reviewed the incident report, answer the following questions:

In your opinion, what caused the accident?
A. Unsafe Procedure_______________ Was this Preventable _____ or Non-Preventable _____

B. Defective Equipment _____________ Was this Preventable _____ or Non-Preventable _____

C. Horseplay/Misconduct____________ Was this Preventable _____ or Non-Preventable _____

D. Unauthorized Use _______________ Was this Preventable _____ or Non-Preventable _____

E. Poor Hygiene/Housekeeping _______ Was this Preventable _____ or Non-Preventable _____

F. Lack of Training/Experience ________ Was this Preventable _____ or Non-Preventable _____

D. Corrective Action
What is recommended to prevent this type of accident from occurring again?

List possible factors based on descriptive narrative and information in preceding data fields:
List causes:
Corrective Action Taken/Planned, with dates:

Use Additional Forms and Paper if Required

Investigated by: ____

Investigator Signature: ____

Date: _________________

Reviewed by: ____

Reviewer Signature: ____

Date: _________________

Annex L: Reference Check

Reference Check

Greetings from Partners of the Americas Reference Name,

We are currently considering Name of candidate for the position of Position Name at *Partners of the Americas*.

They provided your name as a professional reference. We have a few questions about their demonstrated performance and aptitude for the position. We thank you in advance for responding to these questions.

If you would rather go over these questions via virtual call, please provide a time and phone number where I can contact you.

Please note that we are trying to move quickly, therefore, we appreciate your attention to this matter.

Thank you for your time.

- Name of Previous Employer:
- Position Title :
- Relationship to Candidate:
- Dates employed: From: _______________ To: _______________________
- How would you describe the job performance of the above candidate in one word? Why

- Tell me of a time when the candidate was in a stressful situation at work, how did he manage?
- What is the most important attribute of the person? Why?
- What value did the person add to the company?
- Is the applicant eligible for rehire/promotion?
- How well did the applicant get along with coworkers and others?
- Tell me about a situation that involved the applicant and a team. What part did the applicant play? What were the outcomes? (Leader, communicator, worker, Idea person, creator etc.).
- Do you consider this person capable of assuming the duties for the role that we are hiring for?
- Describe an instance where you have seen how this candidate handled and corrected a mistake in the past.
- Other input as to this person's skills?

Annex M: Offer Letter

Offer Letter

[DATE]

Subject: Job offer

[CANDIDATE NAME]

[ADDRESS]

Dear [CANDIDATE Name]

I am delighted to announce that you have been selected for the position of [Position] at Partners of the Americas Inc. Mauritania.

After interviewing you and reviewing your career path, Partners is convinced that your knowledge and experience will be one of our most valuable assets.

We offer you an open-ended contract with an effective date of and is subject to a trial period of (_) months, in accordance with current laws and regulations. This trial period may be renewed once (1) if necessary.

We would like to offer you a gross monthly salary of 1111 MRU (Ouguiya), details of which will be given in the employment contract.

Annual salary reviews will be performance-based and subject to approval by General Management.

The gross monthly salary will be deducted from all compulsory deductions authorized by law.

In addition to paid annual leave and exceptional leave in accordance with articles 49 and 56 of the collective agreement, you will also benefit from 12 days of paid sick leave and, where applicable, 20 days of paternity leave.

It should be noted that you will be granted annual leave of twenty (20) working days, at the rate of 1.67 days per month of actual service, for the first three (3) years of employment with Partners Of the Americas. Thereafter, twenty-five (25) days of annual leave will be granted after the third (3rd) year of employment, at a rate of 2.08 days per month of actual service,

You'll also receive a 13th month's bonus, calculated on the basis of time worked throughout the year.

Life insurance is provided to all Partners Mauritania staff and is paid 100% by Partners Mauritania. Coverage will be in local MRU, but equivalent to 25,000 - 30,000 USD. This cover generally offers a death benefit equivalent to a multiple of the employee's annual salary, providing financial support to dependents in the unfortunate event of the employee's death. In addition, Partners Of the Americas offers health coverage to its employees and their dependents of legal age, in the form of third-party medical insurance.

If you travel outside Nouakchott, you will receive daily compensation in accordance with the Organization's travel policy.

Please return a copy of this letter with your signature, preceded by the handwritten words "**Read and approved**", to comply with administrative practice. A copy of this letter will also be sent to the Nouakchott regional labor inspector, for information.

Upon your approval, Partners of Americas Inc. will offer you a work contract as part of its Food for Progress Mauritania project.

I send you my warmest greetings and welcome you as a member of the Partners of the Americas team in Mauritania.

Sincerely,

IAN MACNAIRN

Country Director - Mauritania	Full name :
Partners of the Americas	Read and approved
	Date :

Annex N: Professional Development Policy

Purpose

The Professional Development Policy refers to the company's learning and development programs and activities to support Partners of the Americas' (POA) global workforce.

In the modern competitive environment, professionals need to replenish their knowledge and acquire new skills to do their jobs better. The purpose of this policy is to provide guidelines to apply to POA's Professional Development Global Funds, as well as finding new ways towards professional success.

Policy Elements

Under this policy, POA understands that staff, Senior Leadership and Human Resources (HR) should collaborate to build a continuous learning and development culture. The Professional Development Program is learning undertaken by staff and their supervisors to maintain and advance skills, knowledge, and competencies, specifically as it relates and adds value to the job, and POA's mission.

It is a dynamic process and can be achieved not only through participation in formal coursework, but also through professional experience, collaboration, mentoring, participation in activities of professional organizations, and independent study and research. In addition, POA has procured a cloud-based learning management system that contains and serves as a central learning hub with thousands of educational micro-courses and other resources.

While the engagement in professional development varies widely between groups and individuals, the following areas of knowledge and skills development should be considered relevant to the success of the staff and POA's mission and initiatives:

- Business skills, including financial stewardship, foreign language acquisition, technical knowledge related to POA's technical areas, human resource management, and strategic leadership.

- Communication skills, including basic skills, conflict management, resolution, negotiation, and facilitation.
- Team communications and/or team-building skills.
- Research funding and grant administration knowledge and skills.
- Knowledge and skills related to diversity, equity, and inclusion.
- Knowledge and skills in the use of technology to increase the efficiency and effectiveness of POA's business processes/practices.
- Maintaining and developing professional expertise.
- Other core skills, including, but not limited to, critical thinking, problem-solving, public speaking, professional writing, and intercultural fluency

Program Eligibility
All professional development opportunities under this policy must be related to improving the skills of individual staff members in their present jobs, and/or to enhancing staff potential for advancement to a position within POA which the individual has a reasonable and clear expectation of achieving. Professional development opportunities should first focus on helping staff excel in their current position. If staff has mastered all skills required for their current role, the funds in this program can be used to develop skills for a future growth opportunity within POA.

Staff Eligibility
This policy applies to all POA full-time employees, and full-time consultants (case by case), that have completed more than 90 days of employment (completion of employment probatory period in good standing is required). This policy applies to all staff who work exclusively for POA. Exceptions to this policy must be approved by the President & CEO and HR.

General Guidelines
- All eligible staff are covered by this policy without discriminating against race, disability, gender, age, religion, appearance, citizenship or immigration status, sexual orientation, genetic information, marital status, social or economic status, or any protected group or affiliation under State, Federal Law, or local country regulations.

- Supervisors and unit VPs will evaluate the success of professional development efforts and must keep records for reference and better improvement opportunities.
- All professional development efforts should respect cost time limitations, as well as individual and business needs.
- All professional development requests should be cross-checked first to see if the relevant course material is available on POA's cloud-based learning management system before submitting a request for external opportunities.
- Supervisors and unit VPs are encouraged to use their allocated professional development budgets and time to support the program and team's needs.
- Staff should try to make the most out of their professional development opportunities by studying and finding ways to apply knowledge to their work.

Approval of Professional Development

Approval of professional development opportunities must be provided by the staff member's supervisor and the following Approval Team:

- Country Director or FO Director, designated field HR representative for field staff[3]

The Approval Team must ensure that the request complies with this policy and ensure that the professional development is documented in the staff's personnel file.

Cost

Under this policy, eligible staff may request reimbursement from the Professional Development funds as follows:

- Up to US$ 750 per calendar year[4]

Eligible costs may include, but not limited to:

- Onsite workshop cost with a third-party vendor.
- Purchase of textbooks, E-books, and training materials, printed or download.

[3] If the field program does not have a designated HR representative, the Home Office HR team will designate the individual to be on the Approval Team

[4] Pro-rated for eligible staff who begin working with Partners in the calendar year

- Tuition, registration, and admission fees.
- Costs of logistic, transportation, lodging, airfare, and meals associated with any Professional Development program.

POA will pay for the eligible costs up front upon request.

The designated budget outlined in this policy is contingent upon the availability of funding. The allocation of funds is subject to review and adjustment based on the financial resources available at the time. This means that while the policy provides a framework for budgeting, the actual funding may vary depending on the financial situation and resources of the organization. Any changes to the budget due to funding availability will be communicated accordingly.

Unallowable costs

- Late payment fees.
- Costs funded by outside sources, including costs covered by scholarships, student loans, or other outside aid.
- Course material offered by POA's learning management system.
- Fees associated with college or university entrance exams (GMAT, GRE' LSATS, TOEFL, etc.).

Hours and Attendance

POA encourages staff to develop a continuous learning culture; however, course attendance and completion of studies for Professional Development must not interfere with the employee's core hours of work, unless approved by the Approval Team. POA may approve employees to use their PTO as needed. An additional Flex Work Arrangement (FWA) request may be available to address Professional Development scheduling needs. In addition, staff must ensure satisfactory job performance during enrollment in any Professional Development program.

Application Process

The staff member will need to determine with the help of their supervisor which type of program will work best to improve or master performance and project needs in their current role.

The following must be considered when determining a Professional Development program:

- **The nature and purpose of the course of study/opportunity**: Is the opportunity related to the current job or a target position within POA?
- **Potential benefits**: Will the outcome of the course/opportunity be beneficial to the staff and POA?
- **Staff eligibility**: Is the staff eligible for participation in the program as stipulated in this policy; and
- **The staff's current performance:** If the staff needs to improve performance, the courses/opportunities should first focus on capacity building for the current position prior to developing skills for potential future positions within POA.

Learning Activity Prior Identification

Once a Professional Development program has been identified by the staff and approved by their supervisor, the staff must complete the Professional Development Application Form. Once completed, the Professional Development Application Form will be submitted to the Approval Team, as defined in Section 6, for review and approval, BEFORE registering and commencing the course/opportunity. Once the Professional Development Application is approved, the staff will be notified to start making the arrangements to complete and attend the Professional Development program requested.

Learning Activity After Identification

Staff members who independently pursue learning activities outside of LinkedIn Learning or without their supervisor's prior approval and later find a direct correlation that would benefit both Partners and their professional development, may submit a reimbursement request form. Staff members must consult with the supervisor for initial approval then complete a Professional Development Application Form that will be routed to the Approval Team*. A signed professional development application form must accompany the reimbursement request form.

*However, it is essential to note that submitting a request after the course or purchase may result in a denial if the justification does not align with the business or professional development needs.

Payment & Reimbursement Request

The Professional Development program courses can be paid using POA's credit card, or via ACH/Wire. In some cases, POA does not pay for the Professional Development program directly; therefore, staff will have to pay upfront and provide the following supporting documents and attach them to the expense report for reimbursement. The HR & F&A team will provide guidelines on a case-by-case basis.

- Expense report (must follow ACH or Wire requirement under F&A guidelines)
- Professional Development Request Form approved by the Approval Team
- Proof of payment (receipt)
- If Applicable, proof of passing grades and/ or certification of attendance

Annex O: Performance Evaluation Template

EMPLOYEE PERFORMANCE EVALUATION

EMPLOYEE'S NAME		**SUPERVISOR'S NAME**	
EMPLOYEE POSITION		**SUPERVISORY POSITION**	
REVIEW DATES		**TODAY'S DATE**	

SECTION 1. COMPETENCIES

Competency		Employee Self Assessment	Supervisor Rating	Comments
Universal All - ACCOUNTABILITY	Universal All - ACCOUNTABILITY: Holds self and others accountable for measurable high-quality, timely, and cost-effective results.			Employee: Supervisor:
Universal All - BUILDING TRUST	Universal All - BUILDING TRUST: Interacts with others in a way that gives them confidence in one's motives and representations and those of the organization. Is seen as direct and truthful; keeps assurances, promises, and commitments.			Employee: Supervisor:
Universal All - CULTURAL COMPETENCE	Universal All - CULTURAL COMPETENCE: Cultivates opportunities through diverse people; respects and relates well to people from varied backgrounds, understands diverse worldviews, and is sensitive to group differences; sees diversity as an opportunity, challenges bias and intolerance.			Employee: Supervisor:
Universal All - PROBLEM-SOLVING	Universal All - PROBLEM-SOLVING: Breaks down problems into components and recognizes interrelationships; makes sound, well-informed, and objective decisions. Compares data, information, and input from a variety of sources to draw conclusions; takes action that is consistent with available facts, constraints, and probable consequences.			Employee: Supervisor:
Professional Staff - COLLABORATION	Professional Staff - COLLABORATION: Builds constructive working relationships with clients/customers, other work units, community organizations, and others to meet mutual goals and objectives; behaves professionally and supportively when working with individuals from various ethnic, social, and educational backgrounds.			Employee: Supervisor:
Professional Staff - TEAMWORK	Professional Staff - TEAMWORK - Participates as an active and contributing member of a team to achieve team goals. Works cooperatively with other team members, involves others, shares information as appropriate, and shares credit for team accomplishments.			Employee: Supervisor:
Professional Staff - ADAPTABILITY/RESILENCE:	Professional Staff - ADAPTABILITY/RESILENCE: Adapts well to adversity and changes in assignments and priorities; adapts behavior or work methods in response to new information, changing conditions, or unexpected obstacles; approaches change positively and adjusts behaviors accordingly. Effectively adapts to difficult, unexpected situations.			Employee: Supervisor:
Professional Staff - INTERPERSONAL COMMUNICATIONS	Professional Staff - INTERPERSONAL COMMUNICATIONS: Conveys and receives information and ideas through a variety of media to individuals or groups in a manner that engages the listener, helps them understand and retain the message and invites response and feedback. Keeps others informed appropriately; demonstrates good written, oral, and listening	0	0	Employee: Supervisor:
	Total Weight for Section 1: 10%	**0**	**0**	

SECTION 2. GOALS FOR 2024

If goals where not formalized -- see arrow

Strategic Objective	SMART Goal	Proposed Employee Self Assessment	Supervisor Rating	Comments
Select Strategic Objective				Employee: Supervisor:
Select Strategic Objective				Employee: Supervisor:
Select Strategic Objective				Employee: Supervisor:
Select Strategic Objective		0	0	Employee: Supervisor:
	Total Weight for Section 3: 90%	**0**	**0**	
	TOTAL EVALUATION	**0**		

GENERAL COMMENTS

Employee

Supervisor

By signing below, I confirm that I have read and understand the performance evaluation process in its entirety. I am aware of my responsibilities and the scope of my participation in this process.

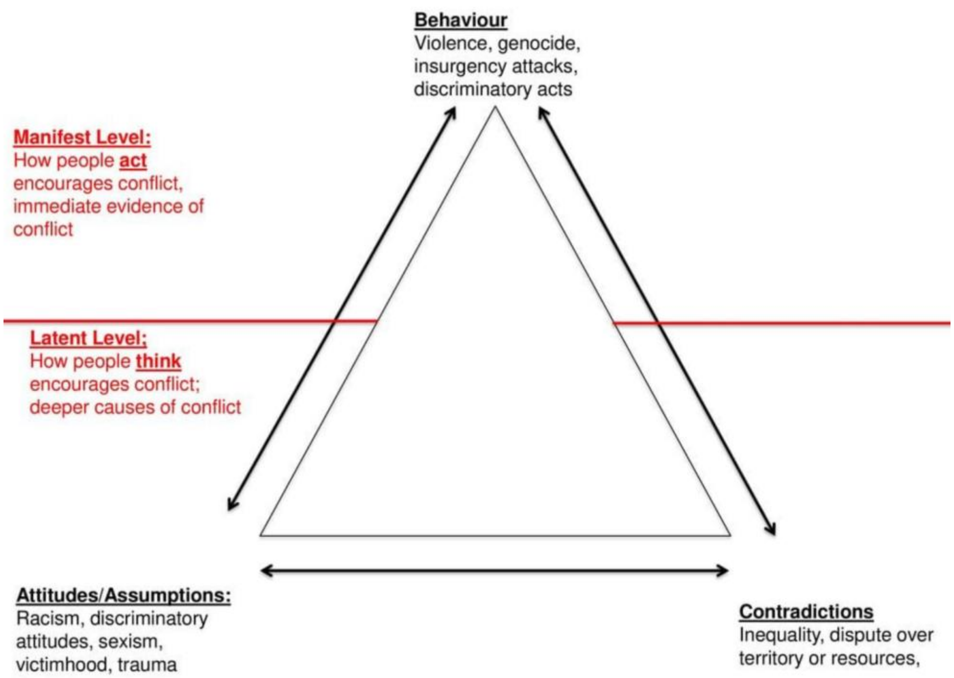
I acknowledge receipt and discussion with my supervisor of this year-end performance evaluation and appraisal. I understand that my signature on this form does not imply agreement with this rating.

EMPLOYEE SIGNATURE		**SUPERVISOR'S SIGNATURE**	

Annex P: Managing Conflicts Policy

Conflict is defined as the position between two or more parties who have differences; it arises when these parties perceive that their goals, values, or facts are mutually exclusive, i.e., incompatible. "Conflict is the process in which one party perceives that the other party opposes or adversely affects his or her interests." For Partners, it is a priority that within the team we can resolve our conflicts based on mutual respect, tolerance, and acceptance of our differences.

Initially, it is important to know that what we must reach at the moment of a conflict, more than to control it, is to **transform it**. The result of the conflict resolution must lead us to reconcile the



contradictions of the parties, their internal attitudes, and their behaviors.

Forms of Conflict

One of the challenges for team leaders is to develop a team capable of managing and resolving conflict. The resolution of labor conflicts is a challenge that tests our assertiveness and cooperation to reach agreements. These must be assimilated by all teams to improve productivity and the work environment.

Reason for Conflicts at Work

- **Disparate styles:** The personalities of employees can translate into a relaxed work environment or create a clash. This is especially common when working styles are more disparate within the same program.
- **Information conflict:** This problem occurs through misunderstandings between employees, such as miscommunication or poor data transmission or instructions.
- **Conflict of interest:** It occurs when each of the collaborators has different needs and performs their activities or tasks hindering the interests of the other employees.
- **Structural conflicts:** These are generated by cultural or educational inequalities in terms of roles in the line of work.
- **Values conflict:** When an employee tries to impose his or her personal values on another member of his or her work team.
    - Conflicts can be:
    - Intragroup, is a conflict between members of the same team.
    - Intergroup, occurs between different areas.

Preventing Labor Conflicts

There is no secret formula to ensure that Partners will maintain its inner peace in all circumstances, but there are a number of actions in our culture that can help achieve it.

We are empathetic. It is one of the most important qualities to be able to work in a team. Empathy is a key competence of emotional intelligence. Being empathetic means being able to see the world as the person in front of you, to be able to share and understand their feelings, needs, concerns... and act accordingly. Whatever the job position, empathy will benefit the relationship with other employees, as it significantly improves communication and interpersonal relationships.

- You can do this when you take the **time to get to know** your **colleagues** well.
- **Stay up to date**. Knowing if one of your partners is going on a trip, is about to get married or is going on a trip will help you get to know him or her better.
- **Observe and listen**. To improve empathy, you need to observe carefully. Notice the reactions of the people around you, how they are affected by what is happening to them, and analyze why they may be feeling this way.
- **Reflect**. After observing, reflect on your position on the situation your partner is in. Whether you have been polite, negotiated a point of view or remained unperturbed, etc.
- It is based on the assumption that **your way of seeing things is yours alone**, and that does not make it any more valid than that of others.
- **Help where you can**. Think about how you could be of service to them.

We learn to negotiate. The disparity of opinions will occur most of the time when a decision has to be made in a team. Therefore, it is essential that professionals learn to negotiate to **reach agreements** that, while not completely satisfying all of them, avoid conflicts.

We have sincerity among colleagues. Assertiveness, or the ability to express a different opinion without feeling bad about it or offending another colleague, is a personal quality that can **save many problems.** Therefore, we foster a climate of sincerity and trust based on mutual respect.

Stages of Conflict Resolution

Whenever there is a conflict in Partners, we will solve it through the following stages (when the conflict resolution cannot be solved in the first stage, it should evolve to the next stage, and so on):

1.1 Accepts and identifies why it is occurring

The moment a labor conflict begins to exist, the last thing you should do is ignore it or pretend it does not exist. This only makes the problem grow. Remember that, as time progresses, so will the problem, and if it is not dealt with correctly, it will generate more tension between the elements involved.

1.2 Between the parties

Take the time to have a space for self-reflection, analyze. There is high emotional energy at this stage: fear, aggression, attack, or a self-defense reaction.

It is important to empower yourself if you are the person affected by a conflict, therefore, you must get involved in the solution of the conflict that arises; at the moment it arises, you must dialogue with the other person about your differences, emotions and reach a compromise to improve relations or solve situations.

You should ask the following questions beforehand for self-reflection: With whom should I initiate a conversation to solve the conflict? What conversation should I initiate to take the actions that will lead to overcoming this conflict? What conversation is missing to take charge of this situation?

A place outside the office and with privacy where the parties involved in the conflict can talk is advisable. The supervisor should monitor the situation and if the conflict is not resolved, it is time to intervene directly as a mediator.

1.3 Intervention of the Supervisor or leader

As a supervisor you have the role of mediator, it is important to be very objective with the situation; if an **intragroup conflict** arises**,** try to analyze the situation, and not take sides, even if you believe that one side is right over the other. If the conflict **is intergroup,** you should initially make the other person's supervisory situation known and discuss it. Each of you will talk to the parties involved following the three-moment strategy:

1) **Conversation with each party separately**
   - ✓ Acknowledgment by the parties of the existence of the dispute
   - ✓ Each party involved will express how they feel about the situation.
   - ✓ Define the problem, impacts, and perspective of each one.
   - ✓ Define individual needs and interests

- ✓ To propose solutions that can end the conflict from the perspective of the party involved as soon as possible.

2) Consolidating and analyzing the two conversations between supervisors

- ✓ What do those involved want?
- ✓ Why is this important to them?
- ✓ What are their common interests and what are their distinct interests?
- ✓ What are the expected common concrete results?

3) Conversation with both parties

- ✓ Review your understanding of the conflict, respecting each other's perspective.
- ✓ The parties will know how the other party feels about the conflict.
- ✓ Consolidate common understanding of the problem;
- ✓ Consolidate common needs and interests
- ✓ Define concrete solutions (commitments)
- ✓ Agree on follow-up steps

Notes:

- Even if the conflict is with another area/program, it is important to be objective; it is not about defending someone on your team, it is about you as leaders being part of the solution.
- When you are mediating, try to lead the meeting to clear examples of situations in which the parties have felt emotionally affected, without this being expressed personally; for example: "I felt upset when... Where... Why".
- Avoid personal attacks, in the tensest conflicts, employees can make very serious accusations and even formulate personal disqualifications.
- During conflict resolution avoid using phrases such as: The other party made me feel...he/she always...he/she never, etc.

- It avoids resistance and encourages conciliation.
- You are looking for an immediate and effective solution.
- Reaches agreements that are convenient for each party.

1.4 HR Intervention

When the conflict reaches this stage, after going through the two previous ones, the supervisor must send an email to HR with a summary of the situation, reporting how the conflict was previously handled. In this step, with the intervention of the supervisor, the situation will be addressed with the parties involved, trying to follow up on the commitments made, and formally a commitment and the respective follow-up will be made. In this phase, the arguments presented will be evaluated and decisions will be made on compromises for the resolution of the conflict.

1.5 Coexistence Committee

At this stage, the conflict becomes a situation of alleged labor harassment, where some of the parties involved may make what happened known to the committee for the respective procedure, before moving to this stage it is important to consider what is and what is not labor harassment.

In the following comparison you can identify which behaviors may constitute workplace harassment and which may not:

Constitutes Labor Harassment	It does not constitute Labor Harassment.
Acts of physical aggression, regardless of their consequences (this may also constitute a crime of personal injury).	It is not harassment in the workplace to make a firm decision, as long as it is made in a respectful manner.
Insulting or insulting expressions about the person, using foul language or alluding to race, gender, family or national origin, political preference, or social status.	Respectful conduct shall be considered cordial treatment, without discrimination or discrimination based on creed, color, or political tendency, free of foul or hurtful words.

Hostile and humiliating comments of professional disqualification expressed in the presence of co-workers; or even in private.	The calling of attention or the haste required for the performance of an assigned task shall not be considered harassment in the workplace.
Unjustified threats of dismissal expressed in the presence of co-workers.	It is not harassment in the workplace to demand diligence and compliance in the work corresponding to the fulfillment of your position.
Multiple disciplinary complaints by any of the active subjects of the harassment, whose recklessness is demonstrated by the outcome of the respective disciplinary proceedings.	It is not harassing to make complaints, in a well-founded and serious manner, without suspicion of retaliation and to achieve an adequate working environment for the fulfillment of strategic objectives.
The humiliating disqualification and in the presence of co-workers of the proposals or work opinions (a humiliating qualification violates the dignity of the person, even if it is done in private, in this event, there is room for the victim to prove the conduct).	The counter-argumentation of proposals and the disparity in opinions, in a well-founded manner, is not harassment in the workplace, since this is in the company's best interest.
Mockery of physical appearance or manner of dress, made in public; (this conduct in private is just as reprehensible, it becomes harassment at work, only that the victim must prove it).	A generalized suggestion about clothing or even a private suggestion, if its purpose is to promote personal respect and that of the company, will not give rise to harassment at work.
The public allusion to facts pertaining to the privacy of the person (If at any time it is done, even in private).	It is not harassment at work to give advice in private or to conduct a psychological personality study, as long as it is not used for

	advantageous purposes by the company or its representatives.
The imposition of duties ostensibly alien to labor obligations, openly disproportionate demands on the performance of the work entrusted and the abrupt change of the place of work or of the contracted work without any objective basis concerning the technical necessity of the company.	Occasional tasks, even in areas other than the usual one, will not be considered as harassment in the workplace, since they are proposed as extraordinary circumstances.
The requirement to work excessive hours with respect to the contracted or legally established workday, sudden changes in the work shift and the permanent requirement to work on Sundays and holidays without any objective basis in the needs of the company, or in a discriminatory manner with respect to other workers or employees.	Excessive working hours are legally supported and grounded as overtime. Other types of activity are detrimental to work and physical well-being.
Treatment that is notoriously discriminatory with respect to other employees with respect to the granting of labor rights and prerogatives and the imposition of labor duties.	It will not be harassment to assign special functions in consideration of the qualifications of the personnel, as long as they are not saturated in terms of work.
Refusal to supply materials and information absolutely indispensable for the performance of the work.	In special situations, due to changes in policies and plans established in the company, it may be necessary to restrict the delivery of raw materials; this, of course, has the logical consequence of not being able to demand

	compliance with the results outlined. From this point of view, it will not be labor harassment.
The clearly unjustified refusal to grant leave, sick leave, ordinary leave, and vacations, when the legal, regulatory, or conventional conditions for requesting them are met (a very different matter will be the refusal of leave for necessary visits to the doctor, since they are part of the physical integrity of the employee and is an inalienable right).	For urgent needs of the company and in the event of possible labor modifications, the granting of leaves of absence or leave of absence, as well as vacations, may be temporarily restricted. Up to this point, harassment in the workplace is not conceivable.
Sending anonymous, telephone calls and virtual messages with insulting, offensive or intimidating content or subjecting them to a situation of social isolation.	It should be remembered that anonymous and denigrating messages may constitute a criminal offense of extortion or slander.

In the event of the repeated and demonstrable presence of any of these behaviors, every employee has the right to file a complaint for alleged harassment at work before the labor coexistence committee directly, bypassing the previous steps.

Annex Q: Risk Assessment Templates

Risk Assessment Templates

Sub-recipient Monitoring Tool- First Time

FIRST TIME RISK ASSESSMENT

Subrecipient Monitoring & Evaluation Check List

Name of Project & Grant Number:				
Subrecipient Name:				
Fixed Obligation Grant/Contract:	Yes or No	**Overall Score**		
Cost Reimbursable Grant/Contract:	Yes or No	0		
Staff Name Completing Form:		High Risk	Medium Risk	Low Risk
Date Completed:		121-180	61-120	0-60

Grading Legend:

Not Applicable	Low Risk	Medium Risk	High Risk
0	**1**	**2**	**3**

Explanation of risk levels:
HIGH – The risk associated with engaging the sub-recipient could compromise the project's goals, objectives, or compliance the prime sponsor's terms and conditions.
MEDIUM – The risk associated with engaging the sub-recipient could result in Partners operating inefficiently and/or expending unplanned resources to meet the project's goals and objectives.
LOW – The risk associated with engaging the sub-recipient has no anticipated measurable effect on the achievement of the project's goals and objectives.

No.	Description	``	Review Areas/ Action Required	Answers to Questions	Rating Risk
1	**Organization, Administration and Human Resources**				
	1.1	**Entity Details and Registration Compliance**			
		Is the organization U.S. based or foreign?			
		Is the organization legally registered in country?	Ex. Registration documents		
		Does the organization have a DUNS number	DUNS number must be obtain prior to award		
	1.2	**Business Structure**			
		What type of organization is the subrecipient? Grassroots, NGO, LLC, Corporation, Sole-Proprietorship, etc.?			
		Who is ultimately responsible for business liabilities, debts and actions?			
		How long has the subrecipient been in business? Over 10 years?			
	1.3	**Funding**			
		In the preceding fiscal year, did the subrecipient received 50% or more of its annual gross revenues from US federal contracts?	If majority of funding from USG, shows experience managing USG funding.		
	1.4	**Project Operations**			
		Is there an organizational chart? Is it updated?			
		Are staff aware of reporting structures?			
		Are there sufficient internal controls in place to protect against waste, fraud and abuse of Federal funds? Is there segregation of duties?	Ex. Responsible person for financial reporting, cash management, procurement, invoices, payroll, general accounts, property management		
		Does the organization have an Operations Manual?			
		Are the key elements of an Operations Manual present? 1) Project definition and scope 2) Project objectives 3) Mgmt. standards & procedures 4) Organizational chart 5) Financial & HR procedures 6) Staffing requirements 7) Record Retention policy 9) Procurement procedures 10) Travel Policy 11) Capitalization/depreciation 12) Risk assessment policy (if second-tier subrecipients) 13) Protection from Sexual Exploitation and Abuse (PSEA) 14) Child Protection Policy (if working with children) 15) Suspension & Debarment	Review key sections to ensure compliance with 2 CFR 200 Uniform Guidance:		
		Do the organization's policies meet or exceed the Federal retention requirements?	Review record retention policy		
	1.5	**Human Resources and Personnel**			
		Are there Personnel Files? Do they have proper backup and filing systems?	Is there a CV or Bio-data, offer letter or employee contract? Is there a job description? Is signed copy of contract ? Test: Random check of each personnel file to verify documentation. How are salary distributions made? Are they properly documented?		
		Is there a written HR Policy? Is it being followed?	Review HR policy		
		Does the subrecipient have a written conflict of interest policy for their employees and contractors? How often is it signed?	Spot check and confirm conflict of interest policies are being signed by employees		
		Is there a clear delineation of roles and responsibilities?			
		Are employees benefit plans readily available (medical, insurances, allowances, bonus policies etc.)? Are fringe benefits paid in accordance with local laws and organizational policy?	Evidence (health plan, workplace insurance, overtime register, training policy, etc.)		
		Are personnel and consultants contracts available in hard or soft copy? Or both?	If only hard copy, what mitigation efforts are taken to ensure their safety		
		Total score for Organization, Administration and Human Resources			0
2	**Risk Management**				
	2.1	**Anti-corruption / Sanctions Lists / Counter Terrorism**			
		Has POA conducted a screening of the organization and people working for a project? Ex. Visual Compliance Check	Conduct Visual Compliance checks		
	2.2	**Risk Management**			
		Is there a Project Filing System?	Filing list, hard and soft copy files, compliance with SharePoint filing system		
		Does the subrecipient have a procedures to identify and account for federal property and equipment purchased with grant funds?			
		Does the subrecipient have adequate safeguards for preventing loss, damage, or theft of property held (inventory control, etc.)?			
	2.3	**Safety and Security Plan**			
		Is there a Safety and Security Plan on file with up-to-date emergency contact information?			
		Total score for Risk Management			0

Organization, Administration, and Human Resources Scoring		
High Risk	Medium Risk	Low Risk
39-57	20-38	0-19

Risk Management Scoring		
High Risk	Medium Risk	Low Risk
11-15	6-10	0-5

3	**Finance and Procurement**				
	3.1	**Financial Operations**			
		Are there financial management procedures?	Spot check; Review key sections to ensure compliance with 2 CFR 200 Uniform Guidance and GAAP		
		Are staff aware of the financial management procedures?	Are trainings done regularly?		
		Do records show correct signatures in line with delegated authority? Are invoices or vouchers approved in advance by authorized officials?	Spot check 10 items		
		Are payment vouchers or supporting documents identified by grant number, date(s) and expense classification?	Spot check 10 items		
		Is there evidence of proper financial documentation?	Payment ,receipt, journal entry, petty chase, invoices, payroll slips, bank statements, bank reconciliations		
		Are financial records being kept in hard or soft copy? Or both?			
		Does the subrecipient have a cash forecasting process which will minimize the time elapsed between the drawing down of funds and the disbursement of those funds?			
	3.2	**Payroll**			
		Is payroll calculated each month?	By whom and how?		
		Are all applicable taxes being withheld?	Ex. Income tax, PAYE		
		Are individual timesheets or time and effort reports for each staff member available?	Spot check documentation and ensure duly signed		
		Does payroll documentation detail other benefits and percentage allocation?			
	3.3	**Audit**			
		Have Subrecipient's annual financial statements been audited by an independent audit firm? If yes, provide a copy of the statements for the last year.	Review audit report		
		Is the organizations currently subject to audit requirements set forth in section § 200.501 for spending $750,000 in USG funding?	Review audit report		
		If the subrecipient had an external audit, where there any findings? If so, have the findings been resolved?			
		Has the subrecipient currently or previously been involved in any litigation concerning performance or financial management under United States Government federal award or subaward?			
	3.4	**Procurements**			
		Are formal procurement policies and procedures in place and being followed?	Test procurement documentation		
	3.5	**Accounting System**			
		What type of financial management/accounting system does the subrecipient utilize?			
		Is there adequate reporting and tracking of funds? Are sources of non-Federal funds identified and tracked separately in the accounting system?			
		Does Subrecipient's financial system provide for the effective control over and accountability for all funds, property, and other assets (including but not limited to: (1) comparison of expenditures with budget amounts for each award; and (2) recording of each grant/contract by the budget cost categories shown in the approved budget)?			
		Is there a chart of accounts?			
		Does the system provide for prompt and timely recording and reporting of all financial transactions?			
		Does the organization keep a separate bank account for POA/USG funds?			
	3.6	**Cost Share**			
		Has the organization worked with cost share requirements before? Does Subrecipient have a system in place to determine that it has met its cost sharing goals, if applicable?			
	3.7	**Inventory Systems**			
		Does the subrecipient periodically check its detailed property and equipment records against physical inventory?			
	3.8	**Travel**			
		Does the organization have its own travel policy and is the policy being followed?	Review travel policy		
		Total score for Finance and Procurement			0
4	**Technical Capacities**				
	4.1	**Experience**			
		Has the subrecipient worked on projects related to or with POA's in the past? If so, when?			
		Has the subrecipient worked with USG funding past? If so, when?			
		Are the activities of the subrecipient aligned with the mission and the values of the organization?			
	4.2	**Leadership**			
		Is the subrecipient well known because of its leadership in relevant topics related to the goals of the subaward?			
		Are the senior staff members of the company leaders that can facilitate project implementation?			
		During the last year has been a change in leadership?			
	4.3	**Personnel and Consultants**			
		Are the technical staff of the organization qualified and have the necessary experience?			
		What is the turnover of the technical staff?			
		Does the organization have the ability to hire a short-term consultant quickly?			
	4.4	**Monitoring and Evaluation**			
		Does the organization have mechanisms (monitoring and evaluations tools) to ensure good quality of the products?			
		Is there a database or other platform to accurately enter, store, and download M&E data?			
`		***Total score for Technical Capacities***			0
		Total Score in All Categories			0

Organization and Administration Scoring		
Finance and Procurement Scoring		
High Risk	Medium Risk	Low Risk
51-75	26-50	0-25

Technical Capacities Scoring		
High Risk	Medium Risk	Low Risk
23-33	12-22	0-11

Sub-recipient Monitoring Tool- Recurring Policy

REOCCURING RISK ASSESSMENT

Subrecipient Monitoring & Evaluation Check List

Recurring Policy (Subrecipient Monitoring)

Name of Project & Grant Number:				
Subrecipient Name:				
Fixed Obligation Grant/Contract:	Yes or No	**Overall Score**		
Cost Reimbursable Grant/Contract:	Yes or No	0		
Staff Name Completing Form:		High Risk	Medium Risk	Low Risk
Date Completed:		129-192	65-128	0-64

Grading Legend:

Not Applicable	Low Risk	Medium Risk	High Risk
0	**1**	**2**	**3**

Explanation of risk levels:
HIGH – The risk associated with engaging the sub-recipient could compromise the project's goals, objectives, or compliance the prime sponsor's terms and conditions.
MEDIUM – The risk associated with engaging the sub-recipient could result in Partners operating inefficiently and/or expending unplanned resources to meet the project's goals and objectives.
LOW – The risk associated with engaging the sub-recipient has no anticipated measurable effect on the achievement of the project's goals and objectives.

No.	Description		Review Areas/ Action Required	Action Required	Rating Risk
1	**Organization, Administration and Human Resources**				
	1.1	**Funding**			
		In the preceding fiscal year, did the subrecipient received 50% or more of its annual gross revenues from US federal contracts?	If majority of funding from USG, shows experience managing USG funding.		
	1.2	**Project Operations**			
		Is there an organizational chart? Is it updated?			
		Are staff aware of reporting structures?			
		Are there sufficient internal controls in place to protect against waste, fraud and abuse of Federal funds? Is there segregation of duties?	Ex. Responsible person for financial reporting, cash management, procurement, invoices, payroll, general accounts, property management		
		Has the Operations Manual been updated?			
		If there were policy changes in the past year, are the key elements of an Operations Manual still present? 1) Project definition and scope 2) Project objectives 3) Mgmt. standards & procedures 4) Organizational chart 5) Financial & HR procedures 6) Staffing requirements 7) Record Retention policy 9) Procurement procedures 10) Travel Policy 11) Capitalization/depreciation 12) Risk assessment policy (if second-tier subrecipients)	Review key sections to ensure compliance with 2 CFR 200 Uniform Guidance:		
		If there are project vehicles, is there a vehicle usage log? Is it maintained and reviewed on a regular basis? Is there an office policy on vehicle usage? If there is no vehicle, is mileage reimbursement done correctly in the past year?			
	1.3	**Human Resources and Personnel**			
		Are the Personnel Files up-to-date? Do they have proper backup and filing systems?	Is there a CV or Bio-data, offer letter or employee contract? Is there a job description? Is signed copy of contract ? Test: Random check of each personnel file to verify documentation. How are salary distributions made? Are they properly documented?		
		Has the written HR Policy been updated? If so, is it being followed?	Review updated HR policy		
		Is the conflict of interest policy being followed? How often is the certification signed by staff?	Spot check and confirm conflict of interest policies are being signed by employees		
		Is there an up-to-date list of project employees and consultants?			
		Are employee salary and consultant payments in accordance with the approved budget and authorized level of effort?			
		Total score for Organization, Administration and Human Resources			0
2	**Risk Management**				
	2.1	**Anti-corruption / Sanctions Lists / Counter Terrorism**			
		Has POA conducted an updated screening of the organization and people working for a project? Ex. Visual Compliance Check	Conduct Visual Compliance checks		
		Has the subrecipient been conducting SAM checks prior to payments on their vendors?			
	2.2	**Risk Management**			
		Are local contract templates being checked regularly (at least every two years) to make sure they are in line with country workplace laws?	Evidence of local legal advice		
		Is the a Project Filing System being followed? Are files requested by Partners easily available?			
	2.3	**Safety and Security Plan**			
		Is the Safety and Security Plan being followed and updated regularly? Has there been any major security concerns in the past year?			
		Total score for Risk Management			0

Organization, Administration, and Human Resources Scoring		
High Risk	Medium Risk	Low Risk
25-36	13-24	0-12

Risk Management Scoring		
High Risk	Medium Risk	Low Risk
11-15	6-10	0-5

3	**Finance and Procurement**				
	3.1	**Financial Operations**			
		Are there updated financial management procedures?	Spot check; Review key sections to ensure compliance with 2 CFR 200 Uniform Guidance and GAAP		
		Are staff aware of the financial management procedures?	Are trainings done regularly?		
		Are project invoices/financial reports being submitted to Partners on time?	Spot check last 3 invoices		
		Do records show correct signatures in line with delegated authority? Are invoices or vouchers approved in advance by authorized officials?	Spot check 10 items		
		Are the expenses reasonable, allowable and allocable?	Spot check 10 items		
		Has the financial documentation been complete? Accurate? Does supporting documents identify grant number, date(s) and expense classification?	Payment ,receipt, journal entry, petty chase, invoices, payroll slips, bank statements, bank reconciliations		
		Is there a budget variance greater than 10% of the total award value in any budget category?			
		Has cash flow projections been reasonable and accurate? Has effort been made to minimize the time elapsed between the drawing down of funds and the disbursement of those funds?	Review cash flow projections against financial reports/invoices.		
		Are financial records being kept in hard or soft copy? Or both?			
	3.2	**Payroll**			
		Has payroll been calculated correctly each month?			
		Are all applicable taxes being withheld?	Ex. Income tax, PAYE		
		Are individual timesheets or time and effort reports for each staff member available?	Spot check documentation and ensure duly signed		
		Does payroll documentation detail other benefits and percentage allocation? Are funding and staffing resource estimates sufficiently detailed and documented for use in planning and tracking the grant?			
	3.3	**Audit**			
		Are annual audits being undertaken either internally or externally?	Annual audit reports		
		Are project audits stipulated per the grant? Or is the organizations currently subject to audit requirements set forth in section § 200.501 for spending $750,000 in USG funding?	Check contract/grant		
		If yes, are audits being conducted and copies sent to Partners?			
		If the subrecipient had an audit, where there any findings or questioned costs? If so, have the findings and/or questioned costs been resolved? Who is responsible for handling the findings and/or questioned costs?			
		If applicable, did the subrecipient submit a timely response to the auditors, including a plan for correcting any findings?			
		Has the subrecipient currently or previously been involved in any litigation concerning performance or financial management under United States Government federal award or subaward?			
	3.4	**Procurements**			
		Are formal procurement policies and procedures being followed? Any issues with procurement and its documentation in the past year?			
		If applicable, have all special conditions of the award been met? Ex. Prior approval for travel, consultants, second tier subawards, etc.			
	3.5	**Accounting System**			
		Has there been adequate reporting and tracking of funds? Are sources of non-Federal funds identified and tracked separately in the accounting system?			
		Does the system provide for prompt and timely recording and reporting of all financial transactions?			
	3.6	**Cost Share**			
		If required, has cost share been reported correctly and properly documented?			
		Are the items reported as cost share reasonable, allocable and allowable?			
	3.7	**Inventory System**			
		Has the subrecipient periodically check its detailed property and equipment records against physical inventory?			
		Are inventory items for the project labeled, marked and entered into a log/register?			
		Are inventory registers for the project being updated regularly and checked at least annually?	Spot check inventory or inventory registers		
	3.8	**Travel**			
		Is there authorized travel by POA?	Check approved budget and other documentation		
		If travel is authorized, has the subrecipient followed its own travel policy?	Ensure policy is compliant with 2 CFR 200.		
		Are Travel Expense Reports submitted correctly, on time, and with appropriate approvals?	Spot check		
		Is the correct M&IE rate being used? Confirm it does not exceed the government rate.			
		Are itemized receipts attached to the travel expense reports?			
		Are only allowable expenses being reimbursed?			
		If travel advances are allowed, are they being cleared according to the organization's policy?			
		If conferences are part of travel, is there proof that funds went to specific conferences cited in deliverables?	Check for participants list, hotel reservations, receipts, and other documentation		
		Total score for Finance and Procurement			0
4	**Technical Capacities**				
	4.1	**Experience**			
		In the past year, has the subrecipient provide the expected experience and technical knowledge?			
	4.2	**Leadership**			
		During the last year has been a change in leadership?			
	4.3	**Personnel and/or Consultants**			
		Are the technical staff of the organization qualified and have the necessary experience?			
		What is the turnover of the technical staff?			
	4.4	**Monitoring and Evaluation**			
		Does the organization have mechanisms (monitoring and evaluations tools) to ensure good quality of the products?			
		Has the M&E reporting been accurate and complete?			
	4.5	**Programmatic Reporting**			
		Have technical reports been submitted timely?			
		Have the reports been accurate? Have there been errors?			
		Is the project functioning as described in application? Are target dates as established by the contractual agreement for each milestone/deliverable being met?			
		Is data/information provided to support project "goals/outcomes"?			
		Are project deliverables clearly understood by project staff?			
`		***Total score for Technical Capacities***			0
		Total Score in All Categories			0

Finance and Procurement Scoring		
High Risk	Medium Risk	Low Risk
73-108	37-72	0-36

Technical Capacities Scoring		
High Risk	Medium Risk	Low Risk
23-33	12-22	0-11

Annex R: Per Diem Example

Examples for calculating per diem for HQ staff, note Field Staff have different percentages, however, the calculation is the same.

Notes:

- General Services Administration (GSA) establishes per diem rates for destinations within the lower 48 Continental United States (CONUS).
- The Department of Defense (DOD) establishes non-foreign rates which includes Alaska, Hawaii, and all U.S. Territories (Non-CONUS).
- The State Department establishes all foreign rates which are specific to major cities.
- Meal breakdown can be calculated in the following chart (note, for travel funded by USG programs, this table MUST be used): www.gsa.gov/travel/plan-book/per-diem-rates/mie-breakdown

i) Normal example with no exceptions

Traveler A, a staff from the HQ office, leaves for a trip to New York City on Monday morning in April. The flight is scheduled to leave at 9AM. The traveler returns back to home-of-record on Thursday by noon.

The M&IE rate is $76, as per the GSA website.
The Partners' approved rate is 90% = $68.4

The per diem received will be:
Monday = $68.4* 75% = $51.80
Tuesday = $68.40
Wednesday = $68.40
Thursday = $68.4 * 75% = $51.80

Total per diem = $51.80 + $68.40 + $68.40 + $5.1.80 = $240.40

ii) Departing from home early; arriving home late

Traveler B, a staff from the HQ office, leaves for a trip to Bogota, Colombia on Monday morning in April. The flight is scheduled to leave at 8:00AM. In order to catch the flight, Traveler B must leave the home-of-record at 5:30 AM in order to be at the airport two hours prior to departure. The traveler returns back to home-of-record on Thursday at 10PM.

The M&IE rate is $105, as per the State Department website.
The Partners' approved rate is 90% = $94.50

The per diem received will be:

Monday = $94.50 (this is a travel day; however, since Traveler B is leaving the home-of-record before 6AM, as per Section 14.5.2 M&IE Meal Breakdown, full per diem is applied)
Tuesday = $94.50
Wednesday = $94.50
Thursday = $94.50 (this is a travel day; however, since Traveler B is arriving to the home-of-record after 7PM, as per Section 14.5.2 M&IE Meal Breakdown, full per diem is applied)

Total per diem = $94.50 + $94.50 + $94.50 + $94.50 = $378

iii) Some meals covered by other sources

Traveler C, a staff from HQ, attends a conference in Panama City, leaving on flight on Monday at 11AM, attending the conference on Tuesday – Thursday, and returning on Friday morning, arriving to home-of-record after 9PM. During the conference, meals are provided for breakfast and lunch.

The Panama City M&IE rate is $99, as per the State Department website.
The Partners' approved rate is 90% = $89.10
Meal breakdown is as follows, as per Section 14.5.2:
Breakfast @ the $89.10 = $13; Lunch = $22; Dinner = $36; Incidentals = $18 (numbers rounded to nearest dollar)

The per diem received will be:

Monday = $89.10 * 75% = $66.83	(Panama City is the destination city and the rate to utilize on this first travel day)
Tuesday = $36 + $18 = $54	(Dinner plus incidentals)
Wednesday = $36 + $18 = $54	(Dinner plus incidentals)
Thursday = $36 + $18 = $54	(Dinner plus incidentals)

Friday = $89.10 (this is a travel day; however, since Traveler C is arriving to the home-of-record after 7PM, as per Section 14.5.2 M&IE Meal Breakdown, full per diem is applied; also, Panama City is the city of departure; hence, this rate is utilized)

Total per diem = $66.83 + 54 + 54 + 54 + 89.10 = $317.93

Annex S: Affidavit

PARTNERS of the AMERICAS
Connect • Serve • Change Lives

Affidavit in lieu of Receipt

I certify the following charges are true and correct and made for the business purpose outlined below.

Purpose/Event:

Date	Description	Amount	Payment Method

Signed,

________________________________ ____________
Name Date

1424 K Street NW Suite 700 Washington DC 20005 202.628.3300 www.partners.net

Acknowledgment of Receipt and Compliance to Policies

I hereby acknowledge that I have received the Mauritania Supplemental Manual for Personnel and Operations (herein referred to as “MANUAL”) for Partners Mauritania. I understand that the purpose of the MANUAL is to acquaint employees with the policies and procedures of Partners Mauritania, and to act as a reference for employees. I understand that the MANUAL reflects the policies and procedures in effect this date which may be changed by Partners Mauritania.

I understand that I am bound by the provisions of this MANUAL and that it is my responsibility to read and adhered to the contents set forth in the MANUAL. Furthermore, I acknowledge these policies and procedures as conditions of employment with the Partners Mauritania. I agree to comply with all policies contained within the MANUAL and to ask my supervisor any questions that I may have about it.

Print Name:____

Employee Signature:____

Date:___________________